

**INVESTIGATION OF COMMUNIST ACTIVITIES IN THE
SEATTLE, WASH., AREA—Part 3**

HEARINGS
BEFORE THE
COMMITTEE ON UN-AMERICAN ACTIVITIES
HOUSE OF REPRESENTATIVES
EIGHTY-FOURTH CONGRESS
FIRST SESSION

**INVESTIGATION OF COMMUNIST ACTIVITIES IN THE
SEATTLE, WASH., AREA—Part 3**

HEARINGS
BEFORE THE
COMMITTEE ON UN-AMERICAN ACTIVITIES
HOUSE OF REPRESENTATIVES
EIGHTY-FOURTH CONGRESS
FIRST SESSION

The Project Gutenberg eBook of Investigation of Communist activities in Seattle, Wash., area. Hearings, Part 3

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Investigation of Communist activities in Seattle, Wash., area.
Hearings, Part 3

Author: United States. Congress. House. Committee on Un-American Activities

Release date: January 18, 2018 [eBook #56388]

Language: English

Other information and formats: www.gutenberg.org/ebooks/56388

Credits: Produced by Richard Hulse, Bryan Ness, Wayne Hammond and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK
INVESTIGATION OF COMMUNIST ACTIVITIES IN SEATTLE,

WASH., AREA. HEARINGS, PART 3 ***

**INVESTIGATION OF COMMUNIST
ACTIVITIES
IN THE SEATTLE, WASH., AREA—Part 3

HEARINGS

BEFORE THE

COMMITTEE ON UN-
AMERICAN ACTIVITIES
HOUSE OF REPRESENTATIVES

EIGHTY-FOURTH CONGRESS

FIRST SESSION**

JUNE 1 AND 2, 1955

Printed for the use of the Committee on Un-American Activities

INCLUDING INDEX



UNITED STATES
GOVERNMENT PRINTING OFFICE
WASHINGTON: 1955

COMMITTEE ON UN-AMERICAN ACTIVITIES

UNITED STATES HOUSE OF REPRESENTATIVES

FRANCIS E. WALTER, Pennsylvania, *Chairman*

MORGAN M. MOULDER,
Missouri

CLYDE DOYLE, California

JAMES B. FRAZIER, JR.,
Tennessee

EDWIN E. WILLIS, Louisiana

HAROLD H. VELDE, Illinois

BERNARD W. KEARNEY, New
York

DONALD L. JACKSON, California

GORDON H. SCHERER, Ohio

THOMAS W. BEALE, Sr., *Chief Clerk*

CONTENTS

	Page
<u>June 1, 1955, testimony of Jeremiah Joseph O'Connell</u>	502
<u>June 2, 1955, testimony of Jeremiah Joseph O'Connell</u>	547
<u>Index</u>	i

PUBLIC LAW 601, 79TH CONGRESS

The legislation under which the House Committee on Un-American Activities operates is Public Law 601, 79th Congress [1946], chapter 753, 2d session, which provides:

*Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, * * **

PART 2—RULES OF THE HOUSE OF REPRESENTATIVES

RULE X

SEC. 121. STANDING COMMITTEES

17. Committee on Un-American Activities, to consist of nine Members.

RULE XI

POWERS AND DUTIES OF COMMITTEES

(q) (1) Committee on Un-American Activities.

(A) Un-American activities.

(2) The Committee on Un-American Activities, as a whole or by subcommittee, is authorized to make from time to time investigations of (i) the extent, character, and objects of un-American propaganda activities in the United States, (ii) the diffusion within the United States of subversive and un-American propaganda that is instigated from foreign countries or of a domestic origin and attacks the principle of the form of government as guaranteed by our Constitution, and (iii) all other questions in relation thereto that would aid Congress in any necessary remedial legislation.

The Committee on Un-American Activities shall report to the House (or to the Clerk of the House if the House is not in session) the results of any such investigation, together with such recommendations as it deems advisable.

For the purpose of any such investigation, the Committee on Un-American Activities, or any subcommittee thereof, is authorized to sit and act at such times and places within the United States, whether or not the House is sitting, has recessed, or has adjourned, to hold such hearings, to require the attendance of such witnesses and the production of such books, papers, and documents, and to take such testimony, as it deems necessary. Subpenas may be issued under the signature of the chairman of the committee or any subcommittee, or by any member designated by any such chairman, and may be served by any person designated by any such chairman or member.

RULES ADOPTED BY THE 84TH CONGRESS

House Resolution 5, January 5, 1955

RULE X

STANDING COMMITTEES

1. There shall be elected by the House, at the commencement of each Congress, the following standing committees:

(q) Committee on Un-American Activities, to consist of nine members.

RULE XI

POWERS AND DUTIES OF COMMITTEES

17. Committee on Un-American Activities

(a) Un-American Activities.

(b) The Committee on Un-American Activities, as a whole or by subcommittee, is authorized to make from time to time, investigations of (i) the extent, character, and objects of un-American propaganda activities in the United States, (ii) the diffusion within the United States of subversive and un-American propaganda that is instigated from foreign countries or of a domestic origin and attacks the principle of the form of government as guaranteed by our Constitution, and (iii) all other questions in relation thereto that would aid Congress in any necessary remedial legislation.

The Committee on Un-American Activities shall report to the House (or to the Clerk of the House if the House is not in session) the results of any such investigation, together with such recommendations as it deems advisable.

For the purpose of any such investigation, the Committee on Un-American Activities, or any subcommittee thereof, is authorized to sit

and act at such times and places within the United States, whether or not the House is sitting, has recessed, or has adjourned, to hold such hearings, to require the attendance of such witnesses and the production of such books, papers, and documents, and to take such testimony, as it deems necessary. Subpenas may be issued under the signature of the chairman of the committee or any subcommittee, or by any member designated by such chairman, and may be served by any person designated by any such chairman or member.

**INVESTIGATION OF COMMUNIST
ACTIVITIES IN THE SEATTLE, WASH.,
AREA—Part 3**

WEDNESDAY, JUNE 1, 1955

**HOUSE OF REPRESENTATIVES
SUBCOMMITTEE OF THE
COMMITTEE ON UN-AMERICAN ACTIVITIES,
*Washington, D. C.***

PUBLIC HEARING

A subcommittee met, pursuant to call, at 10 a. m. in the caucus room, Old House Office Building, Hon. Morgan M. Moulder (chairman) presiding.

Committee members present: Representatives Morgan M. Moulder, Clyde Doyle, and Harold H. Velde.

Staff members present: Frank S. Tavenner, counsel.

Mr. MOULDER. The subcommittee will be in order, please.

Let the record show that the Honorable Francis E. Walter, chairman, Committee on Un-American Activities, pursuant to the provisions of law creating this committee, appointed Representatives Clyde Doyle, of California, Harold H. Velde, of Illinois, and myself, Morgan M. Moulder, of Missouri, as chairman of a subcommittee to conduct this hearing. All the members of the subcommittee are present.

The hearing today is a continuation of the hearings initiated in Seattle on June 14, 1954, and resumed in Seattle on March 17, 1955.

The purpose of the hearings in Seattle was to discover the activities of the Communist Party in the Pacific Northwest area, the extent of Communist infiltration in that area, and the methods resorted to by the Communist Party in the accomplishment of its objectives in that area.

Two outstanding witnesses were heard: Mrs. Barbara Hartle, during the hearings of June 14, 1954, and Mr. Eugene V. Dennett during the hearings of March 17, 1955. It is the hope of the committee that the witness to be heard today will throw additional light on the subject of this inquiry.

Today's witness was subpoenaed to appear before the committee at the March 1955 hearings in Seattle, but due to illness was not heard at that time.

Mr. Tavenner, are you ready to proceed?

Mr. TAVENNER. Mr. Jeremiah Joseph O'Connell.

Mr. MOULDER. Do you solemnly swear that the testimony which you are about to give before this subcommittee will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. O'CONNELL. I do.

TESTIMONY OF JEREMIAH JOSEPH O'CONNELL

Mr. TAVENNER. What is your name, please, sir?

Mr. O'CONNELL. Jeremiah Joseph O'Connell.

Mr. TAVENNER. Are you also known by the name of Jeremiah J. O'Connell?

Mr. O'CONNELL. Well, I would presume that my baptismal name in the Catholic Church was probably Jeremiah J. O'Connell, but during grade school, high school, college, and law school, and in my political career I have always been known as Jerry J. O'Connell.

Mr. TAVENNER. Mr. O'Connell, you are acquainted with the practice of the committee to permit witnesses to be accompanied by counsel and to confer with counsel if a witness desires?

Mr. O'CONNELL. Yes, I understand that, sir.

Mr. TAVENNER. It is noted that you are not accompanied by counsel.

Mr. O'CONNELL. I had expected Senator Langer of North Dakota to appear with me, but his office notified me today he was out of town and wasn't going to be able to get back until this afternoon, but I have worried about this thing, and I have been under tension about it, and I am anxious to get it over with.

Mr. TAVENNER. You are satisfied, then, to proceed without having counsel with you?

Mr. O'CONNELL. Yes, sir.

Mr. TAVENNER. Of course, should it develop at any point in your testimony you desire to consult counsel, you may address your request to the committee.

When and where were you born, Mr. O'Connell?

Mr. O'CONNELL. I was born in Butte, Mont., on October 4, 1908.

Mr. TAVENNER. Where do you now reside?

Mr. O'CONNELL. I now reside at Great Falls, Mont.

Mr. TAVENNER. Will you tell the committee, please, briefly what your educational training has been?

Mr. O'CONNELL. Well, I received my grammar school education at St. Patrick's School in Butte, Mont., my high school education at Butte Central Catholic High School in Butte, Mont., my liberal arts education at Mount St. Charles College, now known as Carroll College, where I graduated with an A. B. degree.

Mr. TAVENNER. In what year did you graduate from that college?

Mr. O'CONNELL. 1931.

Mr. TAVENNER. Where did you receive your A. B. degree?

Mr. O'CONNELL. Mount St. Charles College, now known as Carroll College, in Helena, Mont., in 1931.

Through the late Senator Thomas J. Walsh, of Montana, I obtained employment here in the District with the Democratic National Committee, later in 1931, and attended law school at Columbus Law School here in the District.

Mr. TAVENNER. Did you receive a degree?

Mr. O'CONNELL. No; I did not. I was elected to the Legislature of the State of Montana in 1931, when I was only 21 years of age and while a senior at

Mount St. Charles College. I came back here and went to law school and then in 1932 during the summer vacation I went back and sought renomination and reelection to the State legislature and was successful.

I served in the 1933 session of the State legislature. Also in a special session of the legislature in the latter part of 1933 and the early part of 1934.

In between I came back and continued taking law courses in between the legislative sessions and so on, and later studied law privately at home and in a law office at Butte, Mont., and then in 1934 I was elected to the State Railroad and Public Service Commission of Montana, which is a statewide elective office in the State, and then in 1936 I was elected to the 75th Congress of the United States from the First Western District of the State of Montana.

I served one term, from 1937 to 1939, and was defeated in the 1938 general elections. I won the Democratic nomination.

In 1940 I again won the Democratic nomination and was defeated in the 1940 election by Jeannette Rankin.

After my defeat I edited a statewide weekly newspaper called Jerry O'Connell's Montana Liberal. I also was active politically and particularly in the organization of an old-age pension group in which I had the principal activity or principal organizational activity in the State.

Mr. TAVENNER. Is that in the State of Montana?

Mr. O'CONNELL. That is right.

Mr. TAVENNER. What was the date of the organization of the old-age pension group by you?

Mr. O'CONNELL. Well, I actually think that I—it is quite a long while ago now—it was 1939, if I remember correctly. I began holding meetings in various parts of the State and we were advancing a State, it was a State initiative for improvement of the pension situation as far as senior citizens were concerned in the State. I think that came out in 1938 campaign, I had

originally been endorsed by the Townsend organization for reelection to Congress and then during the 1938 general elections Dr. Townsend flew from Hawaii into my district and made 3 speeches against me, 2 or 3 speeches. I am not sure which. And the result was a considerable division in the Townsend organization as it existed in the State then, and out of that I am pretty sure at that time there was a gentleman by the name of Arthur L. Johnson, who was promoting I think what he called the general welfare acts or general welfare plan, and on a State pattern, using that general welfare act we promoted a pension plan in the State of Montana on an initiative, we have an initiative law there.

Mr. VELDE. May I ask a question, Mr. Chairman.

You mentioned you studied law here at Columbus Law School and in a law office, I believe, in Butte, Mont.

Mr. O'CONNELL. Yes.

Mr. VELDE. Did you pass the bar of the State of Montana?

Mr. O'CONNELL. Yes, I passed the bar of the State of Montana.

Mr. VELDE. I do not think you mentioned that. When did that happen?

Mr. O'CONNELL. I actually didn't pass the bar in Montana. I had been active politically and I didn't pass the State bar examination until June 23, 1950.

Mr. VELDE. Since that time you have been a practicing lawyer?

Mr. O'CONNELL. Since then I have been practicing law at Great Falls, Mont.

Mr. TAVENNER. Have you been admitted to practice in any State other than Montana?

Mr. O'CONNELL. No, I have not.

Mr. TAVENNER. Have you held any other organizational positions of any character in the State of Montana or elsewhere?

Mr. O'CONNELL. Well, in I think about February 1944 I was appointed by Sidney Hillman as CIO political action director for the State of Montana, and in about August of 1944—in that year I was elected delegate to the Democratic National Convention from the State of Montana and attended the Chicago convention in that year.

In August of 1944 after the convention I was appointed assistant regional director for the CIO Political Action Committee with offices or headquarters at Seattle, Wash., under the director who was Roy W. Atkinson, and that region included Washington, Idaho, Oregon, and Montana.

After I went to the State of Washington, I became active particularly with—one of the principal activities of the CIO political action committee was to advance and encourage registration for voting in the 1944 elections and in the State of Washington, particularly along the West coast there was a considerable influx of war workers during that period who, of course, were unregistered and my principal activity preceding the actual beginning of that 1944 general campaign was bringing about registration by getting the city councils in the various larger cities, particularly in the State of Washington, to hold a registration week and opening up the schools and then after the campaign, as I was explaining, the city councils called a registration week where there was the extended registration campaign or program carried on, and after that I then became assistant regional director for the CIO political action committee active with the Democratic organization, particularly in the State of Washington and of course also to some extent in Idaho and I don't think during that campaign at all that I appeared in the State of Oregon.

I was back in Montana a few times in that connection but I spent the principal part of that time working with the Democratic Party organization in the State of Washington.

Mr. TAVENNER. Did you hold any position in the Democratic organization in the State of Washington?

Mr. O'CONNELL. At that time I didn't hold any. After the election—the Democratic Party was considerably successful in the State of Washington—

and I think the Democratic Party leaders had a feeling that I had made a considerable contribution to the success which they had.

Within a few weeks after the election the Democratic Party leaders in that State discussed with me taking a full-time position with the Democratic Party in the State of Washington as executive secretary of the Democratic Party.

Mr. TAVENNER. That began in 1944?

Mr. O'CONNELL. I was elected by the State central committee at Ellensburg, Wash., I think somewhere about in the middle of December 1944.

Mr. TAVENNER. How long did you continue in that position?

Mr. O'CONNELL. I continued in that position then until December, actually I ended my term as executive secretary some time in the beginning of the year, January 1947.

In December 1946 a new Democratic State chairman was elected and he abolished the position of executive secretary and took the job and worked on the job on a full-time basis himself.

Mr. TAVENNER. After that time did you hold an executive position with the Progressive Party?

Mr. O'CONNELL. Well, let me, in order to keep it in chronological order, I would like to say that after that election there was of course a considerable division in the Democratic Party over the results of the election which were quite disastrous for the Democratic Party in 1946, and there was a considerable cleavage among what was considered to be the conservative forces in the party and the liberal forces in the party and at the convention at Ellensburg in December of 1946 the conservative element or conservative forces in the Democratic Party were in control by a very slight margin.

The liberal forces in the Democratic Party then organized within the Democratic Party a group known as Roosevelt Democrats, and I was I think also called the executive secretary, or given the title, elected as executive

secretary of the Roosevelt Democrats and I served in that position until April of 1948 when I resigned from the Democratic Party and actually began to work for the organization of the Progressive Party in the State of Washington. We had set up what we called a provisional committee for a new party. I had supported Henry Wallace for Vice President in the 1944 Democratic convention. I was a considerable admirer of his, and I joined with the people who were forming the Progressive Party, and I think then—I would say in probably May or June of 1948—the Progressive Party of the State of Washington was organized at a State convention in Seattle, Wash., and I was elected executive secretary of the Progressive Party at that convention, and I served in that capacity until October 1949, when I left the State of Washington and went back to the State of Montana and began studying law and preparing for the taking of the bar examinations which I eventually took.

Mr. TAVENNER. After your return to the State of Montana in 1949 did you hold any other organizational positions?

Mr. O'CONNELL. No; I did not. On many occasions—in October of 1949 I had made up my mind that I had given the best years of my life to political activity. In July of 1949 Mrs. O'Connell and I had a young son after having been married about 13 years. Mrs. O'Connell had a very, very difficult time in giving birth to our son, and for 5 days her life was in danger. Her folks live at Great Falls, Mont. She is a native of Great Falls. She wanted to go back there to be with her folks. Up to that time I had always studied law with the idea of being an attorney and I wanted to be one and so we went back to the State of Montana and I have not been engaged in any partisan political organization or affairs of any kind since my return to the State of Montana.

Mr. TAVENNER. The committee has information that after that time you became chairman of the National Committee to Defeat the Mundt Bill.

Mr. O'CONNELL. No. In 1948, I would say probably in June of 1948, while I was executive secretary of the Progressive Party of the State of Washington, I came down to the city of Washington here to testify before the Senate Judiciary Committee, which was then considering the Mundt bill, which had already passed the House. We were to testify at a hearing before which

I think Senator Ferguson was presiding and Senator Langer was sitting with him and apparently the hearings had gone on for several days and Senator Ferguson adjourned the hearings or at least announced there would be no further hearings at that time before many of us there had yet been heard.

Senator Langer then suggested that we go to his office, I think at that time he was chairman of the Committee on Post Office and Post Roads in the Senate, and we retired to his committee room. At that time we discussed particularly with him the situation as far as the Mundt bill was concerned and at his suggestion this committee to oppose the Mundt Bill was set up and at that particular meeting I was elected chairman of the group. Senator Langer, of course, had known me while I was in Congress and suggested

Mr. TAVENNER. What was the approximate date when you were selected as chairman of the committee?

Mr. O'CONNELL. My best recollection, my best guess would be some time in June of '48.

Mr. TAVENNER. You continued to serve as chairman of the National Committee to Defeat the Mundt Bill for how long a period?

Mr. O'CONNELL. Well, in 1948, if I remember correctly, the bill was not voted out of the Senate Judiciary Committee before the adjournment of Congress at that particular time. The bills as I remember were proposed again at the beginning of the next session of Congress and we continued to oppose the legislation at that time and then finally I think—if I remember correctly, in about, I would say, about March of 1950—I came down here again to the city of Washington. If I remember correctly, the bill had again passed the House of Representatives at that time although I am not too sure. I think it had.

I stayed here from I would say March—I remember I defended somebody at home in court at Great Falls and I came down here I would say in the latter part of March 1950 and I stayed until about the 9th or 10th day of June 1950 when I returned to Montana to bone up for the bar examination which I was taking on the 23d of June 1950.

I passed the bar examination at that time and I came back here again. My offhand guess would be that I came back again some time maybe in the latter part of July or first part of August of 1950 and stayed here until Congress adjourned sine die, I think somewhere around September, probably September 13.

Mr. TAVENNER. During that period of time were you actively engaged in the work of the National Committee to Defeat the Mundt Bill?

Mr. O'CONNELL. Yes, sir.

Mr. VELDE. Do I understand, Mr. O'Connell, that you continued in the 82d Congress the same type of work you were doing as far as the Mundt bill was concerned in the 81st Congress?

Mr. O'CONNELL. If those are the correct—

Mr. VELDE. You were chairman of the committee.

Mr. O'CONNELL. I was chairman of the committee from the time I was selected in June of 1948 until the committee dissolved after the passage of the legislation over the President's veto in September of 1950.

Mr. VELDE. Of course, that would be the committee, I suppose, which was set up to defeat the McCarran-Wood bill.

Mr. O'CONNELL. The Mundt-Nixon bill was combined, I think it was combined by a proposal made by several of the Senators over there and also the McCarran Act, I can't remember all the things that went on in connection with it now, but I think it became popularly called the McCarran Act, if I remember correctly.

Mr. TAVENNER. The McCarran-Wood bill.

Mr. O'CONNELL. Yes. I think the language became the Internal Security Act.

Mr. VELDE. Who composed the committee?

Mr. O'CONNELL. Actually the executive officers were myself as chairman, Robert Silverstein of the National Lawyers Guild as secretary, and Bruce Waybur, who was an official or an organizational employee of the United Electrical Workers¹ who was treasurer of the organization, and then the group was sponsored by various outstanding prominent individuals throughout the country. I can't remember all of them now and all who from time to time——

Mr. VELDE. If I remember correctly, after the bill was passed and became law there was a committee to repeal the McCarran-Wood Act, was there not?

Mr. O'CONNELL. I think there was, but I had nothing to do with it.

Mr. TAVENNER. You had no part in it?

Mr. O'CONNELL. I had no part in it. I went back. I think Professor Chafee [Zechariah Chafee, Jr.] at Harvard and some others organized a committee to repeal the act after that, but I went back to Montana and I had nothing to do with it.

Mr. TAVENNER. Will you tell the committee, please, whether or not you became regional director for the International Workers Order during the period of time——

Mr. O'CONNELL. No. I think that language that you use comes from an old report of the Dies committee. I was never regional director for the IWO. The only connection that I had with the IWO is that in the city of Butte the IWO had an affiliated local or lodge there composed of Serbs and Croats and there was considerable division particularly during the war period, World War II period, because if I remember correctly there was a religious difference. I think the Serbs in the organization were Protestants and the Croats were Catholics. There was a division then over the politics of the situation. I think there were some of them who were supporting Milhailovich at that time and some who were supporting Pavlich, if I remember the names correctly.

I was asked by—I am pretty sure the man's name was Peter Shipka, who was the officer of the International Workers Order, who asked me if I would advise with the lodge and if I would help them try to straighten out the difficulties so that the lodge could go ahead.

After that I was sent down to the State of Colorado or asked by them to go down to the State of Colorado where I think about 11 members of the IWO had applied for their citizenship papers in a little town I think called Steamboat Springs, Colo., and the Federal judge who was hearing the citizenship matter at that time was in my opinion confusing the IWO with the IWW, and I was asked and again I wouldn't be sure who the national officer of the IWO was, but my best recollection at the time—and I think that was in 1940 or 1941 or 1942, it was a long time ago—asked me to go down there and I talked with the judge and with the examiner and also brought a Mr. Cunningham who I think was either the State auditor or the secretary of state, but was ex officio commissioner of insurance of the State of Colorado, to show the judge the IWO was actually a fraternal benefit society and had no connection with the IWW.

Then later, I can't remember what year, the IWO was promoting what they called a Plan for Plenty, which was in essence an improvement on the present social security, or I mean on the social security system as it existed at that time.

I made speeches at various IWO lodges in different parts of the country speaking on the Plan for Plenty, explaining the legislative detail in connection with it.

Mr. TAVENNER. Who made arrangements with you to conduct this nationwide speaking tour that you mentioned?

Mr. O'CONNELL. Well, it is so long ago, it is hard for me—there are just two names that stick out in my memory as far as the IWO is concerned and the only two I can remember are Peter Shipka, the treasurer, and if I remember correctly they had an attorney named Joseph Brodsky. Those are the two names that stick out in my mind.

Mr. TAVENNER. Was Joseph Brodsky from New York?

Mr. O'CONNELL. Yes; he was from New York.

Mr. TAVENNER. What compensation did you receive while engaged in that work for the IWO?

Mr. O'CONNELL. Well, at the time it was very minimal, I can remember that. I would say that as far as—it would amount, in my opinion, for the small period of time I was involved, which I would say was a period of a few months, I would say on the average of about \$200 a month. It was not very long.

Mr. TAVENNER. And your expenses?

Mr. O'CONNELL. And my expenses; yes. As I remember, they were quite restrictive on the expenses; if I remember correctly.

Mr. TAVENNER. Do I understand that your connection with the IWO was one of employment rather than one of an official character? Is that correct?

Mr. O'CONNELL. That is correct. I think that would be the best way to describe it.

Mr. TAVENNER. For how long a period were you employed by the IWO?

Mr. O'CONNELL. My best recollection is that that employment was over a period of maybe 5 or 6 months. It might have been 7 or 8. It was not very long, and I don't think I could put it in the precise year or years that were involved.

Mr. TAVENNER. Was it resumed at a later date?

Mr. O'CONNELL. No; it was not resumed at any later date.

Mr. TAVENNER. Did you receive any compensation or money from the IWO for anything other than the services you have mentioned?

Mr. O'CONNELL. No; I certainly don't recollect any.

Mr. TAVENNER. Will you tell the committee, please, whether you had any employment since 1930 other than the positions you have already described and other than those matters related to the practice of law?

Mr. O'CONNELL. Well, going back in 1930, I was still a student in St. Charles College.

Mr. TAVENNER. We can pass that up.

Mr. O'CONNELL. At Helena. Of course, during the summer months I was employed in the Anaconda Copper Mining Co.'s mines at Butte while I went to school. I think the summer of 1932 I was employed by the Industrial Accident Board of the State of Montana settling compensation cases during that period. I think I told about my employment with the Democratic National Committee while I was back here.

I also had some employment as legal adviser to the State income-tax division of the State board of equalization of the State of Montana while I was running for State railroad and public service commissioner in Montana and before my election to that post. Then I think I have detailed all of the rest of it.

Mr. TAVENNER. Mr. O'Connell, you spoke of being instrumental in organizing an old-age pension initiative, I believe you call it, in the State of Montana in 1939.

Mr. O'CONNELL. As I remember, we were trying to put it on the 1940 ballot in Montana.

Mr. TAVENNER. You are familiar, I suppose, with the Washington State Pension Union?

Mr. O'CONNELL. Yes; I am. I would like to say that at the time I was organizing the clubs in Montana I knew nothing whatever of the existence of the Washington Pension Union of the State of Washington, or any of its officers, or anybody connected with it. My first connection with the organization and the group was when I went to the State of Washington in

1944. Those contacts were made in my position as executive secretary of the Democratic Party.

Mr. TAVENNER. You were also familiar, of course, with the Washington Commonwealth Federation, were you not?

Mr. O'CONNELL. I really couldn't say that I was, Mr. Tavenner. I think the Washington Commonwealth Federation was still in existence when I went to the State of Washington in 1944, but if I remember correctly, shortly after the elections in November of 1944 the Washington Commonwealth Federation was dissolved but I had no connection with the Washington Commonwealth Federation at all.

Mr. TAVENNER. Did you become acquainted with Barbara Hartle after you became a resident of the State of Washington?

Mr. O'CONNELL. Well, I naturally read some of the news stories in both the Seattle Post Intelligencier and the Seattle Times. And I heard about her. Now, I don't recall her too well but I am pretty sure that in the early days of the WPA in the State of Montana she, I think she was working in the Great Falls area; if I remember her correctly, she is rather short and squat, rather pasty complexion? I don't remember her too well. I can remember she—I think I saw her once or twice at that time while I was on the Public Service Commission and later when I was in Congress, a group of people had gone down and raided a commodity warehouse in Great Falls and had taken food and various things out of the commodity warehouse. If I remember her correctly, at that time she was on a committee that came to see me to use my influence to see that they weren't prosecuted for what they had done.

Then I later saw her in the State of Washington, my feeling would be maybe 3 or 4 times. I am pretty sure; I don't remember her too well.

Mr. VELDE. Could you place those times you did see her more definitely as to the year?

Mr. O'CONNELL. I really couldn't. I was in the State of Washington from August of 1944 until October of 1949, and it is over that period of time that I actually saw her.

Mr. TAVENNER. During the 1954 hearings of this committee in Seattle, Barbara Hartle was asked to tell the committee from her own personal knowledge what connection the Washington Pension Union had, if any, with Communist activity in that area. I should state to you that Barbara Hartle was one of the Smith Act defendants in the State of Washington and was convicted. She testified before this committee after her conviction and sentence. She testified very fully regarding her knowledge of Communist Party activities in the Northwest. She described the circumstances under which she became a member of the Communist Party and how she rose to the No. 2 position in the Communist Party in the State of Washington.

This is the answer that she gave to the question of the connection between the Washington Pension Union and Communist activities:

There was quite a lot of connection with Communist activity in this area between the Communist Party and the Washington Pension Union. The Northwest district of the Communist Party has paid a great deal of attention to the Washington Pension Union for a long period of years. What to do next in the pension union has been the subject of many discussions in district board and district committee meetings in which I have participated between the period of 1932 to 1940 and in large district committee meetings before that in the latter 1930's.

Important offices and many local offices of the Washington Pension Union have been held by Communist Party members, and the activities and policies of the pension union have always been supported by the Communist Party. Many issues have been brought into the pension union by the Communist Party and gained wide support by so doing. The Communist Party in this district viewed the Washington Pension Union as really its most important single front organization. It is called mass organization by the Communist Party. They don't use the term "front organization." They call it a mass organization. It was the largest and most influential and second only to the Washington Commonwealth Federation, which was a federation of organizations, and the Washington Pension Union was an affiliate of the Washington Commonwealth Federation, in which the Communist Party likewise had a dominating influence.

I think I should read a little further. Mrs. Hartle also testified that——

Mr. O'CONNELL. May I say I had no connection; I was not an officer of the Washington Pension Union.

Mr. TAVENNER. I was going to discuss that question, whether or not you were affiliated in any way with the Washington Pension Union.

Mr. O'CONNELL. I think as executive secretary of the Democratic Party and as executive secretary of the Progressive Party I made speeches to State conventions of the Washington Pension Union, as did practically all the political leaders of the State of Washington, regardless of the party.

I think during a period after my employment as executive secretary of the Democratic Party at the request of a local in Everett I was sent there to make a speech and I think I was—I am pretty sure I was paid expenses and I may have been paid a fee for the speech I made to the group at Everett at that time.

Mr. TAVENNER. Was that a convention of the Washington Pension Union?

Mr. O'CONNELL. No, as I remember it, the Everett meeting was some kind of a large local meeting that they had, some kind of an event or celebration or something of that kind that I spoke at. It is hard to recollect. It is a long time ago and I have made a lot of speeches all over the State of Washington in those years and to a lot of groups.

Mr. TAVENNER. Did you work closely with the leadership of the union in the political positions that you held, first, as secretary of the State Democratic Party and later as secretary of the Progressive Party?

Mr. O'CONNELL. I don't know if you would say I worked closely. We were naturally anxious in both the Democratic Party and in the Progressive Party to get the votes of the senior citizens of the State of Washington, and the only pension organization, the only senior citizens organization at that particular time anyway I can remember was the Washington Pension Union.

I think later there were some dissensions and shoot-offs and smaller groups organized but I mean I had no official connection with the pension union. Pennock, who was the president of the Pension Union, was also Democratic representative from the 35th Legislative District. He was the chairman of what we called the delegates from that district to the King County Democratic Central Committee. He was, I think, a chairman or member of the rules committee on the Democratic side in the State legislature.

Mr. TAVENNER. That is William Pennock?

Mr. O'CONNELL. That is William Pennock. In his activity as a Democrat or member of the Democratic organization as executive secretary of the Democratic Party, I naturally saw Pennock and naturally he was involved.

Mr. TAVENNER. Was he one of the Smith Act defendants in the State of Washington?

Mr. O'CONNELL. As I am informed, he was.

Mr. TAVENNER. And was convicted.

Mr. O'CONNELL. I don't think so. He died.

Mr. TAVENNER. I believe that is true.

Mr. O'CONNELL. As I understand it, he either committed suicide or was found dead.

Mr. TAVENNER. During the period of the trial.

Mr. O'CONNELL. While the trial was in progress, yes.

Mr. TAVENNER. Did you know William Pennock to be a member of the Communist Party?

Mr. O'CONNELL. No, I did not. As I understand, he never divulged his membership in the Communist Party until a few days before the Smith Act trial and I think he made a public statement at that time.

I, by that time, was back in the State of Montana some 4 or 5 years.

Mr. TAVENNER. I would like to continue to present the testimony of Mrs. Hartle regarding the Washington Pension Union to make plain a few facts. Mrs. Hartle further testified:

My knowledge of the membership of the pension union is that it was reported by William J. Pennock and others in meetings that it had about 10,000 members.

She further testified:

The membership of the Communist Party in the organization was small, smaller than in most so-called mass organization work. This was considered by the district leadership of the Communist Party and by the national leadership as well as being evidence of very successful mass work, and it was often used as an example of successful Communist mass work where it didn't take so many Communists in order to influence a large number of people.

Were you aware of the influence that was brought to bear by the Communist Party upon this organization, the Washington Pension Union?

Mr. O'CONNELL. No, sir; I certainly wasn't aware of it.

Mr. TAVENNER. Do you know of any issues that were brought to the Washington Pension Union by the Communist Party as testified to by Mrs. Hartle?

Mr. O'CONNELL. No, sir; I don't.

Mr. TAVENNER. You have told us that you spoke on numerous occasions at meetings of the pension union.

Mr. O'CONNELL. I wouldn't want to make it numerous. I spoke several times. I spoke at their State conventions, I know that, during the period while I was executive secretary of the Democratic Party and while I was executive secretary of the Progressive Party.

Mr. TAVENNER. Are you familiar with the testimony of Ernest Paul Stith before the Canwell committee?

Mr. O'CONNELL. If I remember, he was an investigator for the Canwell committee. I don't know what his testimony was.

Mr. TAVENNER. Mr. Stith analyzed a report contained in the January 30, 1947, issue of the New World relating to a program that was conducted at the Tri-County Snohomish, Whatcom, and Skagit Legislative Conference. The analysis goes on to show that 21 of the 99 delegates at that convention represented the pension union. The speakers included William Pennock, president of the Washington Old Age Pension Union, and Jerry O'Connell, former Democratic Party State executive secretary.

Mr. O'CONNELL. I think that is the meeting I was talking about.

Mr. TAVENNER. That is the one you were referring to. Terry Pettus was editor of the New World. Was that a Communist paper?

Mr. O'CONNELL. I don't know whether the New World was a Communist paper. There apparently was some distinction; they later became the Northwest edition of the People's World, and, of course, the People's World, as I understand it, is a Communist newspaper.

Mr. TAVENNER. And Frank Batterson, chairman of the Snohomish County Communist Party was a speaker. You say that is the occasion to which you refer?

Mr. O'CONNELL. I am pretty sure that is the occasion—was that held at Everett; does it say?

Mr. TAVENNER. It doesn't state where it was held.

Mr. O'CONNELL. I don't even know Batterson. He certainly didn't speak while I was there and of course I had no knowledge of the fact that he was a speaker and no knowledge of the fact that he was chairman of—what group of the Communist Party?

Mr. TAVENNER. Do you recall William Pennock speaking?

Mr. O'CONNELL. I don't recall him speaking, no, but I am sure that if it were—you see, I may have spoken. Does it say how many days it lasted?

Mr. TAVENNER. No.

Mr. O'CONNELL. I don't remember Pennock speaking while I was there—at least that. But whether he spoke at the meeting or not I don't know.

Mr. TAVENNER. Did Terry Pettus speak at that meeting?

Mr. O'CONNELL. Same way with Terry Pettus. I wouldn't know.

Mr. TAVENNER. The witness stated that the following is the portion of the program adopted at this meeting regarding foreign policy:

Break diplomatic and economic relations with Franco Spain, withdraw United States troops from China, and stop aid to Chiang Kai-shek, dictatorship, United States participation in worldwide disarmament, stop manufacture of atomic bombs and outlaw their use, abolish compulsory military training, remove from private industry development of atomic power to insure its peaceful use for benefit of all, restoration and extension of UNRRA, promote Big Three unity, carry through the denazification and demilitarization programs in Germany and Japan.

Those were the policies being advocated by the Communist Party at that time; were they not?

Mr. O'CONNELL. I wouldn't know.

Mr. TAVENNER. You would not know?

Mr. O'CONNELL. No. I presume—if you say so, they are. I don't know what their particular program was at that time.

Mr. TAVENNER. Did you become acquainted with Mr. Eugene V. Dennett, who at one time was vice president of the Washington Commonwealth

Federation—in fact held that position while you were there?

Mr. O'CONNELL. He what?

Mr. TAVENNER. He held the position of vice president when you moved to Seattle?

Mr. O'CONNELL. I can't remember him at all. The only time I remember Dennett was coming to my office as executive secretary of the Democratic Party in the Vance Building, when he was in a military uniform and telling me that he had been vice president of the Washington Commonwealth Federation, but he would have been vice president a very short period of the Commonwealth Federation because I was there only from August of 1944 and if I remember correctly, the Commonwealth Federation was dissolved shortly after the November elections in 1944 and, of course, the only thing I can say about Dennett is I can remember him coming to the office of the executive secretary of the Democratic Party.

Mr. TAVENNER. Were you aware that he was a member of the Communist Party?

Mr. O'CONNELL. No; I certainly was not.

Mr. TAVENNER. Mr. Dennett was called as a witness by this committee at its June 1954 hearings. Mr. Dennett, when he appeared, relied upon the fifth amendment and refused to answer questions but later on during the hearing he came back and asked the committee to permit him to testify. It was so near the end of the hearings that it was impossible to hear him then. So the committee took his testimony in March of 1955 and Mr. Dennett described his activity in the Communist Party as a Communist Party functionary over a long period of time and described how he got out of the Communist Party, in fact described his expulsion and also the expulsion of his wife. He gave the committee much valuable information.

In the course of his testimony he told the committee how a man by the name of Lowell Wakefield was sent by the Communist Party from New York to Seattle to engage in organizational work for the Communist Party

and that one of his chief assignments was to assist in the organization of the Washington Pension Union.

Were you acquainted with Mr. Lowell Wakefield?

Mr. O'CONNELL. I don't remember anybody by the name of Lowell Wakefield at all. In my time, I mean my only recollection—was Wakefield later some kind of a representative for a fish company or operated a fish company of his own down on the waterfront?

Mr. TAVENNER. I understood he did, but not down on the waterfront in Washington. I think he went to Alaska.

Mr. O'CONNELL. Well, anyway, I think I heard about him but I don't think I ever met Wakefield personally, or personally knew him.

Mr. TAVENNER. Have you any knowledge of his activities?

Mr. O'CONNELL. My only recollection, if it is the same Wakefield, is that he was a contributor to the Democratic Party, if it is the same person. What I want to do, I don't want to get myself in trouble, I certainly didn't know Wakefield as a Communist or knew that he was a Communist or anything of the kind and I don't want—my recollection is if it is the same Wakefield he had some kind of a fish company or was a representative for a fish company and did make contributions to the Democratic Party while I was executive secretary.

Mr. TAVENNER. Were you acquainted with Tom Rabbitt?

Mr. O'CONNELL. Yes; I was acquainted with Tom Rabbitt.

Mr. TAVENNER. He was State Senator and also an office holder in the Washington Pension Union; is that right?

Mr. O'CONNELL. He was Washington State senator from the 35th legislative district. He was, I think, a delegate to the King County Democratic Central Committee from that district.

Mr. TAVENNER. Is it a fact that the State legislature refused to seat him?

Mr. O'CONNELL. I don't think so. I think the State legislature, before I came to the State of Washington, refused to seat a party by the name of Lenus Westman, elected as a State senator from up in Snohomish County, but at least in my time nobody challenged Rabbitt's senator-ship.

Mr. TAVENNER. I am probably in error.

Mr. VELDE. Mr. Counsel, isn't it true both Mrs. Hartle and Eugene Dennett testified that both Wakefield and Rabbitt were members of the Communist Party?

Mr. TAVENNER. Yes, sir. I think the record should show that William J. Pennock was identified by Barbara Hartle not only as president of the Washington Pension Union but as a member of the district committee of the Communist Party for the State of Washington and that Tom Rabbitt was likewise an officer of the Washington Pension Union and a member of the district committee of the Communist Party.

Mr. VELDE. Isn't it true, also, that Mr. Rabbitt appeared in executive session in June 1954 and refused to answer questions relating to his membership in the Communist Party and other activities along that line, relying on the fifth amendment?

Mr. TAVENNER. That is correct, sir.

Mr. O'Connell, did you confer with William Pennock and Tom Rabbitt or any of the other leaders of the Washington Pension Union regarding its organization, its policies, or any phases of its work?

Mr. O'CONNELL. In view of the prefatory statements made by you and by Congressman Velde, and particularly with respect to the fact that you state that Rabbitt and Pennock were members of the district board of the Communist Party——

Mr. VELDE. Just a minute. I didn't state that. I said two witnesses had testified that he was a member of the Communist Party.

Mr. O'CONNELL. I see. I want to protect myself. I don't know whether I can safely answer that question now.

Mr. VELDE. What was the question?

Mr. TAVENNER. Read the question, please.

(The reporter read from his notes as requested.)

Mr. O'CONNELL. That is a real difficult one for me to answer. As executive secretary of the Democratic Party, I probably, of course, suggested things they might do to help us in the campaign and so on. I don't know, but I certainly—what I want to do—what I did was not because they were members of the district board of the Communist Party or because they were Communists, or anything of that kind. If I suggested something they ought to do about the Washington Pension Union either to Pennock or Rabbitt, it was in connection with either Democratic Party activity or Progressive Party activity as far as campaigns were concerned.

It is a very broad general question. You asked me about it, any phases of its work. For instance, I mean we were certainly anxious in the Democratic Party and Progressive Party, too, to get the votes of the senior citizens of the State and——

Mr. TAVENNER. What do you mean by the “senior citizens”?

Mr. O'CONNELL. The older people of the State that were in the pension organization, and so on. And outside the organization as well that they had influence on.

Mr. TAVENNER. Were your discussions with the leadership of the Washington Pension Union chiefly with Pennock and Rabbitt?

Mr. O'CONNELL. Well, during my time out there I think the Washington Pension Union, if I remember correctly, had a whole host of vice presidents, I don't know how many, I think they elected—I think Rabbitt was one of those vice presidents. But the executive officer of the Washington Pension Union of course was Pennock and in my work as executive secretary of the

Democratic Party and also the Progressive Party I certainly conferred with Pennock, I certainly asked him to see that things were done by the campaign and see that work was done in connection with it.

But in my time out there I think, I don't think Rabbitt was any kind of—was he a full-time paid employee of the Pension Union?

Mr. TAVENNER. I am not sure what his official connection was with it.

Mr. O'CONNELL. My recollection is that he was one of the many vice presidents, I think if I recall there were about 16 vice presidents and I think he was one of them. As far as Rabbitt and Pennock were concerned, all of the time they were both leaders in the Democratic Party. Rabbitt was a Democrat State senator from a legislative district, Pennock was a representative from the same legislative district and likewise within the Democratic organization particularly in King County and because King County was the largest county in the State, the impact it would have on the State organization as well, I was thrown into considerable contact with them in my work as executive secretary of the Democratic Party with both Pennock and Rabbitt.

Mr. VELDE. Mr. O'Connell, both Pennock and Rabbitt were generally known to be members of the Communist Party, as members of the district board, were they not?

Mr. O'CONNELL. I don't know. I couldn't say. I don't think Rabbitt acknowledged he was a member of the Communist Party and Pennock only announced it shortly before he died. Shortly before the beginning of the Smith Act trial in Seattle, he announced he was.

Mr. TAVENNER. You were quite aware, were you not, of the effort being made by the Communist Party to take over the Washington Pension Union?

Mr. O'CONNELL. I don't know whether I—I was not in Washington Pension Union. I was not engaged in its work or activity.

Mr. TAVENNER. Any person who has held the two positions that you have as secretary of two very active organizations would certainly have had his

finger on the pulse of general activities in the community. You certainly knew, did you not, that the Communist Party was operating the Washington Pension Union?

Mr. O'CONNELL. No; I certainly did not know that. I didn't know that.

Mr. TAVENNER. You believed it, didn't you?

Mr. O'CONNELL. No; I didn't believe it. There are a lot of wonderful old people in that organization and Dr. Fisher——

Mr. TAVENNER. I am talking about the leadership.

Mr. O'CONNELL. Who is the president of it——

Mr. TAVENNER. I have told you Mrs. Hartle said there were comparatively few.

Mr. O'CONNELL. Mrs. Hartle, on her own acknowledgment was a functionary of the Communist Party, was she not?

Mr. TAVENNER. Yes.

Mr. O'CONNELL. She certainly would know whether they were working or not, but I was not a functionary of the Communist Party and I wouldn't know what the Communist Party was doing as far as the Pension Union was concerned.

Mr. VELDE. You had no inkling whatsoever that Pennock, Rabbitt, and Mrs. Hartle were members of the Communist Party?

Mr. O'CONNELL. I had no inkling?

Mr. VELDE. Suspicion.

Mr. O'CONNELL. Yes.

Mr. VELDE. You did have a suspicion they were?

Mr. O'CONNELL. Yes.

Mr. VELDE. Upon what did you base that suspicion?

Mr. O'CONNELL. I couldn't prove it. Of course it was not my particular job to prove it.

Mr. VELDE. Certainly not. No question about that.

Mr. TAVENNER. In your judgment what was the purpose of the Communist Party in attempting to capture the leadership of the Washington Pension Union?

Mr. O'CONNELL. In my judgment what would it have been?

Mr. TAVENNER. Yes.

Mr. O'CONNELL. Well, I presume, as Mrs. Hartle states there, they were engaged in developing what she called mass organizations and so on, and this was a large organization, there isn't any doubt about that, there was a very, very large group. I think the membership of 10,000 is even underestimated. My feeling is its membership ran closer to 16,000 just from my contact with it. I presume they would like to control it because of its tremendous effect and tremendous influence without any doubt. I know in the Democratic Party I wanted to make sure that the pension union supported the candidates of the Democratic Party. We worked hard to get them to indorse and support Democratic Party candidates and to work for them every way we knew how.

Mr. TAVENNER. Did the leadership in the Washington Pension Union endeavor to influence the selection of candidates for office in either the Progressive Party or the Democratic Party while you were secretary?

Mr. O'CONNELL. Did the Washington Pension Union try——

Mr. TAVENNER. Yes; through its leadership, try to influence the selection of individuals for office.

Mr. O'CONNELL. If you mean they wanted certain people elected——

Mr. TAVENNER. I am not talking about supporting certain people but did they endeavor to get certain individuals selected for party nomination.

Mr. O'CONNELL. By that do you mean did they go out and select certain people?

Mr. TAVENNER. Did the leadership in the Washington Pension Union try to influence your party organization in behalf of certain individuals in whom they were interested?

Mr. O'CONNELL. As far as the party organization was concerned, we had the Democratic primary where the people voted in the Democratic primary and selected the nominees and then after the Democratic nominees were selected and so on, I would say the Washington Pension Union with rare exceptions—and I think those exceptions were some 9 or 10 State senators who were called quisling senators, who didn't support the Democratic organization in the State senate at the time—I think the Washington Pension Union generally supported the Democratic Party.

Mr. TAVENNER. Mr. Eugene Dennett testified that the purpose of the Communist Party in exerting its infiltration efforts in both the Washington Commonwealth Federation and the Washington Pension Union was to strengthen its own political influence. I shall read a part of his testimony. In referring to the Washington Commonwealth Federation he said:

It was our estimate that it was capable—

by “our” he is referring to the Communist Party—

that it was capable of influencing and obtaining the vote of one-third of the members who voted in the Democratic Party slate or side of the ticket and because of that fact and because we were in a higher state of mobilization than the rest of the Democratic Party when primaries came along we could exercise a more direct influence in the primaries than anybody else because our members in the Washington Commonwealth Federation had a great zeal and a greater devotion to carrying out their objectives than the other Democrats who frequently relied upon making their decisions in the general election.

When asked the question why was it that the Communist Party was so interested in obtaining control of the Washington Commonwealth Federation, he replied:

Because we wanted to ultimately obtain political power for the Communist Party in the United States of America.

Did you observe efforts made by William Pennock and Tom Rabbitt, to get control of either the Democratic machinery, the machinery of the Democratic Party, or the machinery of the Progressive Party through the use of the Washington Pension Union?

Mr. O'CONNELL. Well, I would say in a certain few districts in King County, probably one district in Snohomish County, legislative district in Grays Harbor County, that the nominees of the Democratic Party were certainly not people that the pension union had selected or had picked out but I think they were people the pension union supported because of their votes in the legislature and so on. The Commonwealth Federation was actually gone in my time. I don't know what it did. I don't know what its power was and what its influence was but for instance in the 35th District if Pennock was the Representative and Rabbitt was the Senator and they were both in the pension union they certainly had some influence there.

I am trying to think of the district in Snohomish, there are two legislative districts there, I think it was northern Snohomish County where I think there was a pension union member who was actually a member and elected to the legislative assembly and I think that was true in the district down in Grays Harbor County, but you take all of the eastern end of Washington, all the eastern side of Washington they certainly had no influence to speak of over there. They might have had a tiny bit of influence in one district in Spokane County, but in the great part, I would say in the great part of the State outside of those few areas I picked out and where the selections were actually people of their own membership, I don't, I can't see any actual picking or selecting of people that were put in. I can't recall all of the people who were, but for instance the major State offices like Governor and United States Senator, Congressman, and so on, I couldn't see any influence except in the First Congressional District where of course they could have been instrumental in the nomination and election of Hugh DeLacy in 1944

election, I think it was, but as to the other districts, John Coffee was in Congress a long time I think, even before the pension union was established, Charlie Levy was in the House.

Mr. TAVENNER. Was Hugh DeLacy known to you to be a member of the Communist Party?

Mr. O'CONNELL. NO.

Mr. TAVENNER. He has been identified by both Barbara Hartle and Eugene Dennett. He was produced as a witness before the committee in Ohio in September of last year and he refused to answer any material questions relating to Communist Party affiliations, relying upon the fifth amendment as the reason for so doing.

Mr. O'CONNELL. Senator Neuberger wrote a chapter in a book published by Bob Allen called Our Fair City, and wrote the article in connection with the city of Seattle, and he gives me credit in that book, if I remember correctly, for having forced Hugh DeLacy on the Democratic Party in the State of Washington, but Hugh DeLacy had actually been nominated for Congress on the Democratic Party ticket before I ever went to the State of Washington.

He was actually the Democratic nominee.

Let me say, Mr. Neuberger also gives me credit for—Senator Neuberger—for taking over. He said I took over the Democratic organization and so on. I don't think I did. I had served in the House with Senator Wallgren who later became Governor and Senator Magnuson, who was in the House, and I knew them well and Senator Mitchell, who was secretary to Senator Wallgren at that time, and who later became Senator and Congressman and all of that, and I think they were appreciative of the kind of job I had done out there, and so on.

Mr. VELDE. Did you have any suspicion or inkling that Mr. Hugh DeLacy was a member of the Communist Party?

Mr. O'CONNELL. I couldn't say, I wouldn't want to say.

Mr. VELDE. Why would you not want to say?

Mr. O'CONNELL. You see, I really didn't get to know him. He was elected to Congress shortly after I came out there and then he came down here to Washington and then after his defeat for Congress he was only back in the State of Washington a short time and went to work, if I recall correctly, in the national office of the Progressive Party and was working outside the State of Washington so that my contact with DeLacy was not very great. I didn't get to know him like the people that were out in the State day in and day out and were in the Democratic Party meetings.

Mr. TAVENNER. Mr. O'Connell, we have the situation where the Communist Party went deliberately about seizing the leadership and capturing the leadership in a very powerful political organization in the State of Washington, namely, the Washington Pension Union, and ahead of it the Washington Commonwealth Federation. It succeeded in capturing the leadership of it. It did it for the purpose of advancing the interests of the Communist Party.

Will you tell the committee whether or not the leadership of this group, the Washington Pension Union, was successful in influencing either of the parties of which you were secretary in any of its policy actions?

Mr. O'CONNELL. I think for instance, in the Democratic Party particularly by its organization and by its work and demands for improved pension legislation, they had tremendous influence on the Democratic Party. As a matter of fact the—I would say even on the Republican Party. In the 1945 session of the State legislature the actual legislation proposed by the pension union placing a \$50 floor under old-age-pension grants and setting up a system of budget and what-not, the legislation which they actually introduced passed the State senate by, I think, a vote of 45 or 46 to nothing. Both Democrats and Republicans voted for it.

In the House I think it passed the same way probably 102 to 1 or 105 to 3 or something like that, it was almost unanimous. In that particular effect certainly they not only had influence with the Democratic Party but certainly in putting legislation on the books——

Mr. TAVENNER. What influence did it have on the Progressive Party?

Mr. O'CONNELL. Of course we had no power. We had no officials of any kind.

Mr. TAVENNER. Actually, wasn't the leadership in the Washington Pension Union and the leadership in the Progressive Party practically the same?

Mr. O'CONNELL. The leadership?

Mr. TAVENNER. Yes, wasn't there an overlapping leadership which made the two practically the same?

Mr. O'CONNELL. No, I wouldn't say so. Actually, it is hard to put the picture in the pattern of that time, but the 1946 elections had been as we all recall quite disastrous to the Democrats, there was considerable dissension among some Democrats with President Truman, and there was a move from Democrats generally—I would say in the Progressive Party, as it existed particularly in 1948, the Progressive Party was not, did not have an officialdom or even a membership that you could say, "Well, this is identical with the Washington Pension Union."

For instance, I never held any office in the Washington Pension Union of any kind—I was executive secretary—Russell Fluent, who had just finished a term as Democratic treasurer was the chairman of the Progressive Party—L. C. Hunterer, who was Democratic sheriff in Olympia in Thurston County, was a national committeeman—and the Democratic national committeewoman from eastern Washington, who later became the national committeewoman of the Progressive Party from the State of Washington. Leadership in many counties was a leadership that moved from the county chairman and others and moved over from the Democratic Party into the Progressive Party.

The leadership of the pension union, Pennock and Fisher and Nora McCoy, and others I recall there, if you consider Rabbitt——

Mr. TAVENNER. What was Fisher's first name?

Mr. O'CONNELL. Dr. C. H. Fisher. He had been president of Northern Washington Normal College, I think, at Bellingham.

Mr. TAVENNER. Mr. O'Connell, I hand you a photostatic copy of a document and I will ask you to examine it, please, and state whether you know what it is.

Mr. O'CONNELL. Yes.

Mr. TAVENNER. What is it?

Mr. O'CONNELL. As I understand, it purports to be a sort of a schedule or catalog of the Pacific Northwest Labor School for what they call its fall term of October 6 to December 12.

Mr. TAVENNER. What year? 1947?

Mr. O'CONNELL. It apparently—I notice somebody made a notation up here, 1947, but it doesn't appear.

Mr. TAVENNER. I desire to offer the document in evidence, and ask that it be marked "O'Connell Exhibit No. 1" for identification purposes only, and made a part of the committee files.

Mr. DOYLE. It is so ordered.

Mr. TAVENNER. By reference to the exhibit it is noted that course No. 148, offered at this school, was entitled "Northwest Labor History" by John Daschbach, extension director, and William J. Pennock, president of the Washington Pension Union. Will you tell the committee, please, whether John Daschbach was known to you to be a member of the Communist Party?

Mr. O'CONNELL. He was not.

Mr. TAVENNER. He was not a member of the Communist Party?

Mr. O'CONNELL. He was not known to me to be a member of the Communist Party.

Mr. TAVENNER. Mr. Chairman, I think the record should show he has been identified by both Eugene Dennett and Barbara Hartle——

Mr. O'CONNELL. I think he was also a Smith Act defendant.

Mr. TAVENNER. As a member of the party and he was a Smith Act defendant. He was a teacher at this school. It is observed here on the second page that a course on trade-union organizational problems was to be taught by a person by the name of J-a-c-k-i-n-s. What was his first name, Harvey?

Mr. O'CONNELL. I don't recall Jackins too well. Was he a member of the union, the Boeing union?

Mr. TAVENNER. I am not certain which union.

Mr. O'CONNELL. I know there was a party by the name of Jackins and that he was a leader in some one of the unions out there and my best recollection is he was in the Boeing union.

Mr. TAVENNER. We have testimony before our committee that Harvey Jackins taught at this school and I think the record should also show Harvey Jackins was identified as a member of the Communist Party by Elizabeth Boggs Cohen and Leonard Basil Wildman. He was cited for contempt of the House of Representatives for refusal to answer questions during the June 1954 hearings in Seattle and has been convicted by a Federal court.

Mr. O'CONNELL. In that connection I want to—I notice in that schedule that my name is listed as teaching a course in political——

Mr. TAVENNER. Yes. Labor's political role, 1948.

Mr. O'CONNELL. I never taught such a class or roll or schedule. Never appeared or anything else.

Mr. TAVENNER. Well, you were enrolled as a teacher, were you not, in the labor school?

Mr. O'CONNELL. I was not. I never taught a class in the labor school, never appeared in the labor school.

Mr. TAVENNER. What is your explanation of the advertising of the curriculum with you as a teacher?

Mr. O'CONNELL. My explanation is really easy. Mr. Daschbach got that schedule out and later called me and asked me if I would do it and I refused and told him I didn't want to do it.

Mr. TAVENNER. He did call you and you refused?

Mr. O'CONNELL. Yes.

Mr. TAVENNER. Why did you refuse?

Mr. O'CONNELL. Because I didn't want to do it.

Mr. TAVENNER. What was your reason for not wanting to do it?

Mr. O'CONNELL. Let me see what it was. If I remember correctly, my objection was to "tackle both ideological and organizational problems which labor must solve to gain its ends in 1948."

And my particular objection, of course, was that I had never been involved, never was a member of a labor union or trade-union, and I didn't, I couldn't speak as a laboring man or as a member of organized labor. There was no particular way that I could particularly expound on what labor's role was because I wasn't qualified to do it. I had either been in political office or had been engaged in political organization.

Mr. VELDE. Did you know at that time that the Pacific Northwest Labor School was a Communist organization?

Mr. O'CONNELL. No.

Mr. VELDE. What was the date of that?

Mr. TAVENNER. 1947.

Mr. O'CONNELL. I think it was either listed earlier or later but it had been attacked by some of the labor organizations long before it was listed, it had

been attacked by some, particularly I think the Central Labor Council in Seattle, and had been attacked by other groups out there.

Mr. VELDE. Your suspicion that it was a Communist organization was not the reason you didn't teach the course?

Mr. O'CONNELL. I wouldn't want to say now that is it. I know at the time when he called me about it I objected to the word ideological. I remember that expressly and I objected to the fact that I was qualified in no way to talk about labor's role in 1948. I was not a member of a trade union, I had not been involved in labor organization or anything of the kind. I know I didn't teach there and I didn't——

Mr. TAVENNER. What was the meaning of "coordinator" after your name?

Mr. O'CONNELL. I don't know. Maybe if you let me look at it—I don't know what it means.

Mr. TAVENNER. Did Mr. Daschbach discuss the title of coordinator with you?

Mr. O'CONNELL. No; he certainly did not.

Mr. TAVENNER. Mr. Chairman, I think the record should show at this time the Communist affiliation of other teachers in this school—Theodore Raymond Astley.

Mr. O'CONNELL. While you are doing that I wonder if I could say this. When I spoke up and said I knew Mr. Daschbach was a Smith Act defendant there was some remonstrance from over here where the press is located and I wanted to point out I left the State of Washington in 1949 and Mr. Daschbach did not become a Smith Act defendant, if I remember correctly, until 1954.

Mr. VELDE. I think that commotion was because they didn't know how to spell his name.

Mr. TAVENNER. The spelling is D-a-s-c-h-b-a-c-h.

Mr. O'CONNELL. I thought maybe I had left something unexplained.

Mr. TAVENNER. Ted Astley was slated to conduct course No. 245, psychology in the social science. He appeared as a witness before the committee and refused to testify, relying on the fifth amendment as to past and present Communist Party membership. He was identified as a member of the Communist Party by Barbara Hartle.

Ruth Bitterman was slated to conduct a course in children's workshop. She refused to testify as a witness before the committee but was identified by Barbara Hartle as a member of the Communist Party.

Jean Danielson was shown by testimony in our hearings in Seattle to be the same person as Margaret Jean Schuddakoph, and was advertised to conduct course No. 300, as special workshop in reading and writing. She refused to testify before the committee and was identified as a Communist Party member by Barbara Hartle.

Marjorie Daschbach was advertised to conduct course No. 304 and was identified by Barbara Hartle as a member of the Communist Party.

John Davis was advertised to conduct a course on workshop in the graphic arts and was identified before this committee as having been a member of the Communist Party by Barbara Hartle.

Fair Taylor, editor of Union Guardian, was advertised in the catalog to teach a course on labor writer's workshop. The testimony before the committee shows that she is the same person as Fair Taylor Egroth, and she was identified by Barbara Hartle as having been a member of the Communist Party.

Dr. Ralph Gundlach was advertised to conduct a course of the analysis of employer propaganda. Were you acquainted with Dr. Gundlach?

Mr. O'CONNELL. Yes, sir. He was a professor at the University of Washington.

Mr. TAVENNER. Dr. Gundlach was identified by Harold Sunoo, before this committee, as having been a member of the Communist Party. There was a

course conducted on labor news reporting by a person by the name of Pettus. Do you know his first name?

Mr. O'CONNELL. Do I know his first name?

Mr. TAVENNER. Yes.

Mr. O'CONNELL. As I understand, there were two Pettuses who were newspapermen, Ken Pettus and Terry Pettus, and I am pretty sure the party involved here is the editor of the New World, or does it say? Ken Pettus, I think, was editor of the Stars and Stripes in the Far Eastern area at one time, and then Terry was editor of the New World in Seattle, Terry Pettus.

Mr. TAVENNER. Do you know which one taught this course on labor news reporting?

Mr. O'CONNELL. No, I don't.

Mr. TAVENNER. You do not?

Mr. O'CONNELL. My guess would be that it would be Terry because he was in Seattle but I don't know whether he actually did.

Mr. TAVENNER. Terry Pettus was identified before this committee as having been a member of the Communist Party by Elizabeth Boggs Cohen and Barbara Hartle.

Did Mr. Daschbach when he called you indicate his reason for calling you about teaching this course in the Pacific Northwest Labor School?

Mr. O'CONNELL. He thought because of my political experience and because of the position, I think I had just shortly concluded my term as executive secretary of the Democratic Party, that was when, in December of 1947.

Mr. TAVENNER. Yes, sir.

Mr. O'CONNELL. That was in April of 1947, wasn't it?

Mr. TAVENNER. October to December 1947.

Mr. O'CONNELL. Anyway, he thought because of my political experience and because of my previous position that I could do a job and that I would be able to do it. When he told me what it was I told him it was in a field that I was not particularly qualified to do.

Mr. DOYLE. The committee will stand in recess until 2 o'clock.

(Whereupon, at 12:10 p. m., the committee was recessed, to reconvene at 2 p. m. the same day.)

AFTERNOON SESSION, JUNE 1, 1955

Mr. DOYLE. Let the record show that the legal quorum of the subcommittee is present, Mr. Velde, of Illinois, and Mr. Doyle, of California.

Mr. Tavenner, will you proceed, please.

TESTIMONY OF JEREMIAH JOSEPH O'CONNELL— Resumed

Mr. TAVENNER. Mr. O'Connell, were you acquainted with Robert Marshall during his lifetime?

Mr. O'CONNELL. Yes, I was.

Mr. TAVENNER. What were the circumstances under which you became acquainted with him?

Mr. O'CONNELL. Robert Marshall at the time of my original acquaintance with him was chief of the reclamation division of the forestry service. He had begun his early career in the forestry service at Missoula, Mont., which was located in my Congressional District, the First or Western Congressional District of Montana.

Shortly after I came back to Washington to take my seat in 1937, Robert Marshall came to my office and introduced himself and told me that because he had started his career in the forestry service out there he had always had an interest in the district particularly because of its large forestry holdings, large forestry provisions, and he and I became close friends, socially, I would say more socially than anything else. I think he died about a year and a half or maybe two years after I—I can't remember whether he died in 1938 or 1939.

Mr. TAVENNER. His will was probated in 1940.

Mr. O'CONNELL. I think that is correct. His death was probably in 1939.

Mr. TAVENNER. Were you one of the witnesses to his will?

Mr. O'CONNELL. No, I was not.

Mr. TAVENNER. Did he discuss with you at the time of the making of his will or prior thereto the purpose he had in mind in setting up a trust in which you were named as one of the trustees?

Mr. O'CONNELL. No, he had never discussed—in fact, I really did not know that Bob Marshall had any money. He lived very ordinarily, didn't give any indication he had any money. I was back out in Butte, Mont., and I had been defeated for Congress and I got a notice from the surrogate court in New York that I was named trustee in the will and I thought I had come into a lot of money. I was sent a copy of the will and I was named as trustee of what later became the Robert Marshall Foundation.

Mr. TAVENNER. The will authorized you and the other trustees to apply the income derived from the trust and such parts of the principal as the trustees in their own unlimited discretion deemed necessary for the following objects and purposes:

The education of the people of the United States of America to the necessity and desirability of the development and organization of unions of persons engaged in work or of unemployment and unemployed persons, and the promotion and advancement of an economic system in the United States based upon the theory of production for use and not for profit.

Did it not?

Mr. O'CONNELL. That is correct.

Mr. TAVENNER. That part of the will which related to the education of the people of the United States to the necessity and desirability of developing

and organizing unions of persons engaged in work was actually considered by the trustees as more or less window dressing, wasn't it?

Mr. O'CONNELL. No it was the other way around, Mr. Tavenner. I don't know when Bob Marshall prepared this will, but I think Mr. Doyle would know about this, Upton Sinclair had his so-called epic movement in California, and there was a lot of discussion of an economy based on production for use rather than for profit and in the first meeting of the trustees that we held there was actually a resolution passed where the rather untenable idea of getting a production-for-use economy in the United States was discussed and it was decided by the trustees that the money should actually be employed to develop as much as we could the organization of trade unions, development and organization of trade unions, organizing of unemployed people, and actually for the development of a cooperation between farmers and workers, farmers and labor, so that instead of having a division of interests as far as they were concerned, and the trustees laid down a rule that with reference to grants, that in order to come within what the trustees considered the provisions of the will as the development of trade unions was concerned, that the grants would have to be made for some trade-union purpose, or development of trade unions, and so on, and that was what was actually done by the trustees.

Mr. TAVENNER. Were there occasions when grants were made on that theory—on that principle?

Mr. O'CONNELL. On what principle?

Mr. TAVENNER. The one you just named.

Mr. O'CONNELL. Actually, as far as I can remember—and of course this goes back a long, long time, from 1940 on—I can't remember all of the organizations but we usually had an annual meeting of the trustees and applications were made to the trustees by practically—I mean just hundreds of organizations around the country that applied to foundations of this kind, and I think, I can't remember any exceptions, I don't recall any now.

As closely as we could the applications were considered from the point of view that the money was to be applied by the organization to whom it was

granted to help the organization and development of trade unions and organizing of unemployed people and particularly the development of a principle of cooperation between farmers and laborers.

Mr. TAVENNER. But actually the will did provide for the use of the money for promotion and advancement of an economic system in the United States based upon the theory of production for use?

Mr. O'CONNELL. Yes; I think another thing that would lend some stability to what I am saying is that I think the tax bureau at one of the local Federal district courts in determining the taxability of the foundation itself actually I think handed down a ruling that the foundation was not entitled to a section 101 exemption because that particular provision actually called for the elimination of the capitalistic system. I think that was the wording used either by the bureau or the court and from that time on the trustees never actually, I can't think of a single organization or a single group—and we had applications I know, I am trying to think of some of the organizations that existed over that period of time—I can't recall any of them now who specifically asked for grants based on what they called theory of production for use rather than for profit. But I can't think of a single instance where the trustees actually made——

Mr. TAVENNER. That was actually the system in use in the Soviet Union, was it not?

Mr. O'CONNELL. I have never been in the Soviet Union and I am not——

Mr. TAVENNER. However, you know, that is true, don't you?

Mr. O'CONNELL. My information that I get from reading and so on is that there is a modification. I think if I state it correctly in the industrial field I think there is production for use rather than for profit, but as I understand the Soviets have now abandoned as far as particular foreign farm production is concerned——

Mr. TAVENNER. Was it not the purpose of the Communist Party in the United States at that time to foist upon this country just such a plan, namely, to establish a Communist system of production for use and not for profit?

Mr. O'CONNELL. I, of course, wouldn't be qualified to say, I wouldn't be qualified to state whether or not that was their purpose or their program.

As a matter of fact, the program of the Communist Party as I remember it before I came to Congress, while I was in Congress and after the program of the Communist Party in the United States was fluctuating—as a matter of fact, I think there was a removal of Browder because he was advocating—removal of Browder by the Communist Party leadership because he was advocating a companionship or partnership with capital and that capital and communism could exist and there could be as I understand it—that was the program of the Communist Party for a long time until he was removed, I can't remember when.

But I knew Bob Marshall those years—I think I can positively state that Bob Marshall was not a Communist and that the provisions in that will and certainly the people that were named as trustees in addition to the trade union trust as we called it, the Marshall Foundation Trust, there was a civil liberties trust of which I think Roger Baldwin was the head and I think everyone will agree he is decidedly anti-Communist.

There was also a wilderness area trust. In fact, out in the State of Montana there is a great wilderness area named the Robert Marshall Wilderness Area after Robert Marshall.

My distinct feeling about that is that in talking with Bob and talking to him that he was caught up in the period of the depression situation where there were all kinds of economic theories advanced at the time, not only New Deal but all kinds of other movements and I don't think there was actually any connection in Bob Marshall's mind between what the Communist Party might be advocating at that time and what he actually put in his will.

Mr. DOYLE. May I ask this about that will? Was it a typewritten will or a will written by him?

Mr. O'CONNELL. Actually his brother, Jim Marshall, is an attorney in the city of New York and I think a member of the New York City Board of Education and the will was actually prepared by Jim Marshall's firm, I can't remember all who are in it, but the copy which I got was actually a copy of

the will which I received through the surrogate court in New York, actually a printed form.

Mr. TAVENNER. Mr. O'Connell, you mentioned the fact that tax exempt status of the trust was removed by action of the court. Was that a result of action taken by the Internal Revenue Bureau?

Mr. O'CONNELL. That is correct.

Mr. TAVENNER. Was it after the Internal Revenue Bureau learned of the type of grants being made under this trust that it took the action it did to remove the tax exemption status of the trust?

Mr. O'CONNELL. My best recollection, Mr. Tavenner, is that Congressman Dies made a speech on the floor, and if I remember correctly, in which he discussed the Robert Marshall Foundation in which he went into the various grants that we had made and shortly after that, on whose initiative I don't know, the Bureau took up with the foundation the matter of its one exemption and the Bureau exemption was removed and I believe as trustees we appealed it to the courts and the courts decided against us.

We appealed, I am sure the briefs will show that we appealed to the courts on the basis that the grants were being made for the purpose of organizing and developing of trade unions and for organization of unemployed people and not for the theory of production for use rather than for profit. I am sure the briefs will bear me out on that. I of course had nothing to do with the preparation of them.

George Marshall, who is Bob Marshall's brother, was the manager of the trust funds and as I said, the trustees usually met annually, once a year.

Mr. TAVENNER. You were aware, were you not, that the Communist Party in the State of Washington just 2 years prior to the probate of this will, endeavored or at least proposed a plan for legislation to set up exactly the same type of economy in the State of Washington?

Mr. O'CONNELL. I knew nothing about that. The first time I ever went to the State of Washington in August 1944——

Mr. TAVENNER. Robert Marshall you say was from the State of Montana?

Mr. O'CONNELL. No, Robert Marshall was actually a New Yorker, his dad was Louis Marshall, a partner of Samuel Untermyer, outstanding corporation lawyer in New York.

Mr. TAVENNER. Was a great deal of his experience in the forestry service on the west coast?

Mr. O'CONNELL. No; 3 years of his service in the Forestry Department were at Missoula, Mont., but not on the west coast. We are in the Rocky Mountain area, you see.

Mr. TAVENNER. I understand.

Mr. O'CONNELL. Is this within the scope of the hearing?

Mr. VELDE. The Robert Marshall Foundation?

Mr. O'CONNELL. Yes.

Mr. VELDE. I think it would be.

Mr. DOYLE. We will take a short recess.

(Brief recess.)

(Committee members present after recess: Representatives Doyle and Scherer.)

Mr. DOYLE. The committee will come to order and let the record show that the chairman of the full committee, Mr. Walter, appointed a different subcommittee to continue this hearing today, consisting of Mr. Moulder, Mr. Doyle, and Mr. Scherer, of Ohio, and that Mr. Scherer and Mr. Doyle are both present, a legal majority of the new subcommittee.

Mr. O'Connell, will you please rise and be sworn again.

Do you solemnly swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

Mr. O'CONNELL. I do.

Mr. TAVENNER. Mr. O'Connell, I referred to the proposal sponsored by the Communist Party in the State of Washington in 1936 for the enactment of a law establishing production-for-use initiative as it was called.

Mr. O'CONNELL. That was stolen from Upton Sinclair's legislation.

Mr. TAVENNER. And possibly also from the Soviet Union.

Mr. O'CONNELL. I don't propose to speak for the Soviet Union.

Mr. TAVENNER. Do you propose to speak for Mr. Upton Sinclair?

Mr. O'CONNELL. I knew Mr. Sinclair quite well and he used to contribute to my campaign and I had some opportunity to see his campaign in California.

Mr. TAVENNER. Eugene V. Dennett described a convention of the Washington Commonwealth Federation, held in April 1936 in Everett, Wash., and the part that the Communist Party played in that convention. His testimony relating to this particular matter is as follows:

There was another matter which arose as a serious issue in that convention and it concerned a proposal for an initiative measure which became known as the production-for-use initiative. Many people, because of the Communist Party influence in the unemployed days, were quite concerned and alarmed over the problem of unemployment, insecurity, possible impoverishment, et cetera. All the consequences of economic dislocation. They had read many of the so-called utopian pieces of literature such as Bellamy's Looking Backward and other documents of the kind. They had also read Mr. Upton Sinclair's Program in California. They were somewhat acquainted with the propaganda of the Soviet Union to the effect that production for use was the solution to the problems of capitalist lack of planning. In other words, planned economy.

The story on the production-for-use initiative is simply this: Because there was such a popular demand for some change in the economic situation to assure continued production and a cooperative effort, many people tried to translate an ideal of a cooperative commonwealth into some form of legislative effort. This resulted in many conferences and the calling in of legal talent to try to draft a measure which would be legal and which would satisfy the ambitions of the people to have the so-called dream of a cooperative commonwealth organization.

Question. Now, at that point describe a little more fully what production for use meant in a practical sense.

Mr. DENNETT. I wish I could satisfy you completely on that point, because that is one of the problems we ran into in trying to draw up this initiative measure. We could never satisfy ourselves that we had it satisfactorily organized. However, the staff who worked on it worked long and hard and finally produced a measure which was known as the production-for-use initiative. It was ready for presentation to that convention. However, some of us in the Communist Party, while we agreed that such a measure was a good propaganda weapon and felt that it was an excellent means of popularizing the ideas which we understood and claimed were the basis of the operation of the economy in the Soviet Union, we were startled when we read the document and found that it sounded a little bit more like the Fascist corporate state that the Italian leader Mussolini had established. We became so alarmed about it and we were so perplexed that we asked a very world famous person who happened to be a guest of the convention what this person thought about it. The person to whom I refer is Anna Louise Strong, who had just come from the Soviet Union, extended greetings to the convention and otherwise gave a very enlightening report on her travels and won wide acclaim for that effort.

Question. Did she on the floor of the convention address herself to the problem of production for use?

Mr. DENNETT. She did not. Not at that moment. She spoke only in general terms about the referring to it in a complimentary way and hoping for success, but at that moment she did not know very much

about what was in that document. However, we felt that she, coming from the Soviet Union with fresh knowledge, might know quite a lot about it and might be able to assist us in revising the document so that it would be possible to satisfy us that it was in fact a step in the right direction of a cooperative commonwealth. So she consented very graciously to take the document and work on it overnight. She did exactly that and we read it the next morning and much to our surprise she had moved the emphasis in the control even more in the direction of top control and less in the direction of allowing the members or the organization to have anything to say about it, which was just the reverse of the trend that we had hoped for.

Consequently we began to ask ourselves, that is, the Communists asked themselves, if this is the end result of an effort to draw up an initiative maybe it would be smarter politically for us to see that the measure died a-borning. Consequently we came to the conclusion that it was impossible to draw up an initiative measure which would be adequate and which would answer our propaganda needs and our desires to satisfy us that it was in harmony with our program. So we embarked upon a campaign in the course of the election.

Question. Was this a campaign to pass the proposed bill or to defeat it?

Mr. DENNETT. We all went out presumably to win support, to get the measure adopted. That is, it was an initiative measure and it was before the voters. The voters were to cast a vote "yes" or "no" on this initiative. The Communist Party found itself in that predicament.

We were committed to support the measure but we were determined to bring about its defeat. Consequently, we campaigned far and wide all over the State of Washington explaining the measure in such a way as to convince the people that they should not vote for it. At the same time we represented ourselves as campaigning for the measure and we did it so successfully that the measure was defeated. If we had not have done it I am afraid it would have been adopted.

Mr. O'CONNELL. Sounds like he needs a mental examination.

Mr. TAVENNER. I think it is rather consistent with Communist Party tactics.

Mr. DENNETT. My counsel asked me who was "we." I am referring to the Communist Party in that instance, the leaders of the Washington Commonwealth Federation were terribly disturbed by the nature of the campaign we were carrying on—that is, the Communists.

Question. I should think it would be a rather confusing campaign where the Communist Party in order to defeat it actually supported it.

Mr. DENNETT. That is true. It was a very confusing to every one, even to us at times.

Question. That is a very interesting thing. The Communist Party in order to defeat this measure went out and conducted a statewide campaign in favor of it but in order to accomplish its defeat, if I understand you correctly, it so represented the issues that people would be bound to vote against it.

Mr. DENNETT. That is true. There is triple deception in this maneuver, which is rather hard to follow. I hope I have explained it.

Question. I am afraid that the point may not be absolutely clear in the record, and I want to be sure that it is clear.

If I understand you correctly, it was not the fact that the Communist Party was supporting this measure that caused its defeat.

Mr. DENNETT. You are correct, sir; that was not the reason. It was the way we as disguised Communists carried on the campaign, ostensibly for it, but in fact against it.

Question. In other words, your representations were of such a character as to make known the weaknesses in the bill and the person would actually think you were supporting it.

Mr. DENNETT. True. You understand it quite clearly.

Question. I hope so. I think the bill was properly named when you used the word "initiative" because that certainly is the use of initiative. I am glad to know it is Communist Party initiative. It is a very deceptive type of campaign.

That was the history of production for use as first sponsored by the Communist Party until they found that it was not workable to reduce to a form of legislative enactment in the State of Washington.

Mr. O'CONNELL. In 1936.

Mr. TAVENNER. In 1936.

And yet the will of Robert Marshall was prepared 2 years later in 1938, and it embraces the same principle of the promotion and advancement of an economic system in the United States based upon the theory of production for use. And you were one of the trustees of that foundation.

Do you know of any connection or any influence brought upon Robert Marshall to establish this trust fund for the changing of the system of economy in the United States which had its origin in the Communist Party?

Mr. O'CONNELL. I know absolutely none. As I said earlier, and I am sure Bob had no connection with the Washington situation that you have read about in detail. I think like a great many others in that depression period, there were all kinds of discussions of panaceas to solve the economic situation that existed at the time. I am positive that Bob Marshall was not a member of the Communist Party, that he was not influenced by the Communists in the preparation of that will or the provisions that are in it, and as a trustee I want to assure you that I can't think of a single instance, a single instance where any grant of any money was made to any organization to begin an economy based on production for use or propagandize it or publicize it or anything.

I can remember at one time the National Farmers Union came to the foundation, Mr. Patton, the national president, particularly presented the proposal and wanted to establish branch centers throughout the United States trying to some extent bring about what he called a cooperative

movement and an economy based upon cooperatives. I think he wanted an immediate expenditure of some \$160,000 and it was rejected by the trustees. I know that.

Mr. TAVENNER. Were you acquainted with Lem Harris?

Mr. O'CONNELL. No; I was not acquainted with Lem Harris.

Mr. TAVENNER. Do you know him?

Mr. O'CONNELL. I think I know who he is. Wasn't he in the Department of Agriculture?

Mr. TAVENNER. He was in the Department of Agriculture. He spent many years in the Soviet Union, studying and working in the field of agriculture. He was prominent in organizations interested in agriculture in this country. He was before this committee and refused to testify as to his prior or present Communist Party membership, relying upon the fifth amendment. He was considered the head of the agricultural division of the Communist Party in the United States.

Did he importune in behalf of the National Farmers Union in procuring grants?

Mr. O'CONNELL. He particularly never talked to me or never asked me to do it. I don't know whether——

Mr. TAVENNER. You don't need to put it on such a personal basis. As a trustee you know whether he did or did not.

Mr. O'CONNELL. I don't know. As a trustee, Gardner Jackson, who I think was employed by the National Farmers Union, actually talked more and actually guided the trust or the foundation as far as agricultural matters were concerned, and I, of course, all I—I never met Lem Harris.

Mr. TAVENNER. You wouldn't have to meet Lem Harris to know what influence he had to bear upon the making of grants by your trustees.

Mr. O'CONNELL. I know of no influence he had, particularly as far as I am concerned. He never importuned me at any time to vote for anybody or grant any money to any organization.

Mr. TAVENNER. Gardner Jackson is alleged to have written a letter on August 3, 1946, to James G. Patton, president of the National Farmers Union. Mr. Lem Harris admitted that he had seen a copy of that letter when he testified before this committee. In this letter to Mr. Patton, Gardner Jackson makes this statement:

I don't have to tell you that many of us understand your appointment of the pathetic Communist or pro-Communist boy Phil Reno to your headquarters staff in Denver as political and labor relations official was at the behest of George Marshall and Lem Harris, the Communist Party's avowed agricultural policy fellow, in order to insure a continuing flow of money from the Marshall Foundation to the National Farmers Union.

Doesn't that prove to you the influence that was exerted by the Communist Party upon awards made to the National Farmers Union?

Mr. O'CONNELL. That, of course, is a statement made by Gardner Jackson, I think after he had been removed from his position with the Farmers Union, and in which he supplied information to Senator Bridges, I think, and I can't remember others, but what influence—for instance I don't even know who Phil Reno is, don't know anything about him, and what Jackson is attempting there I don't know.

Mr. TAVENNER. You had a responsibility as one of the trustees to know how the awards were being paid.

Mr. O'CONNELL. That is right and, as a matter of fact, the foundation called Patton before it because we got in disagreement with him about the way the funds were being expended and from then on grants were made to the various State organizations of the Farmers Union rather than to the national office directly.

Mr. TAVENNER. But they were continued?

Mr. O'CONNELL. Well, they were actually made to different State farm union organizations but not to the National Farmers Union, not to Patton. And certainly one of the basic reasons was because of this gigantic proposal that he had about establishing these branch centers. We just didn't think it was a wise expenditure of the foundation's funds, and so on, and that was some of the disagreement that we had.

Mr. TAVENNER. Did you ever see a copy of the letter which I referred to?

Mr. O'CONNELL. No; I never did.

Mr. TAVENNER. Had you heard of it?

Mr. O'CONNELL. I think the way I heard of it, I don't know whether this is the same letter, but Senator Bridges made a speech on the floor of the Senate I think in 1950 in which I am pretty sure he quoted or actually inserted the Gardner Jackson letter, if I remember, and I think I read it within Senator Bridges remarks at that time that were on the floor.

Now, I remember that there was quite a to-do about it. I was out in the State of Montana at that time. I have been close. I have known the Farm Union leadership and members out there and I know they were exercised and committed and worried about this whole development.

Mr. TAVENNER. Do you recall from that letter, and the discussions which you have just mentioned, that Lem Harris, whom I have identified from the committee files as a person prominent in the agricultural section of the Communist Party, was himself attempting to decide what awards or what grants the trustees of the foundation should make to the National Farmers Union?

Mr. O'CONNELL. I don't recall as far as I am concerned any influence on me. I voted as far as I was concerned on those grants the way I wanted to.

Mr. TAVENNER. I understand that, but I am asking you about your knowledge and what you learned in the course of the performance of your duties as a trustee.

Mr. O'CONNELL. As far as Lem Harris was concerned, I never heard anything about Lem Harris' influence or anything.

Mr. TAVENNER. You have just told us there was a great disturbance in 1950 when this information became public.

Mr. O'CONNELL. Over the Gardner Jackson letter; yes.

Mr. TAVENNER. So you did not know something about it in 1950?

Mr. O'CONNELL. Yes; but I mean from 1950 on there had been no meetings of the Robert Marshall Foundation.

Mr. TAVENNER. Let me quote further from this same letter, in which Mr. Gardner Jackson is addressing Mr. Patton:

I do not have to recall to your mind—

meaning Mr. Patton's mind—

Lem Harris' visit to you in Denver a few years ago to tell you that of the total amount of money remaining in the Marshall Foundation, the National Farmers Union would be allowed so much and to ask you as president of the National Farmers Union how you wanted that sum spread over the ensuing few years.

Lem Harris is not a trustee of that fund.

Do you know anything about that? Does that refresh your recollection?

Mr. O'CONNELL. It doesn't mean anything to me. I was not close to Patton of course. I don't know what he was doing as far as Lem Harris was concerned, I mean I just don't know anything about that. I am telling you that very frankly.

Mr. TAVENNER. You have been very positive in your statements that no awards or grants were made by this foundation which might be construed as being grants to or for the benefit of the Communist Party. That has been the inference of your testimony.

Mr. O'CONNELL. Well, that is what I am trying—of course the questions all have been with reference to the economic system based on production for use rather than for profit.

Mr. TAVENNER. That is right.

Mr. O'CONNELL. And all that.

Mr. TAVENNER. You trustees had very broad powers to determine what organization you would aid in the purpose of this trust which was, namely, to promote an economic system in the United States based upon profit for use. I am trying to find out how you exercised those broad powers.

Mr. O'CONNELL. Those powers were exercised by different trustees.

Mr. TAVENNER. Of which you were one.

Mr. O'CONNELL. Of which I was one. All of us exercised I am sure our independent judgment on it. If it were possible to bring them all here, I don't have them, but there were many instances where the trustees divided, where these grants were made by majority vote rather than by full vote and so on.

There are all kinds of situations that exist. But as far as I am concerned, Lem Harris never influenced me to make a grant to the Farmers Union or to any organization.

Mr. TAVENNER. Don't misunderstand me again. My question is broader than the influencing of you. My question is whether or not it influenced the action of the trustees.

Mr. O'CONNELL. Of course I don't know whether Lem Harris went out and met with Jim Patton and Gardner Jackson, who was a trustee. I don't know whether that actually took place. I don't know whether he did these other things that are said. I don't know whether he did them or not, but if he did those things and Jackson was going along then he had some influence and so on. But I think Jim Patton became leader of the National Farmers Union after I left Congress. I never got to know him real well, I think I have been

introduced to him maybe once or twice. I know that Jim Patton was displeased with some of my votes on the foundation which were evidently reported to him by Jackson and went to the leadership of the Farmers Union in Montana to try to exercise influence as far as I was concerned in my votes on the foundation.

Mr. TAVENNER. Did you have any other groups attempting to influence your judgment or decision in the matter of making grants?

Mr. O'CONNELL. Any other groups?

Mr. TAVENNER. Yes; or individuals.

Mr. O'CONNELL. Well, over the period of years from 1940 on down there were all kinds of grants made and there have been various individuals who have come to me in connection with them.

Mr. TAVENNER. And many of those people were leaders in notorious Communist-front organizations; weren't they?

Mr. O'CONNELL. Well, of course I don't go along with your description of notorious Communist-front organizations. Many of the people came to me and asked me to vote for grants for causes and for principles which I thought were right and which I thought ought to be done, and if they were right in my opinion I thought they were right, I voted for them and if they were not I voted against them.

Mr. TAVENNER. Well, for instance, was a grant made of \$20,000 to be used in the payment of attorney's fees for the defense of William Robert Remington?

Mr. O'CONNELL. Not by the Marshall Foundation, by the trust funds that I was a trustee of. We certainly made no grant.

Mr. TAVENNER. Was any money of the foundation——

Mr. O'CONNELL. I think, isn't that in connection with the civil-liberties trust? It is not in connection with the trade-union trust. Isn't that right?

Mr. TAVENNER. That was paid out from another fund in the same trust, not from the one in which——

Mr. O'CONNELL. No. The will established, I think I can explain it, the will established three trusts, one that was called the Robert Marshall Foundation, we were denoted always as the trade-union trust. The second trust was a civil-liberties trust and 5 trustees, not all of the 5 trustees on the trade-union trust, were trustees on the civil-liberties trust. There were 15.

Mr. TAVENNER. Were you on both?

Mr. O'CONNELL. No, I was only on the trade union trust.

Mr. TAVENNER. Do you have any knowledge of the payment from this other trust—that is, the civil-liberties trust—of the grant of \$20,000 for defense of Remington?

Mr. O'CONNELL. I know nothing about it except, was that contained in Mr. Dies' speech? Was that reported——

Mr. TAVENNER. No.

Mr. O'CONNELL. I really personally have no—I am not a member of that civil-liberties trust and I don't know. There is also a wilderness area trust that is set up in the will and I am not a trustee on that fund either.

Mr. TAVENNER. Was the only fund of which you were a trustee the one which provided for the promotion of an economic system in the United States based upon the theory of production for use?

Mr. O'CONNELL. Which the trustees abandoned and decided to eliminate at the very first meeting of the trustees that was held.

Mr. TAVENNER. Let us see the nature of the grants and we can determine more about whether they did actually abandon it or not. How long did this trust continue to operate? How long was it active?

Mr. O'CONNELL. I think we actually made grants from, if I remember correctly, 1940 until 1950. I am not sure whether we made any grants in

1950 or not. We have not met in the last 5 years, I know that. If I remember correctly, there is approximately \$41,000 left in the fund of which I am a trustee and there have been no meetings of the trustees in at least the last 4 or 5 years.

Mr. TAVENNER. The committee has information that grants were made in 1941 and 1942 by the Robert Marshall Foundation to the American Youth Congress for the total of \$10,250. Do you know who solicited those grants?

Mr. O'CONNELL. No. An actual application would be made to Mr. George Marshall as manager of the trust by the organization that was involved—by the American Youth Congress. I can't recall the reason for the grant. My offhand guess would be that the American Youth Congress was proposing to establish some kind of a labor secretary or labor division of the Youth Congress or something, and they would tie it in actually to the provision of the will as far as the trade union, development of trade unions were concerned, organization of unemployed youth, I imagine.

Mr. TAVENNER. Did you, as a trustee, do anything to ascertain how the money was being used after the grants were made?

Mr. O'CONNELL. No; I never did actually as a trustee. We had the organization report to us from time to time how they were expending the funds and what they were doing, but I couldn't personally take any one of those grants and tell you actually what the report was.

Mr. TAVENNER. The American Youth Congress has been cited as a subversive and Communist organization by Attorney General Tom Clark on December 4, 1947, and September 21, 1948, under a citation by Attorney General Francis Biddle September 24, 1942, and also, May 28, 1942, it was stated in the citation that—

It originated in 1934 and has been controlled by the Communists and manipulated by them to influence the thought of American youth.

It was cited by the Special Committee on Un-American Activities June 29, 1942, January 3, 1939, January 3, 1941, and again on March 29, 1944, in which it was stated that it was one of the principal fronts of the Communist

Party and prominently identified with the White House picket line under the immediate auspices of the American Peace Mobilization.

Do you know whether Jack R. McMichael was the national chairman of the American Youth Congress?

Mr. O'CONNELL. I couldn't recall—the name doesn't mean anything to me.

Mr. TAVENNER. Did he play any part in the solicitation of these grants?

Mr. O'CONNELL. As far as I was concerned, he didn't at least to me. If his name was on the stationery, I got a copy of the application and all that, but

Mr. TAVENNER. I am not certain that he was its president at the time those grants were made, but he may have been.

Mr. O'CONNELL. I don't know.

Mr. TAVENNER. During the same period, according to the committee's information, grants totaling \$3,250 were made to the Federated Press.

Mr. O'CONNELL. That is correct.

Mr. TAVENNER. And subsequently increased to a total of \$29,200.

Mr. O'CONNELL. I don't know whether those totals are correct, but I know grants were made consistently to the Federated Press.

Mr. TAVENNER. Were the grants sufficiently large to make these figures within reason?

Mr. O'CONNELL. I would say they are. They never got a large grant each year. I think they got small grants like \$3,500 or something of that kind. It could have totaled \$29,000 over the years.

Mr. TAVENNER. That organization was cited on March 29, 1944, by the Special Committee on Un-American Activities as a Communist-controlled organization financed by the American Fund for Public Service and the

Robert Marshall Foundation, both principal sources of funds for Communist enterprises.

Mr. O'CONNELL. There are a lot of conclusions drawn there that need proof.

Mr. TAVENNER. I think we are proceeding to prove it right now.

Mr. O'CONNELL. Federated Press was a press service that operated in the labor field. It supplied labor papers throughout the country with labor news, news about labor, and about things labor was doing and we thought certainly was entitled to a grant from the point of view of development and organization of trade unions.

Mr. TAVENNER. It was a principal supplier of the Daily Worker and the Daily People's World.

Mr. O'CONNELL. I wouldn't know, but I would presume that they probably

Mr. TAVENNER. You didn't inquire?

Mr. O'CONNELL. Probably did. As far as I was concerned the Federated Press was doing an excellent job in the labor field. As a Congressman, of course, I had excellent opportunity to get all of the labor newspapers and the labor newspapers particularly in my district, and they were getting news from the Federated Press that covered a want that was sorely needed as far as labor information was concerned.

Mr. TAVENNER. Did you know that the American Youth Congress had been cited as a Communist-front organization at the time you acted upon——

Mr. O'CONNELL. By whom?

Mr. TAVENNER. By the Attorney General of the United States, both Attorney General Clark and Attorney General Biddle and by this committee.

Mr. O'CONNELL. As far as I was concerned, I am pretty sure I had knowledge they were cited by Attorney General Clark and by Attorney

General Biddle or by any other attorney general, but that didn't determine in my mind——

Mr. TAVENNER. That did not serve to put you on inquiry?

Mr. O'CONNELL. That did not serve as far as I was concerned to make it conclusive by any means, and if I in my personal opinion thought they were doing a good job and doing a job within the provisions of this will and so on, I voted for it.

Mr. TAVENNER. Would you have made a grant to the Communist Party in the State of Washington which as shown by the testimony I read to you was interested in enacting into law the same principle under which this trust was being operated?

Mr. O'CONNELL. I told you that at the very beginning, at the very first meeting that the trustees held, that we voted not to make any grants that were asked for on the basis of being used for the promotion of an economy based on production for use rather than for profit.

Mr. TAVENNER. That would have been in violation of the provisions of the will, wouldn't it?

Mr. O'CONNELL. No, sir; we made our grants within the first provisions, within the provision that provided for the development and the organization of workers and unemployed persons and so on. We made it a strictly trade-union trust.

Mr. TAVENNER. In other words, you entirely disregarded this provision?

Mr. O'CONNELL. And if the Communist Party or the Democratic Party or Republican Party or any partisan organization came and asked for funds they wouldn't have gotten it.

Mr. TAVENNER. But if it was an organization which the leadership of the Communist Party had captured and had under its control, it would be perfectly all right to make an award?

Mr. O'CONNELL. The organization never, I mean the foundation never went out and conducted any Red hunt or went out——

Mr. TAVENNER. Never took any precautionary measures?

Mr. O'CONNELL. Don't put words in my mouth. We never went out and conducted any kind of a Red hunt, we never investigated the organization to see what they were doing.

Mr. TAVENNER. Didn't you make any investigation?

Mr. O'CONNELL. When they said we want to do so and so in the labor field. We wanted to do this or that, if it was within the provisions of the will and in the minds of the majority of the trustees something we felt ought to be done, the grant was made. If we didn't, it wasn't.

Mr. TAVENNER. You said you didn't make a Red hunt, witch hunt, I am not sure which you stated. Red hunt. But actually you didn't make any investigation?

Mr. O'CONNELL. As to whether or not this organization had Reds in it or Communists in it?

Mr. TAVENNER. As to whether it was a Communist-controlled organization.

Mr. O'CONNELL. No, we didn't make any such investigation.

Mr. TAVENNER. Why didn't you?

Mr. O'CONNELL. It wasn't our job to do anything of that kind. As a matter of fact, I am sure, Mr. Tavenner, you have been around here a long time, and I mean the development as far as these organizations are concerned that you are talking about to me now, the proscription of these organizations, certain individuals, are things that have gone on. I went into this foundation selected solely as a friend of Bob Marshall's. I went in with an honest mind determined to do the best job I knew how to see that the money was spent to do what I thought Bob would like to have seen done.

Mr. TAVENNER. Bob unquestionably wanted to promote a new economic system in the United States based on the theory of production. That is what Bob wanted to do according to his last will and testament.

Did you make grants aggregating \$6,000 to Frontier Films?

Mr. O'CONNELL. I am pretty sure we did. I can't recall the particular grant now or know what it was made for. I think there was a particular picture. Wasn't the picture of 1937 Little Steel strike out in Chicago where many of the workers were murdered? You see it is very difficult to go back 17 or 18 years and try to put it in the pattern that you now work on today.

Mr. TAVENNER. We know that Frontier Films produced the Communist film Native Land based on Richard Wright's Native Son. The picture featured the Negro actor, Paul Robeson. That is the only information that I have.

Mr. O'CONNELL. I know as far as Frontier Films were concerned whatever the picture was, as I recall, it was a labor picture and my best recollection is it was the picture about the Little Steel strike and particularly the Memorial Day massacre in 1937 at Republic Steel in Chicago.

Mr. TAVENNER. Do you recall who solicited the grant?

Frontier Films was cited by this committee as a Communist front on March 29, 1944.

Mr. O'CONNELL. No, the first name of Paul comes to my mind. I can't remember any last name. The party came and talked to us about it—was there a Paul—Paul comes to my mind. That is all I can recall.

Mr. TAVENNER. Grants totaling \$900 were made to the International Juridical Association. Do you recall the circumstances under which that grant was made?

Mr. O'CONNELL. No, I really can't recall the circumstances now. It is apparently a very small grant. I don't know what it was used for. It must have been in connection with some particular labor legal problem that may

have been involved as far as the Wagner Act was concerned or NLRB or something of that nature.

Mr. TAVENNER. Grants totaling \$4,250 were made to the National Federation for Constitutional Liberties. That is an organization you did know about; isn't it? In fact, the amount was increased after 1942 to a total of \$56,000. You were acquainted with that organization; weren't you?

Mr. O'CONNELL. I knew of the National Federation for Constitutional Liberties, yes, and I am sure that grants were made, I would say on an annual basis to the National Federation, I don't know what amounts specifically, but whether that total amount is correct or not I cannot say.

Mr. TAVENNER. Are you familiar with the citation of that organization?

Mr. O'CONNELL. No; I am not.

Mr. TAVENNER. Let me read it to you. It was cited as subversive and Communist by Attorney General Tom Clark on December 4, 1947; it was also cited by Attorney General Francis Biddle September 24, 1942, in the following language:

Part of what Lenin called the solar system of organizations, ostensibly having no connection with the Communist Party, by which Communists attempt to create sympathizers and supporters of their program. It was established as a result of a conference on constitutional liberties held in Washington, D. C., June 7-9, 1940. The defense of Communist leaders such as Sam Darcy and Robert Wood, party secretaries for Pennsylvania and Oklahoma, have been major efforts of the federation.

What purpose did the trustees of your foundation have in making \$56,000 of grants to that organization?

Mr. O'CONNELL. Well, of course, if I had the specific application before me I could tell you, but I am sure that the application set out that it would be used for the defense of various labor leaders who were under attack of any kind, particularly from the civil liberties point of view.

Mr. TAVENNER. Communist or not?

Mr. O'CONNELL. Communist or non-Communist.

Mr. TAVENNER. You were actually one of the sponsors for the call to the conference, in June of 1940, which was alluded to in the citation by Attorney General Biddle; were you not?

Mr. O'CONNELL. I don't know whether I was. If my name is there, I was, and of course I was all for any organization that was fighting for constitutional liberties and still am, any organization that fights for them.

Mr. TAVENNER. How long did you remain associated with the National Federation for Constitutional Liberties?

Mr. O'CONNELL. Associated with them?

Mr. TAVENNER. Yes.

Mr. O'CONNELL. In what capacity?

Mr. TAVENNER. In any capacity. You were a sponsor of the call for the constitutional liberties conference which gave birth to the National Federation for Constitutional Liberties.

Mr. O'CONNELL. I imagine I was a sponsor as long as it took to sponsor the call. I don't know how long that might be. But I had no office in the National Federation.

Mr. TAVENNER. How was your assistance as a sponsor in this movement obtained?

Mr. O'CONNELL. Have you got a list of the officers of the federation?

Mr. TAVENNER. No; I do not.

Mr. O'CONNELL. I would presume—if you had a list of the officers—I presume I was contacted through the officers.

Mr. TAVENNER. Are you aware that this organization merged with the International Labor Defense, another arm or branch of the Communist Party, to form the Civil Rights Congress?

Mr. O'CONNELL. My information is that the Civil Rights Congress was formed from a merger of these two organizations. That is as I understand it.

Mr. TAVENNER. Our information is that the Civil Rights Congress was given grants totaling \$63,500. Are you familiar with those grants?

Mr. O'CONNELL. I am sure the Civil Rights Congress was given grants. Whether or not that total figure is correct or not I couldn't say.

Mr. TAVENNER. Civil Rights Congress was cited as subversive and Communist by Attorney General Tom Clark in 1947 and in 1948.

Mr. O'CONNELL. As I understand, they now are going through proceedings before the Board to determine whether or not they are?

Mr. TAVENNER. Yes, whether or not they will be required to register. That is the provision of law.

Mr. O'CONNELL. I mean the determination of whether or not they register is whether or not they are a Communist-front organization.

Mr. TAVENNER. They are probably making the defense that they are not required to.

Did you also make grants totaling \$10,125 to the National Negro Congress which subsequently was increased to \$54,530?

Mr. O'CONNELL. That sounds—I am sure grants were made to the National Negro Congress for the employment of a labor secretary to work particularly on the organizing of both working and unemployed Negroes in the Southern States. I am sure that was done.

Mr. TAVENNER. Were you aware that that organization was cited as subversive and Communist by the Attorney General Tom Clark, on December 4, 1947, and again on September 21, 1948?

Mr. O'CONNELL. Do you know when our grants were made to the National Negro Congress?

Mr. TAVENNER. Yes, from 1942 until March 1951.

Mr. O'CONNELL. Well, then, I am sure that, I feel sure we knew it had been cited. As I said before, of course mere citations by the Attorney General is not sufficient——

Mr. TAVENNER. It wasn't sufficient to put you on inquiry?

Mr. O'CONNELL. It wasn't sufficient at least in my mind to proscribe that organization, and I think history and subsequent events have proved that it is necessary to go a little further than just to have the Attorney General put organizations on a list.

Mr. TAVENNER. You say a little further? You didn't go any further, did you?

Mr. O'CONNELL. As far as we were concerned, as I told you when an organization came to us they came to us with the specific application for funds for a specific purpose and we never—as a matter of fact, we never permitted the organization to appear before the foundation or any representative of the organization. We went into the matter ourselves. We conducted no investigations to determine what their political beliefs might be or anything like that.

Mr. TAVENNER. You made the awards regardless of the purpose behind the formation of the organization; is that what it comes down to?

Mr. O'CONNELL. For instance, we never went, we never sent out a group of investigators, never had the funds, as a matter of fact, to do that to find out.

Mr. TAVENNER. If you had read the citation of Attorney General Francis Biddle, for instance, which was made on September 24, 1942, you would have learned as follows:

A. Philip Randolph, president of the congress since its inception in 1936, refused to run again in April 1940 on the ground that it was

deliberately packed with Communists and Congress of Industrial Organization members who were either Communists or sympathizers with Communists.

Commencing with its formation in 1936, Communist Party functionaries and fellow travelers have figured prominently in the leadership and affairs of the congress. According to A. Phillip Randolph, John P. Davis, secretary of the congress, has admitted that the Communist Party contributed \$100 a month to its support.

From the record of its activities and the composition of its governing bodies there can be little doubt that it has served as what James W. Ford, Communist Vice Presidential candidate elected to the executive committee in 1937 predicted: an important sector of the Democratic front sponsored and supported by the Communist Party.

Those are the words of Francis Biddle, Attorney General of the United States, in 1942. Do you say that statement was not worthy of consideration?

Mr. O'CONNELL. I, of course, didn't have that statement in front of me.

Mr. TAVENNER. It would have been in front of you if you had inquired about it. It was in the Congressional Record.

Mr. O'CONNELL. We didn't take the Congressional Record. There are many things in the Congressional Record, as you well know, that you just don't take as it's the Bible.

Mr. TAVENNER. Actually you were not interested to see whether or not the money which you were paying out was for the promotion of Communist Party projects?

Mr. O'CONNELL. That didn't enter into our consideration, the fact that an organization came to us with a specific application for a specific purpose to do a certain job, and if we thought it ought to be done and thought it was in the provisions of the will we granted it. We didn't think it was incumbent upon the trustees to make any kind of an investigation into these organizations as far as the political opinions and beliefs of their leaders or

their members, whatever they might be. We just didn't do it. It just wasn't particularly being done by private individuals or private trusts.

Mr. TAVENNER. Did your foundation make grants totaling \$1,500 to the Southern Conference for Human Welfare?

Mr. O'CONNELL. Yes, sir.

Mr. TAVENNER. That is, through 1942 and subsequently increased to a grand total of \$14,000.

Mr. O'CONNELL. I am sure, I don't know whether that total is correct, but I am sure we made grants to the Southern Conference for Human Welfare.

Mr. TAVENNER. Did you look into that organization or the formation of that organization?

Mr. O'CONNELL. No. From my own information they were doing an excellent job in the field of promoting Negro rights, in the field of organizing of labor unions, and so on in the South, and particularly asked for the grant, if I remember correctly, to employ a labor secretary to develop that particular part of the conference or group.

Mr. TAVENNER. This organization was cited as Communist-front which received money from the Robert Marshall Foundation, one of the principal sources of funds by which many Communist-fronts operate, Special Committee on Un-American Activities reported March 29, 1944.

Did you make total grants of \$30,750 to the Southern Negro Youth Congress?

Mr. O'CONNELL. I am sure we made grants to the Southern Negro Youth Congress. Whether that total is correct, I can't say.

Mr. TAVENNER. This organization was cited on December 4, 1947, by Attorney General Tom Clark as subversive and among the affiliates and committees of the Communist Party, U. S. A., which seeks to alter the form of the Government of the United States by unconstitutional means.

You thought that was not worth looking into?

Mr. O'CONNELL. I knew nothing about that. I certainly knew that that was—Who said that? I don't know who said it now.

Mr. TAVENNER. Attorney General Tom Clark.

Mr. O'CONNELL. Do you think yourself that—well, that Tom Clark's mere proscription of this organization is sufficient?

Mr. TAVENNER. Certainly this should have been a warning to you to make some inquiry and investigation unless your view and purpose was to help the Communist Party by promoting its interests through large awards.

Mr. O'CONNELL. That might be your conclusion but there were certainly no awards or grants made to these organizations from the point of view of being beneficial in any respect to the Communist Party.

Mr. TAVENNER. Do you recall grants having been made of \$6,000 to U. S. Week?

Mr. O'CONNELL. Yes; I think I can recall that. Wasn't that young Bill Dodd (William E. Dodd, Jr.), son of the former Ambassador to Germany?

Mr. TAVENNER. Young Bill Dodd was the son of the former United States Ambassador to Germany, but I don't know who applied to you.

Mr. O'CONNELL. I think that was the magazine he was interested in, if I remember.

Mr. TAVENNER. It was cited on March 29, 1949, by this committee as a Communist front which received funds from your Robert Marshall Foundation.

Mr. O'CONNELL. When was the grant made to U. S. Week?

Mr. TAVENNER. 1941. Were grants made to American Youth for Democracy in the amount of \$5,000?

Mr. O'CONNELL. Was it grants or grant?

Mr. TAVENNER. I am not sure whether that is the total grant or whether that is one grant.

Mr. O'CONNELL. I am not, either. I recollect a considerable amount of discussion about that grant when it came up.

Mr. TAVENNER. What was the nature of the discussion?

Mr. O'CONNELL. There was some discussion about what kind of a job they were doing and what organization it was, and so on. I am pretty sure the grant was not continued.

Mr. TAVENNER. It was cited as subversive and Communist by Attorney General Tom Clark on December 4, 1947, and the citation by the Special Committee on Un-American Activities report March 29, 1944, reads as follows:

Cited as the new name under which the Young Communist League operates and which also largely absorbed the American Youth Congress.

Mr. O'CONNELL. Do you know when the grant was made?

Mr. TAVENNER. No; I do not. It would be between 1942 and 1951, but I don't know the specific date.

Mr. O'CONNELL. I can remember a discussion about the grant, and I think you will find—I could be wrong, but I think there was only one grant made, and it was discontinued.

Mr. TAVENNER. Were grants totaling \$6,500 made to the California Labor School?

Mr. O'CONNELL. Yes; I don't know whether that total amount is correct, but I know a grant was made to the California Labor School.

Mr. TAVENNER. This organization was cited by Attorney General Tom Clark on June 1, 1948, as a subversive and Communist organization.

Mr. O'CONNELL. Do you know when the grant was made?

Mr. TAVENNER. No, sir. Grants totaling \$8,000 were made to the Council for Pan-American Democracy. Do you recall those grants?

Mr. O'CONNELL. I can remember that a grant was made, or grants, to that organization, but I can't remember who the people were that were involved.

Mr. TAVENNER. The organization was cited by Attorney General Tom Clark on June 1, 1948, as subversive and Communist and by the Special Committee on Un-American Activities report on March 29, 1944, and again on June 25, 1942.

\$21,000 was granted to Farm Research, according to our information. Do you recall that?

Mr. O'CONNELL. Well, I don't recall it, but I presume your information is correct.

Mr. TAVENNER. Farm Research was cited by the Special Committee on Un-American Activities on March 29, 1944, as a Communist-front organization, receiving finances from the Robert Marshall Foundation.

Did the foundation make grants to the National Lawyers Guild in the amount of \$15,250?

Mr. O'CONNELL. I am sure it did, although I don't know whether the amount is correct?

Mr. TAVENNER. What was the purpose of those grants?

Mr. O'CONNELL. The purpose of those grants was to assist the Lawyers Guild in getting out certain legal material as far as particular labor cases before the NLRB and the courts were concerned.

Mr. TAVENNER. Was it furnished to assist the guild in getting out any other work besides that?

Mr. O'CONNELL. No. They came in with a specific application to do this particular kind of job or work that had to be done, and where they were working particularly in representation of labor, in the labor field.

Mr. TAVENNER. Total of \$25,000 was granted, according to our information, to the New World?

Mr. O'CONNELL. \$25,000?

Mr. TAVENNER. Yes, sir.

Mr. O'CONNELL. I know grants were made, I think that paper was originally called the Washington New Dealer. Isn't that right? And grants were made to it while it was the Washington New Dealer. It was changed to the New World and grants were made both to it as the Washington New Dealer and the New World.

But the minute it became a part of the People's World which became a Northwest edition of the People's World, there were no further grants made.

Mr. TAVENNER. Did you procure from the Robert Marshall Foundation a grant to be used by any progressive causes in the Northwest in May 1949?

Mr. O'CONNELL. Yes; I think a grant for the Seattle Labor School.

Mr. TAVENNER. Was the amount of that \$4,000?

Mr. O'CONNELL. Yes.

Mr. TAVENNER. You left Seattle in May 1949 to attend your meeting in New York City of your trustees?

Mr. O'CONNELL. Yes. I don't know whether it was May of 1949, but some time——

Mr. TAVENNER. And returned with \$4,000 for the Seattle Labor School.

Mr. O'CONNELL. Yes; that is right.

Mr. TAVENNER. The Seattle Labor School, according to the testimony of Barbara Hartle, is the same as the Pacific Northwest Labor School. It was first known by the name of Seattle Labor School and then later became known as the Pacific Northwest Labor School.

Mr. O'CONNELL. Wasn't it the other way around?

Mr. TAVENNER. I may have it backward. You probably would know.

Mr. O'CONNELL. I don't remember which was which, but I think it was the other way around. But I can remember that grant; yes.

Mr. TAVENNER. Who was instrumental in soliciting the funds for that labor school?

Mr. O'CONNELL. John Daschbach.

Mr. TAVENNER. The same person who used your name on the catalogue of the school as an instructor of course 112?

Mr. O'CONNELL. That is right.

Mr. TAVENNER. You knew it was a Communist Party school at that time, didn't you?

Mr. O'CONNELL. No; I did not.

Mr. TAVENNER. It was cited by the Attorney General Tom Clark, as early as December 4, 1947.

You again state you just didn't pay any attention to that citation by an Attorney General?

Mr. O'CONNELL. I don't recall that it was cited. I don't remember, but as I said, a citation by the Attorney General or placing it on a list would not be determinative for me as to whether or not it ought to get a grant.

Mr. TAVENNER. We have demonstrated in the testimony to you here today that nearly every teacher on the staff was a member of the Communist Party, according to testimony before this committee. We have shown you now the citation of the Attorney General of that school, and we find now that you procured this grant of \$4,000.

Did you procure any other money for this school besides this grant of \$4,000?

Mr. O'CONNELL. No; I can't——

Mr. TAVENNER. Our information is that the total amount advanced to the Pacific Northwest Labor School was \$11,500.

Mr. O'CONNELL. I thought you meant money outside of the Marshall Foundation.

Mr. TAVENNER. No.

Mr. O'CONNELL. I am pretty sure grants were made to the Seattle Labor School for 2 or 3 years, I don't remember which.

Mr. TAVENNER. In fact, it would have closed its doors but for the financial assistance given it through you?

Mr. O'CONNELL. As a matter of fact, when the last grant was made it had closed its doors and the grant was made to pay up debts and salaries and things of that kind that were——incurred loans.

Mr. TAVENNER. Salaries to Communist Party teachers?

Mr. O'CONNELL. I don't know. Daschbach's salary for one.

Mr. TAVENNER. He has been identified by a number of witnesses as an active member of the Communist Party.

Mr. O'CONNELL. As far as I was concerned, I didn't know he was a member of the Communist Party and many of these people I don't even know that you read today as teachers at that school, I don't even know.

I do know Gundlach, who was a professor at the University of Washington. Whether he is a Communist or not, I don't know, but——

Mr. TAVENNER. You are not willing to accept the testimony of a Communist Party functionary, the No. 2 person in the Communist Party in the State of Washington, for that?

Mr. O'CONNELL. Well, of course, I haven't had an opportunity to read her testimony. Did she say Gundlach was a Communist? The reason I feel so sure Gundlach isn't a Communist is when the State un-American activities committee was conducting its investigations out there——

Mr. TAVENNER. I read to you this morning and read into the record the identification of Gundlach as a member of the Communist Party, according to the testimony given this committee and my recollection is that it was Barbara Hartle.

At any rate, didn't you know that and weren't you aware of the fact that he was ousted from the university as a professor because of his Communist Party membership?

Mr. O'CONNELL. If I remember correctly, and it is a long time ago, Gundlach was actually ousted, if I remember correctly, because President Allen, who was at the university at the time, didn't think he was a Communist but thought that his conduct in connection with the investigation that was carried on by the State un-American activities committee, was such that he didn't think he was a fit and proper person to be a teacher at the university. That is my recollection of it.

The reason I wonder about Gundlach is that he took an entirely different course, as I remember, before the State un-American activities committee out there than certain others who were there later, but if Barbara Hartle says he is and says he was, she may be right. I don't know. All I am doing is conjecturing on the basis of——

Mr. TAVENNER. As a matter of fact, Mr. O'Connell, from your vast experience and your intelligence, didn't you form the opinion that the

Pacific Northwest Labor School was a training school for the Communist Party?

Mr. O'CONNELL. No; I particularly didn't get that idea because I know some excellent people who were connected with the school. One is Frank Carlson, who was in the streetcar men's union out there who was an outstanding labor leader who certainly wasn't a Communist.

I. E. Sandvigen of the machinists union was not a Communist, I am sure. Many others identified with the school particularly in the labor movement that promoted the school and I think what may have happened to it as it went along, I don't know, but the idea of the school was a good one and I think they were trying to do a good job.

Daschbach became director of the school somewhat later in its history, as I remember it.

Mr. TAVENNER. Let me read into the record at this point, Mr. Chairman, the testimony of Barbara Hartle regarding the labor school. She was asked the question as to what connection there was between the school and the Communist Party. That is between the Pacific Northwest Labor School and the Communist Party. Her answer was as follows:

The Pacific Northwest Labor School was a Communist front project in the field of education and its basic purpose was to spread Marxist-Leninist education, but to do it in such a way as to attract non-Communists in addition to its use for being a school for Communist Party members.

It had a double purpose, to educate the party membership and to draw as many non-Communists into classes as possible at the same time. It was not considered a party leadership training school, it was more for the membership. And in order to attract a broader segment of persons into the school a number of courses were included that were not in Marxism-Leninism, but they were included in order to appeal to people from labor unions, professional fields, and others.

For example, parliamentary law would be a subject intended for the purpose of drawing people into the school and drawing them closer to it with no idea on their part that they were getting into a Communist school. An air of respectability was also created in this way so that people would feel if they enrolled in this school they had a perfect right to do so and there was nothing wrong with being in it.

The hope, of course, was that if non-Communists enrolled this way, after a while they would learn more about it and would become convinced to enroll in courses on Marxist-Leninism. The objective of the school was to gain Communist influence over non-Communists, recruit as many people as possible out of this school into the Communist Party, and special attention was paid to members of organized labor through this school.

Mr. DOYLE. The committee will stand in recess until 9:30 tomorrow morning.

(Whereupon, at 4:20 p. m. the committee was recessed, to reconvene at 9:30 a. m., Thursday, June 2, 1955.)

INVESTIGATION OF COMMUNIST ACTIVITIES IN THE SEATTLE, WASH., AREA

THURSDAY, JUNE 2, 1955

**UNITED STATES HOUSE OF REPRESENTATIVES,
SUBCOMMITTEE OF THE
COMMITTEE ON UN-AMERICAN ACTIVITIES,
*Washington, D. C.***

PUBLIC HEARING

A subcommittee met, pursuant to recess, at 9:45 a. m. in the Caucus Room, Old House Office Building, Hon. Edwin E. Willis, presiding.

Committee members present: Representatives Edwin E. Willis and Gordon H. Scherer.

Staff members present: Frank S. Tavenner, counsel.

Mr. WILLIS. The subcommittee will come to order.

Let the record show there are present today Mr. Scherer, of Ohio, and myself, Edwin E. Willis, of Louisiana.

Inasmuch as the subcommittee is reconstituted, that is, members are here today who were not present yesterday, it might be well to reswear the witness.

Let the record show also that the chairman of the committee appointed a new subcommittee to continue these hearings, namely, Mr. Doyle, Mr. Scherer, and myself as chairman.

Will you stand and be sworn? Do you solemnly swear that the testimony you are about to give before this subcommittee will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. O'CONNELL. I do.

Mr. WILLIS. Proceed, Mr. Tavenner.

**TESTIMONY OF JEREMIAH JOSEPH O'CONNELL—
Resumed**

Mr. TAVENNER. Mr. O'Connell, continuing with the matter of grants by the Robert Marshall Foundation, of which you were one of the trustees, it is noted that grants totaling \$30,366.85 were made to you. Can you explain that?

Mr. O'CONNELL. Yes. Those would be in my opinion the total amount that I received for traveling expenses, for meetings of the foundation.

Mr. TAVENNER. Do you mean, then, no specific grant was actually made to you?

Mr. O'CONNELL. There was no actual specific grant made to me. The provisions of the will, as I remember them, provided that the trustees are to receive no compensation except their traveling expenses to and from meetings of the trustees of the foundation.

Mr. TAVENNER. I note that there was introduced into the record during the Canwell hearings, check No. 94 bearing date of October 2, 1942, drawn on the funds of the Robert Marshall Foundation in the amount of \$150 made payable to you.

Have you any explanation to make of that item?

Mr. O'CONNELL. I am sure that, if I knew the meeting date of the foundation at that time, we also had a practice when a meeting of the foundation was called by the trustees, if the financial situation of the trustee involved was such that he needed an advance for expenses to come to the meeting, an advance was made in the amount of probably \$150 or so, but it was always expended for either transportation or meals and hotel and so on, while in attendance at the meetings of the foundation.

Mr. TAVENNER. You testified yesterday that in May of 1949 you procured a grant of \$4,000 for the use of the Northwest Pacific Labor School.

Mr. O'CONNELL. Of course I think that ought to be—I personally couldn't procure the grant. The grant was voted by at least a majority of the trustees for the Pacific Northwest Labor School.

Mr. TAVENNER. Was the grant actually made through your efforts?

Mr. O'CONNELL. I advocated that the grant be made, yes.

Mr. TAVENNER. And Daschbach interviewed you with regard to it before you presented it?

Mr. O'CONNELL. Yes, that is correct.

Mr. TAVENNER. Was any part of that grant or any other grant used for the benefit of the Northwest edition of the Daily People's World?

Mr. O'CONNELL. As far as I know, certainly not. I mean the grants were made to the organization and certainly no part of that grant as far as I would know, what actually Daschbach may have done with it later I wouldn't be able to specifically say.

Mr. TAVENNER. Did you learn anything about it, even from a second-hand source?

Mr. O'CONNELL. No; I never learned, never had any information that it was used for any other purpose.

Mr. TAVENNER. Do you know whether any part of the \$4,000 grant or any other grant from the foundation was used for the benefit of the Civil Rights Congress in the State of Washington?

Mr. O'CONNELL. I don't know whether it was, that grant or any other grant. I know there was some argument and some consultation with me by Mr. Daschbach about it and I was very specific—I think that was before the grant was made—and I was very specific with him that no part of the grant

would be used for any other purpose than that for which it was made. That was the Pacific Northwest Labor School.

Mr. TAVENNER. Was John Daschbach an official of the Civil Rights Congress in Seattle?

Mr. O'CONNELL. If I remember correctly, I left Seattle, I don't remember when the Civil Rights Congress was organized in Seattle, but as I remember when I left Seattle Daschbach was then functioning as head or director of the Washington Civil Rights Congress.

Mr. TAVENNER. Did he hold that position at the time he spoke to you about the use of proceeds of the grant for the Civil Rights Congress?

Mr. O'CONNELL. I don't think I would be able to say whether he was actually in the position at that time. I can't recall. I remember at the time that he asked me about the grant they were closing out, they were terminating this Seattle Labor School and they had borrowed money from particularly various labor union members about the town. I remember I think it was either Frank or Fred Carlson to whom they owed money and other people, I can't remember precisely who they were now, but anyway the representations made to me in connection with the grant were they were trying to close out the labor school and pay off their debts and pay I think back salaries that were owed to Mr. Daschbach and to some others there, I don't know who.

Mr. TAVENNER. Was John Daschbach known to you to be a member of the Communist Party?

Mr. O'CONNELL. I never knew John Daschbach was a member of the Communist Party.

Mr. TAVENNER. Had you heard that he was a member of the Communist Party?

Mr. O'CONNELL. I had never heard that he was a member of the Communist Party. I actually, my first, I think the first time I met Mr. Daschbach was in Spokane and I think he was attending Gonzaga University, a Jesuit

university in Spokane, and as far as I knew personally, I didn't know he was a Communist, didn't know whether he was or was not.

Mr. TAVENNER. You are aware now, are you not, that he has been identified by a number of witnesses as a member of the Communist Party?

Mr. O'CONNELL. I couldn't say that I know that precisely; but I do know he was indicted as a Smith Act defendant in Seattle.

Mr. TAVENNER. And convicted.

Mr. O'CONNELL. And convicted. I don't know whether he is in prison now.

Mr. TAVENNER. Do you recall what individual it was in the National Lawyers Guild who solicited an award from the trustees?

Mr. O'CONNELL. Well, my best recollection as far as that would be concerned is that it was Mr. Martin Popper, who was an attorney in New York.

Mr. TAVENNER. Did the executive secretary of the National Lawyers Guild take any part in representations or solicitations regarding the grant?

Mr. O'CONNELL. I think Mr. Silberstein (Robert J. Silberstein), I wouldn't remember correctly. It is hard for me to remember. I would say Mr. Silberstein actually probably prepared the actual application that was made to the foundation for a grant.

Mr. TAVENNER. Did he confer with you about the matter?

Mr. O'CONNELL. I can never even remember Bob Silberstein talking to me about a grant for the Lawyers Guild. As I remember the particular grant, it was made in connection with labor work that the guild was doing, and Mr. Martin Popper, as I remember it, was the one who actually made the presentation, at least I know he talked to me and I think to some of the other trustees.

Mr. TAVENNER. The New World issue of March 25, 1948, reflects that Jerry O'Connell launched a series of three special forum programs at the Pacific

Northwest Labor School to discuss our foreign policy and our fight for peace. Do you recall that?

Mr. O'CONNELL. No; I don't recall that. I know I never made any speeches at Seattle Labor School.

Mr. TAVENNER. Did you have any connection with the presentation of a special forum program at the Seattle Labor School?

Mr. O'CONNELL. I certainly cannot recall any. I don't remember ever speaking at the Seattle Labor School or being involved in any forum. Was that a forum I was supposed to conduct?

Mr. TAVENNER. The article says you launched a series of three forum programs.

Mr. O'CONNELL. It says it is on foreign policy?

Mr. TAVENNER. That the subject was Our Foreign Policy and Our Fight for Peace.

Mr. O'CONNELL. I certainly don't remember any such thing. Practically all the time I was in the State of Washington I was engaged either as executive secretary of the Democratic Party or was executive secretary of the Progressive Party and my particular work was in political organization and political work and I don't want to say I did or didn't but I certainly now don't recall any such series of lectures.

Mr. TAVENNER. Mr. O'Connell, you have advised us that you became chairman of the National Committee To Defeat the Mundt Bill during the year 1948.

Mr. O'CONNELL. Yes; that is correct.

Mr. TAVENNER. Were you aware of a special fund drive conducted by the Communist Party in 1947 for the purpose of fighting anticipated congressional action relating to the Communist Party?

Mr. O'CONNELL. I had no knowledge of any such—what was it a fund?

Mr. TAVENNER. Mrs. Blauvelt testified before the Committee on Un-American Activities within the past 3 weeks on that subject. She was a police detective for the city of New York and was a member of the Communist Party and served the New York City Police Department as an underground agent for a period of more than 8 years before her identity was discovered. Mrs. Blauvelt testified for nearly a week.

In the course of this testimony she stated that upon the agitation for a bill relating to communism in the House of Representatives the Communist Party hurriedly made a fund drive and that they sought to raise a total of \$225,000 for the purpose of fighting the opposition to communism. Within 25 days the Communist Party raised \$250,000.

During the period that you were chairman of this committee to defeat the Mundt bill—that was over the period from 1948 until some time in 1950 or 1951——

Mr. O'CONNELL. Yes; but it ought to be explained that in 1948 the only functioning of the committee was from a period I would say probably in June of 1948 until the adjournment of Congress, which was in that year I think, because of the party conventions, the national conventions, was adjourned quite early.

I know there was probably, I was here probably a month or a little over a month in that connection, and then I did not—all during 1949 there was no functioning of the committee whatsoever, as I remember it, and I think the first time I came down in 1950 was, I would say, about March of 1950 and I was here until about maybe the early part of June, when I returned to Montana to take the bar exams I have already talked about.

Mr. TAVENNER. As you stated, you came back here in July and were here for a period of time?

Mr. O'CONNELL. I think the latter part of July or first part of August and I was here until the Congress adjourned sine die about the middle of September.

Mr. TAVENNER. That is correct.

To complete my question: Did the Communist Party give your committee any financial assistance at any time during the period from 1948 to 1950 while you were chairman of the National Committee To Defeat the Mundt Bill?

Mr. O'CONNELL. Of my knowledge, I don't know of any assistance that the Communist Party gave to the National Committee To Defeat the Mundt Bill. I, of course received, all I received, I think I received \$125 a week salary, if I remember correctly. I had no charge of funds or the expenditure of funds.

Mr. TAVENNER. Was that salary of \$125 a week paid by the Progressive Party?

Mr. O'CONNELL. In 1948 I think the salary was paid by the Progressive Party, but I am not too sure.

Mr. TAVENNER. Did you not so certify on the reports made to the Clerk of the House of Representatives?

Mr. O'CONNELL. If I did, that was so.

Mr. WILLIS. For the record, Mr. Tavenner, state the substance of the Mundt bill.

Mr. TAVENNER. The Mundt bill is that section of the Internal Security Act of 1950 which requires the registration of the Communist Party and registration of Communist fronts. There is also written into that bill the substance of what was known as the Wood bill, which dealt with persons employed in defense contracts. The remaining part of the bill related to immigration and naturalization matters and is known as a different section of the bill.

Mr. O'CONNELL. Then I think there was the detention camp features added in the Senate.

Mr. TAVENNER. There are no detention camp features to the bill.

Mr. O'CONNELL. In the bill that was finally passed in the Senate I think Senator Kilgore and some of the other Democratic Senators offered an amendment to the bill or a provision that provided for——

Mr. TAVENNER. In conference between the Representatives of the Senate and the House, it was agreed to accept the House bill exactly as prepared and submitted by this committee, which was done.

How were you employed at the time you first became chairman of this committee?

Mr. O'CONNELL. I was the executive secretary of the Progressive Party in the State of Washington.

Mr. TAVENNER. I believe you have told us that Mr. Robert J. Silberstein, executive secretary of the National Lawyers Guild, was one of the official family of the National Committee To Defeat the Mundt Bill.

Mr. O'CONNELL. My recollection is he was secretary. I don't want to be held to it but I am pretty sure he was the secretary of the committee.

Mr. TAVENNER. Was he a person known to you to be a member of the Communist Party?

Mr. O'CONNELL. No; I never knew Bob Silberstein to be a member of the Communist Party.

Mr. SCHERER. I didn't get the last answer.

Mr. O'CONNELL. No; I never knew or did not know that Bob Silberstein was a member of the Communist Party and I don't know it now.

Mr. TAVENNER. Had you heard he was a member of the Communist Party?

Mr. O'CONNELL. I had not heard that he was.

Mr. TAVENNER. Up until this present time you have not heard?

Mr. O'CONNELL. I have not heard that Bob Silberstein is a member of the Communist Party.

Mr. TAVENNER. Mr. Chairman, this committee heard 2 witnesses from California in 1952, both of them attorneys at law, one of them a professor at a law university, who testified to the effect that Mr. Silberstein was a member of the Communist Party.

Mr. Silberstein was subpoenaed before this committee and confronted with the testimony of those two lawyers and he refused to testify on the subject, claiming that to do so might tend to incriminate him.

Mr. O'CONNELL. Just for the record, Mr. Tavenner, I, of course, haven't read all the proceedings of this committee; I have not had available to me the transcript of the hearings of the committee, what some lawyers in California may have testified about Bob Silberstein in 1952, I don't know anything about.

Mr. TAVENNER. Are you aware of the fact that the National Lawyers Guild has been cited by this committee as a Communist-front organization?

Mr. O'CONNELL. Yes; I am.

Mr. TAVENNER. Were you a member of the National Lawyers Guild?

Mr. O'CONNELL. I am a member, have been and am now a member of the National Lawyers Guild.

Mr. SCHERER. When did you last have any connection with Robert J. Silberstein?

Mr. O'CONNELL. In 1950, sir. In 1950 we had occasional meetings in connection with the Mundt bill at that time and Mr. Silberstein attended those meetings and I am pretty sure he was the secretary of the organization.

Mr. SCHERER. Was that the last time you saw him?

Mr. O'CONNELL. That is the last time I have seen Bob Silberstein.

Mr. SCHERER. Have you had any communication with him since?

Mr. O'CONNELL. I of course receive a membership card in the National Lawyers Guild and I think it is signed by Bob Silberstein as executive secretary, or executive secretary of the National Lawyers Guild.

Mr. SCHERER. Is that his position today?

Mr. O'CONNELL. My understanding is he has resigned, at the last convention of the National Lawyers Guild, that he resigned and was replaced by somebody else.

Mr. SCHERER. Do you know what he is doing today?

Mr. O'CONNELL. No; I don't have any idea.

Mr. SCHERER. Do you know where he lives?

Mr. O'CONNELL. Well, the last I knew he was living in New York. He actually, I think, comes from New Jersey and I think he is married to a banker's daughter who comes from wealthy family, if I remember correctly, in New Jersey.

Mr. TAVENNER. Will you tell the committee the circumstances under which the Progressive Party contributed your services to the National Committee To Defeat the Mundt Bill?

Mr. O'CONNELL. Well, in connection with the—there were hearings being held in the Senate, as I stated yesterday, by a subcommittee of the Senate Judiciary Committee in 1948. I think those hearings were being presided over by former Senator Ferguson and Senator Langer of North Dakota was a member of the committee.

If I remember correctly, we received a communication from the national office of the Progressive Party, I think particularly from Mr. C. B. Baldwin, who was then executive vice chairman, if I remember rightly, asking us to send, the Progressive Party of the State of Washington, to send somebody to Washington to testify at this hearing before the Senate Judiciary

subcommittee, and I was delegated by the Progressive Party in the State of Washington to come to testify at that hearing. I also think Mr. Russell Fluent, who was chairman of the Progressive Party at that time—he was also incumbent Democratic State treasurer of the State of Washington, was also a delegate, and I think the two of us came down here to testify and I said yesterday while we were waiting to testify the hearings had been going on several days, Senator Ferguson adjourned the hearings and Senator Langer—a considerable number of the people there were upset because they had waited around to be heard and there was considerable protestation, as I remember, about the hearings being adjourned and so Senator Langer asked the people who had not testified to come to his office or, rather, his committee room.

As I remember then he was chairman of the Committee on Post Offices and Post Roads of the Senate, and we adjourned to that particular committee room and had a meeting there. I can't remember now the precise details of the situation, whether it was Senator Langer or somebody in the group or who it was who suggested a committee ought to be formed to defeat the bill. I know Senator Langer suggested I become chairman of the committee. He had known me as a member of Congress and I have known him for a long time. North Dakota and Montana are very close together and our political situations are quite similar and so on.

So it was at that meeting it was decided I should become chairman, that I should stay to see what could be done to lobby and so forth, to see what could be done to defeat the legislation. I think arrangements were then made with the Progressive Party in the State of Washington for me to stay down here during the month or so that was necessary and to have my salary advanced by the Progressive Party.

Mr. TAVENNER. What was the occasion for your return to Washington in March of 1950?

Mr. O'CONNELL. As I remember, the legislation had again been reintroduced. It had not cleared the Senate Judiciary Committee in 1948 by the time of congressional adjournment, then, but I think the legislation was reintroduced in the next session of Congress and if I remember correctly it passed, it had already passed the House and it was pending in the Senate,

and hearings were being held and were to be held in the Senate in March of 1950.

I came on down. I don't remember whether, I can't remember whether it was Mr. Silberstein or Mr. Waybur (Bruce Waybur), who contacted me and it was anticipated at the time I would have to spend about a month down there lobbying.

Mr. TAVENNER. I hand you a copy of a telegram which the committee procured under subpoena duces tecum from the Western Union, dated July 18, 1950, addressed to you, which reads as follows:

Greetings. Essential you take first plane or train here.

It shows it was charged to the National Lawyers Guild and signed "Silberstein." The telegram was charged to the National Lawyers Guild. Will you examine it, please.

Mr. O'CONNELL. Yes, sir. I think that is the——

Mr. TAVENNER. I desire to offer the telegram in evidence and ask that it be marked "O'Connell Exhibit No. 2" for identification purposes only and to be made a part of the committee files.

Mr. WILLIS. It is so ordered.

Mr. O'CONNELL. What is the date?

Mr. TAVENNER. July 18, 1950.

Did you then advise Mr. Silberstein that you would require advancement of funds for the purpose of making the trip?

Mr. O'CONNELL. As I remember, I had been down here, as I said earlier, from March until I returned to Montana to take the bar examinations, and then I was out there in the State of Montana getting ready to establish my law practice and I got this wire from Mr. Silberstein to come back, or to come on down. Now what arrangements were made to send me funds, I don't know whether Mr. Silberstein——

Mr. TAVENNER. I hand you a second telegram addressed to you under date of July 26, 1950, signed "Silberstein," and charged to the account of the National Lawyers Guild, and obtained by this committee in the same manner as the former telegram, reading as follows:

Sorry funds not available here. Proceed other plans.

Does that refresh your recollection?

Mr. O'CONNELL. What this would mean, as far as I can recollect now, was that of course I informed him I had no funds to come down here, to fly or whatever it was, and that unless I had them I would not be able to come and would stay out in the State of Montana.

Mr. TAVENNER. What was meant by that part of the telegram which suggested that you "proceed other plans?"

Mr. O'CONNELL. The thing, I am sure I can't remember now but I am sure I told Mr. Silberstein that I had no funds of my own to advance to come down to Washington and do any kind of work down here, and that unless I got funds I would not be able to come.

Mr. TAVENNER. That explanation would not be responsive to the language of the telegram. The telegram says "proceed other plans."

Mr. O'CONNELL. It says, "Proceed other plans."

Mr. TAVENNER. "Proceed other plans."

Mr. O'CONNELL. Yes.

Mr. TAVENNER. What other plans?

Mr. O'CONNELL. As far as I was concerned, I am sure I had notified them unless there were funds sent to me I could not come down here at all.

Mr. TAVENNER. Would it be logical that Mr. Silberstein would tell you to proceed by other plans, when to adopt your construction it would mean that that just meant for you to remain where you were?

Mr. O'CONNELL. Well, actually, I imagine if I had all of the correspondence or wires here I could probably give you the full and complete story. That is way back, almost 5 years ago. It is hard for me to recall but I am pretty sure that what I told him if I didn't have the funds, whatever work I would have to do on the bill it would have to be done from the State of Montana.

Mr. TAVENNER. I desire to offer the document in evidence, and asked that it be marked "O'Connell Exhibit 3," for identification purposes only, and be made a part of the committee files.

Mr. WILLIS. It is so ordered.

Mr. TAVENNER. On July 28, 1950, 2 days later, there was another telegram signed "Silberstein" directed to you and charged to the National Lawyers Guild, which reads as follows:

Means now available for travel. Telephone me collect.

Will you examine that telegram, please, sir?

Mr. O'CONNELL. What is the date on the second one?

Mr. TAVENNER. 26th.

Mr. O'CONNELL. I think this would be in line with what I had said. I told him there was no way I could possibly come without funds.

Mr. TAVENNER. I desire to offer the document in evidence and ask that it be marked "O'Connell Exhibit No. 4" for identification purposes only, and to be made a part of the committee files.

Mr. WILLIS. It is so ordered.

Mr. TAVENNER. How were the funds referred to in Silberstein's telegram made available to you?

Mr. O'CONNELL. I just don't remember, but I am pretty sure that Mr. Silberstein sent me the funds.

Mr. TAVENNER. Were those funds, funds of the National Lawyers Guild?

Mr. O'CONNELL. I really couldn't say whether they were the funds of the National Lawyers Guild or not. As I remember, there was some confusion between the guild and Mr. Waybur of the national committee about the funds. I think Silberstein sent these wires out of the National Lawyers Guild office and then, if I remember, later collected from the national committee for them, the National Committee to Defeat the Mundt Bill.

But as I remember, my best recollection is I got the funds from Mr. Silberstein. I have a recollection, they could have been Lawyers Guild funds or could have been Mr. Silberstein's personal check, I am not sure.

Mr. TAVENNER. When you returned to Washington did you establish a headquarters for the National Committee to Defeat the Mundt Bill?

Mr. O'CONNELL. If I remember correctly, Mr. Silberstein was taking his vacation at that time. I think a month or 6 weeks' vacation. He turned over to us the use of the field offices here in Washington.

Mr. TAVENNER. The National Lawyers Guild offices in Washington?

Mr. O'CONNELL. Yes.

Mr. TAVENNER. What address was that? Do you recall?

Mr. O'CONNELL. The thing that comes to my mind was 918 or 920 K Street.

Mr. TAVENNER. Wasn't it 902 20th Street NW.?

Mr. O'CONNELL. Yes; I think that is right.

Mr. TAVENNER. As a matter of fact, hadn't that been the headquarters since 1948 of the National Committee to Defeat the Mundt Bill?

Mr. O'CONNELL. No. Originally we set up offices in a building downtown on —what is the main street? Is it E Street, where the theaters are all located?

Mr. TAVENNER. Could that be F Street?

Mr. O'CONNELL. F Street. I guess it is. If I remember correctly, the building is the Atlantic Building or some such name, and we had offices there during 1948, and early—I know offices before I returned to Montana were also in the same building in 1950.

Mr. TAVENNER. When did you first occupy the offices of the National Lawyers Guild as the headquarters of the National Committee To Defeat the Mundt Bill?

Mr. O'CONNELL. I am sure when I came back after July 28, I probably got there—I can't remember—either the very last part of July or the early part of August.

Mr. TAVENNER. Now, prior to 1950 had you registered as a lobbyist for the National Committee To Defeat the Mundt Bill with the Clerk of the House of Representatives?

Mr. O'CONNELL. Yes.

Mr. TAVENNER. Did anyone else register with you for the same purpose?

Mr. O'CONNELL. I couldn't say for sure, but I think Mr. Waybur did. I don't know.

Mr. TAVENNER. Let me refresh your recollection. Our investigation shows Mr. John B. Stone registered with you on the same day.

Mr. O'CONNELL. Yes; I remember he was doing press work, press relations for the committee.

Mr. TAVENNER. Who selected Mr. Stone to register?

Mr. O'CONNELL. Who selected him to register?

Mr. TAVENNER. Yes.

Mr. O'CONNELL. I imagine we had a discussion in the office and decided that whoever was involved would have to register with the——

Mr. TAVENNER. You had a discussion? You and who else?

Mr. O'CONNELL. Myself, Mr. Silberstein, Mr. Waybur, Mr. Stone, and at different times some of the other people who are listed on the committee stationery there. I can't remember just which one.

Mr. TAVENNER. Was Mr. Stone known to you to be a member of the Communist Party?

Mr. O'CONNELL. No; he was not. His father had been the dean of the school of journalism out at the University of Montana.

Mr. TAVENNER. Does that mean the son can't be an active member of the Communist Party?

Mr. O'CONNELL. I don't want to argue with you, Mr. Tavenner.

Mr. TAVENNER. Why present that as a reason?

Mr. O'CONNELL. I wanted to tell you how I knew Mr. Stone and how I happened to know him. He, of course, was a Montanan, and I knew him that way, and I knew him when I was in Congress. I think he was in the press gallery when I was in Congress for the Federated Press, if I remember correctly, but I certainly had no knowledge that Mr. Stone was a member of the Communist Party and have no such knowledge, even at this moment.

Mr. TAVENNER. Mr. Chairman, I think the record should show at this point Mrs. Mary Stalcup Markward at the instance of the Federal Bureau of Investigation entered the Communist Party in the city of Washington and served there in an undercover capacity and by reason of her diligence in her work she was elevated finally to the position of treasurer of the Communist Party for the District of Columbia.

She appeared before this committee and testified and among other things identified members of the newspaper club of the Communist Party in the District of Columbia. Of those persons identified as members of that club she named John B. Stone, and when asked to give the committee her knowledge of his activities stated that he had been active within the National Committee To Defeat the Mundt Bill, and stated that, "I know Rob Hall suggested him for membership due to his activity with the Progressive Party."

Was Mr. Stone active in the Progressive Party in Montana, when you knew him there?

Mr. O'CONNELL. Of course the Progressive Party—Mr. Stone was in Montana in the late twenties and early thirties and so on, when he might have been identified with the old Progressive Party of Bob La Follette and Senator Wheeler.

Mr. TAVENNER. Was he active in the Progressive Party in the District of Columbia?

Mr. SCHERER. I want to ask the witness the same questions I did about Silberstein. When did you last see Stone?

Mr. O'CONNELL. I think the last time I saw Stone was in 1948.

Mr. SCHERER. Where was that?

Mr. O'CONNELL. That was here in Washington, D. C.

Mr. SCHERER. In connection with what activities?

Mr. O'CONNELL. Doing press work for the National Committee to Defeat the Mundt Bill.

Mr. SCHERER. Is that the last contact you had with him?

Mr. O'CONNELL. Yes. I had no—that was the last contact and the only contact I have had with him outside of the fact that when he lived out in Montana and because of my political activity and prominence out there, I knew him at that time.

I was just wondering when he became—when Rob Hall nominated him for membership or whatever he did—does she date that any time?

Mr. TAVENNER. Her membership in the party was from 1943 to 1949, so it would be within the limits of that period.

Mr. O'CONNELL. I got the impression from what you said that he was recommended because of the work he had done in the National Committee to Defeat the Mundt Bill.

Mr. TAVENNER. No; I may not have stated that clearly. I would like to restate it.

When Mrs. Markward was asked as to her knowledge of Stone's activities within the National Committee To Defeat the Mundt Bill, she testified: "I know Robert Hall suggested him for membership"—that meant membership in the Communist Party—"due to his activity with the Progressive Party."

Mr. O'CONNELL. The Progressive Party wasn't organized until 1948.

Mr. TAVENNER. That would indicate that it must then have been about 1948 or 1949 when this occurred.

Mr. O'CONNELL. My distinct feeling—I don't know what he may have done, but my distinct feeling about Mr. Stone is he was not a member of the Communist Party as long as I knew him.

Mr. SCHERER. Do you know what Stone is doing today?

Mr. O'CONNELL. No, I really don't.

Mr. SCHERER. The last contact you had with him then was, as you said, 1949?

Mr. O'CONNELL. I would say, I think the last contact I had with him was in 1948.

Mr. SCHERER. Do you know what his activities were following 1948?

Mr. O'CONNELL. No; I really don't. I haven't kept up with him. I think—well, I know at the time he was writing some stories, children's stories, or something of that kind. He was talking about it.

Mr. TAVENNER. Did you select Stone as the publicity man for the National Committee To Defeat the Mundt Bill?

Mr. O'CONNELL. I probably had more to do with his selection than anybody because of course I knew him as a newspaperman.

Mr. TAVENNER. How many persons normally composed the staff of the National Committee To Defeat the Mundt Bill?

Mr. O'CONNELL. Actually in 1948 the only ones outside of Mr. Silberstein, Mr. Waybur, and one or two of those people on the letterhead, if they were in town and would come to the meeting, the actual people working in the office were Mr. Stone and myself and a stenographer.

Mr. TAVENNER. Did you have more than one stenographer at a time, usually?

Mr. O'CONNELL. I think when the situation, as far as the legislation was concerned, was critical we may have had additional stenographers to help get out additional material.

Mr. TAVENNER. Was Rose Clinton ever a member of your staff?

Mr. O'CONNELL. Not to my knowledge. I don't know anybody by the name of "Rose Clinton."

Mr. TAVENNER. The quarterly statement submitted by you for the period ended June 30, 1949, filed July 9, 1949, reveals that she was employed by your committee.

Mr. O'CONNELL. If she were, I certainly don't recollect or remember her. She was probably an ordinary stenographer. Her name means—I have no recollection, and it means nothing to me.

Mr. TAVENNER. Have you any recollection of her?

Mr. O'CONNELL. No; I can't, I think—does it show she was a stenographer there?

Mr. TAVENNER. Yes; shows she was paid a salary of \$250 for the month of June.

Mr. O'CONNELL. I can't remember. There could have been. I remember one little girl there and the name I remember is Marjorie. I think her first name was Marjorie. I don't know if that was in the 1948 period or the 1950.

Mr. TAVENNER. Mr. Chairman, I think the record should also show that according to the testimony of Mrs. Mary Markward, Rose Clinton was known to her as a member of the Communist Party in the District of Columbia and assigned to the Northeast Club of the Communist Party in this city.

In the course of her testimony Mrs. Markward said:

Rose Clinton, I believe she was active in the Committee To Defeat the Mundt Bill in 1949.

Mr. O'CONNELL. I wasn't in the city of Washington in 1949 in connection with the National Committee to Defeat the Mundt Bill.

Mr. TAVENNER. However, were you not chairman for the National Committee to Defeat the Mundt Bill during that period?

Mr. O'CONNELL. Yes.

Mr. TAVENNER. You signed quarterly reports showing who were employed and the amounts of salaries paid?

Mr. O'CONNELL. I am pretty sure the reports were sent to me in Montana in 1949, and I signed them.

Mr. TAVENNER. Are you acquainted with a person named Tom Buchanan?

Mr. O'CONNELL. I think he did the presswork for the committee in 1950.

Mr. TAVENNER. Did you employ him?

Mr. O'CONNELL. No. When I came down here in 1950 he had already been employed by Mr. Waybur or Mr. Silberstein; I don't know which. I think, wasn't he a reporter, had been a reporter for the Washington Star?

Mr. TAVENNER. Yes; he was until he was removed from that position. Did you know Tom Buchanan to be a member of the Communist Party?

Mr. O'CONNELL. No; I did not.

Mr. TAVENNER. Mr. Chairman, I think the record should also show that Tom Buchanan was identified in the testimony of Mrs. Mary Stalcup Markward as an ex-Washington newspaperman assigned to the Youth Club of the Communist Party when he became a member of the Communist Party in Washington, D. C.

Later he was transferred to the Newspaper Club of the Communist Party in Washington and since that time has been an employee of the Civil Rights Congress in Washington.

Mr. O'CONNELL. Does it state when he became a member of the Communist Party?

Mr. TAVENNER. I am not certain that it does. I do not have her testimony with me. But I am not certain as to the number of years of Communist Party membership before he was assigned to the Newspaper Club of the Communist Party.

Was Ruth Rifkin an employee of your committee?

Mr. O'CONNELL. I can't remember now. The name doesn't—wasn't she a notary public?

Mr. TAVENNER. She could have been a notary public.

Mr. O'CONNELL. Didn't she run in addition to being a notary public, didn't she run a mimeograph shop or something of that kind? That is the recollection that I have.

Mr. TAVENNER. According to your report covering the period of April 1950 she was employed in a secretarial capacity. She was paid for secretarial services.

Mr. O'CONNELL. I think she ran a secretarial service shop and did mimeographing and so on. That is my recollection.

Mr. TAVENNER. How was she employed by you?

Mr. O'CONNELL. I think we took particular materials to her sometimes to dictate and then to have her run off on mimeograph.

Mr. TAVENNER. Was she known to you to be a member of the Communist Party?

Mr. O'CONNELL. No, she was not.

Mr. TAVENNER. Mr. Chairman, I would like for the record to show Mary Stalcup Markward in the course of her testimony before this committee also identified Ruth Rifkin as a member of the Communist Party.

Mr. WILLIS. Was she assigned or had anything to do with the Newspaper Club of the Communist Party?

Mr. TAVENNER. No, sir. I am certain she was not, but I would like to turn to that testimony, if I can locate it. I think it important to read that testimony, Mr. Chairman.

Mr. WILLIS. I asked that question because the witness identified her as some kind of a secretarial service or mimeographing service.

Mr. O'CONNELL. My only recollection about her was that her shop was close to the Lawyers Guild office there and she did secretarial work and got out mimeographing and my connection with her was of course completely mechanical.

Mr. TAVENNER. Who selected her for the performance of their work?

Mr. O'CONNELL. I would imagine Mr. Silberstein told me she did that kind of work and where her office was and where her shop was.

Mr. TAVENNER. Were you acquainted with Elizabeth Sasuly?

Mr. O'CONNELL. Yes, I was.

Mr. TAVENNER. Was she employed by the National Committee To Defeat the Mundt Bill?

Mr. O'CONNELL. I am pretty sure she was. I think she was employed both in—well, I couldn't say whether she was employed both in 1948 and 1950 or just in 1948, or just in 1950, but my recollection is she was employed both of the times I was down here in 1948 and in 1950.

Mr. TAVENNER. Was she known to you to be a member of the Communist Party?

Mr. O'CONNELL. No; I had no knowledge that she was a member of the Communist Party or not.

Mr. TAVENNER. I think the record should show Elizabeth Sasuly appeared before this committee on July 12, 1949, at which time she refused to answer any and all questions put to her by the committee pertaining to her membership in the Communist Party or any questions relating to Communist Party activities in the city of Washington.

Mr. WILLIS. In light of that I think it is important for the witness to try to refresh his memory as to whether she was in fact employed on his return to Washington in 1950 or do the payroll records so indicate?

Mr. O'CONNELL. Of course, Congressman, also I had no knowledge she was before the committee.

Mr. WILLIS. I am not implying it. I want to be fair with you. You are a lawyer and you can see the point.

Mr. O'CONNELL. Yes.

Mr. TAVENNER. Possibly I can clear that up from reference to the records. The report covering the second quarter of 1950 by you to the House of Representatives shows that in April 1950 Elizabeth Sasuly was paid salary and expenses of \$359.89. Does that refresh your recollection?

Mr. O'CONNELL. Yes. My recollection, I knew she was employed by the committee, but I wasn't sure which year, whether it was in 1948 or 1950 or whether it was both of those years, as a matter of fact. But, I again, I repeat that I had no knowledge that she was or was not a member of the Communist Party.

Mr. TAVENNER. Returning now to Ruth Rifkin——

Mr. O'CONNELL. If I remember correctly, was Miss Sasuly cited for contempt?

Mr. TAVENNER. No.

Mrs. Markward was asked the question:

Are you acquainted with an individual by the name of Ruth Rifkin?

To which she replied: "Yes."

She was asked the question:

What was the nature of your relationship with Ruth Rifkin?

And Mrs. Markward testified as follows:

I got a transfer card from this individual together with a note saying if I contact her I was to say I was Evelyn's cousin. I believe she was living at McLean Gardens at that time. I called and made an appointment to meet her. She was quite cautious about the way this meeting should take place. We met at Union Station and had dinner later. I learned later she was working for the United Nations Relief and Rehabilitation Administration.

"Question. Where did she come from?

“Mrs. MARKWARD. New York.

“Question. What was the purpose of your contacting her?

“Mrs. MARKWARD. I contacted her as Evelyn’s cousin.

“Question. Did you pick her up on your rolls?

“Mrs. MARKWARD. Because of her working with the UNRRA in the State Department, I could not transfer her in our organization as such. However, I talked to her. She seemed extremely capable and a good Communist. So I spoke to Elizabeth Searle about seeing if she could be picked up by some organization that did take members working for the Government and Elizabeth Searle took the address and how to get in touch with her and said she would see what could be done.

“Question. Did you subsequently see Ruth Rifkin?

“Mrs. MARKWARD. Yes. She seemed disturbed by the manner in which she had been contacted and she asked if this other person was all right. I went to Elizabeth Searle about this and she said it was all right because this other person was in a position that it would be assumed she was calling about union business. Ruth Rifkin and I had dinner together at the time we had this conversation. Ruth Rifkin told me she was not in a position with UNRRA that she wanted to seem identified with a union. Elizabeth Searle told me to tell her not to call and talk to me over the telephone, so I had no further contact with her.”

That is the testimony relating to her.

Mr. O’CONNELL. Now I want to clarify—was she with UNRRA?

Mr. TAVENNER. According to the testimony of Mrs. Markward she was.

Mr. O’CONNELL. When?

Mr. TAVENNER. In the State Department.

Mr. O'CONNELL. I think UNRRA had been, I think it had actually been discontinued by 1948.

Mr. TAVENNER. Suppose it was discontinued.

Mr. O'CONNELL. What I want to point out is that my relationship with her is I brought her material to transcribe or to mimeograph and so on. My recollection is she was running a secretarial shop.

Mr. TAVENNER. Which of course was a period after UNRRA had been disbanded.

Mr. O'CONNELL. What I wanted to make clear is I had no connection with her while she was a Government employee.

Mr. TAVENNER. Mr. O'Connell, where did the committee have its printing done?

Mr. O'CONNELL. I really couldn't recollect.

Mr. TAVENNER. Was it the Superior Print Shop?

Mr. O'CONNELL. I am sure we have it in the report there.

Mr. TAVENNER. Your report so says.

Mr. O'CONNELL. Yes.

Mr. TAVENNER. Who was the owner of the Superior Print Shop?

Mr. O'CONNELL. I really don't know.

Mr. TAVENNER. Who made the arrangements for the Superior Print Shop to do the printing for your committee?

Mr. O'CONNELL. I just couldn't recollect who actually did it. I would imagine the stenographer in the office called them to come and said we had certain printing to do or something of that kind. I wasn't acquainted, I wasn't in Washington, D. C., with the various printing houses and my actual

work with the committee was largely on the Hill. I was rarely in the office. I was out here contacting Members of the House and Members of the Senate.

Mr. TAVENNER. Mrs. Markward in her testimony advised the committee that the operator of the Superior Print Shop was Tilla Minowitz, and she identified Tilla Minowitz as a member of the Communist Party and as a member of the Community Club of the Communist Party in Washington, D. C.

Tilla Minowitz was subpoenaed before this committee on July 6, 1949, and refused to answer any and all questions put to her by the committee dealing with her membership in the Communist Party.

Mr. WILLIS. When was that?

Mr. TAVENNER. July 6, 1949. The report covering June 1949 shows the payment of a bill for printing in the amount of \$195 and the report covering March 1950 shows the printing of letterheads and stationery on March 30, 1950.

Were you aware at that time that Tilla Minowitz had been identified and had been brought before this committee and questioned regarding her Communist Party identification?

Mr. O'CONNELL. No; I don't know Tilla Minowitz, I don't think I have ever seen her in my life and the name means absolutely nothing to me. The printing went to Superior Printing Co.

Mr. TAVENNER. You knew she was doing the printing for your company because you signed these reports.

Mr. O'CONNELL. I didn't know it was Tilla Minowitz. I knew it was the Superior Printing Co.

Mr. TAVENNER. Did your committee ever employ the firm of Presentation, Inc.?

Mr. WILLIS. What?

Mr. TAVENNER. Presentation, Inc.

Mr. O'CONNELL. I can't recall. If I could see the report—What does Presentation, Inc., do?

Mr. TAVENNER. We find a report covering June 22, 1949, which says—

Presentation, Inc., 2118 Massachusetts Avenue NW., 25,000 pamphlets, \$785.46—

as one of the items. Does that help you to refresh your recollection?

Mr. O'CONNELL. Well, I said before, in 1949 I was not down in Washington. Those reports were sent out to me to be signed as chairman, and I don't know Presentation, Inc. I don't know what they do, but that report was made up.

Mr. TAVENNER. Another bill in June and September of 1949 is for printing, done by Presentation, Inc., and the amount of the bill is \$1,075.38. Who selected Presentation, Inc., for this work?

Mr. O'CONNELL. I really wouldn't know. I don't know who did it.

Mr. TAVENNER. Notwithstanding your having signed the reports covering those employments in 1949 when you say you were not actually in Washington, we find in April of 1950 another printing of pamphlets on the Mundt bill was done by Presentation, Inc., for which there was a charge of \$300.

At that time did you know that a person by the name of Carl Marzani, an official of that corporation, was under sentence of the United States district court after having been convicted for concealing his Communist Party affiliations while an employee of the Federal Government?

Mr. O'CONNELL. No; I didn't know that. In fact, I didn't know Presentation, Inc., and didn't know anybody who was identified with it.

Mr. TAVENNER. Mr. O'Connell, is it not a fact that during the period that the Committee To Defeat the Mundt Bill used the offices of the National

Lawyers Guild, it also used the National Lawyers Guild telephone, bearing number District 3205, to which both telegrams and telephone tolls were charged to the National Lawyers Guild?

Mr. O'CONNELL. Yes; but with an understanding, as I remember, that whatever expenditure was made on the telephone or telegraph was to be paid by the National Committee To Defeat the Mundt Bill.

Mr. TAVENNER. Did you reimburse the National Lawyers Guild in full?

Mr. O'CONNELL. I really don't know. I went home directly after the adjournment of Congress in September of 1950 and what disposition was made after I left of those bills and so on by Mr. Waybur, I don't know.

Mr. TAVENNER. You say you don't know?

Mr. O'CONNELL. I don't know. As I said, my principal work was always up here on the Hill. I usually came up in the mornings about 10 o'clock or 9:30 or so and was up here until either adjournment of Congress or later, and so on, each day that I was here.

Mr. TAVENNER. Did Lillian Clott perform any services for the National Lawyers Guild while you occupied its offices as chairman for the committee to defeat the Mundt bill?

Mr. O'CONNELL. I can't recall. I know Lillian Clott and all that, but I can't recall whether she did or not.

Mr. TAVENNER. What were the circumstances under which you became acquainted with Lillian Clott?

Mr. O'CONNELL. As I remember, first of all her husband or ex-husband, Herman Clott, is I think legislative representative here for the International Union of Mine, Mill and Smelter Workers and I knew him and I think through him I was introduced to her. I think she later worked, if I remember correctly, with the United Electrical Workers.

Mr. TAVENNER. Yes; and prior to that time didn't she work in one of the Embassies here in Washington?

Mr. O'CONNELL. I don't know. I wouldn't know whether she did or not. When I came here Mr. Waybur, of course, was identified with, I think he was legislative representative from the United Electrical Workers and I went there lots of times to pick up my check and she was working in the office there, and I think Senator Wheeler's daughter was also working there, Frances Wheeler, and she introduced me to her.

Mr. TAVENNER. Did she do any work at any time for the National Committee To Defeat the Mundt Bill?

Mr. O'CONNELL. I don't remember that she did.

Mr. TAVENNER. Was Lillian Clott known to you to be a member of the Communist Party?

Mr. O'CONNELL. I didn't know that she was or was not.

Mr. TAVENNER. Mr. Chairman, I think the record should show that Mary Stalcup Markward in the course of her testimony identified Lillian Clott as a member of the Community Club of the Communist Party in the District of Columbia, and that when called as a witness before this committee in September 1954, in Dayton, Ohio, Lillian Clott refused to testify regarding her alleged Communist Party membership on the ground that to do so might tend to incriminate her.

Mr. WILLIS. Let's take an informal recess.

(Brief recess.)

Mr. WILLIS. The committee will come to order.

You may proceed, Mr. Tavenner.

Mr. TAVENNER. Mr. O'Connell, are you familiar with the testimony of Matthew Cvetic before this committee, relating to the activities of the

Communist Party in the western part of Pennsylvania in connection with the National Committee To Defeat the Mundt Bill?

Mr. O'CONNELL. No; I am not acquainted with that testimony.

Mr. TAVENNER. Mr. Matthew Cvetic became a member of the Communist Party at the request of the Federal Bureau of Investigation, and after working quite a number of years for the Federal Bureau of Investigation within the Communist Party, withdrew and testified fully before this committee regarding his experience within the Communist Party.

Mr. Cvetic testified that the District Committee of the Communist Party of western Pennsylvania established a branch or a unit of the National Committee To Defeat the Mundt Bill. This branch or unit occupied no office of its own but worked out of the offices of the Communist Party of western Pennsylvania in Pittsburgh.

Mr. Cvetic further testified that petitions and pamphlets published by the National Committee To Defeat the Mundt Bill were made available in Pittsburgh for distribution by Communist Party headquarters. He personally participated in the distribution of petitions and pamphlets published by the National Committee To Defeat the Mundt Bill at the instruction of the Communist Party functionaries in Pittsburgh.

Mr. Cvetic also testified that the officials of the Communist Party in western Pennsylvania referred to the National Committee To Defeat the Mundt Bill as "One of our organizations."

Mr. Cvetic revealed that the strategy and planning of the fight against the Mundt-Nixon bill in Pittsburgh was headed by the district organizer of the Communist Party. These plans were carried out by the Communist Party District Committee through the various trade unions, front organizations, Progressive Party, and other organizations which had been created or captured by the Communist Party in western Pennsylvania.

Did you confer at any time with any one from Pittsburgh with reference to the strategy and planning of the fight against the Mundt bill in that area?

Mr. O'CONNELL. No, sir, I did not. You mean by that a personal conference with somebody from there?

Mr. TAVENNER. Yes.

Mr. O'CONNELL. No, I did not.

Mr. TAVENNER. Were you aware of the fact that it was the Communist Party in that area which led and headed the fight against the Mundt bill in connection with the program of the National Committee To Defeat the Mundt Bill.

Mr. O'CONNELL. No, I was not aware of that. I think as far as the western area was concerned, I think the only contact we had was with Alexander Wright, who was I think executive secretary of the Progressive Party out there and I never talked with him personally.

I think he corresponded with the committee or sent some communication and we in turn sent a wire or material to him but I don't remember any contact with anybody else.

Mr. TAVENNER. Was he known to you to be a member of the Communist Party?

Mr. O'CONNELL. No, he was not. In fact, I don't know him. I have never even met him. Whatever communication we had was by mail or by wire, as I remember. I don't know him at all.

Mr. TAVENNER. He was identified by Matthew Cvetic as an active member of the Communist Party.

Mr. WILLIS. Alexander Wright?

Mr. TAVENNER. Alexander Wright, W-r-i-g-h-t.

Mr. O'CONNELL. Communication by the committee was as executive secretary of the Progressive Party.

Mr. TAVENNER. Isn't it a fact, Mr. O'Connell, that the situation which Mr. Cvetic described in Pittsburgh with reference to the strategy and planning by the Communist Party for the fight against the Mundt-Nixon bill was duplicated in many instances and many places throughout the United States?

Mr. O'CONNELL. As I said, my work was here in Washington and what actually took place, either in Pittsburgh or any other section of the country, I wouldn't know. Certainly my guess would be and certainly my feeling would be that inasmuch as the legislation was proscribing the Communist Party and affecting it, they certainly worked on it and certainly did what they could to defeat it. I have no doubt about that.

Mr. TAVENNER. Was the Progressive Party in the State of Washington active in promoting the fight against the passage of the Mundt bill?

Mr. O'CONNELL. Yes, sir.

Mr. TAVENNER. Wasn't a good part of the leadership of the Progressive Party in the State of Washington of Communist Party membership?

Mr. O'CONNELL. As far as the leadership of the Progressive Party was concerned, as I stated yesterday, Mr. Russell Fluent was the chairman; he was at the time of his chairmanship Democratic State treasurer in the State of Washington; I feel sure was not a member of the Communist Party; Mr. L. C. Hunterer was national committeeman; he was Democratic sheriff in Olympia in Thurston County and I am sure was not a member of the Communist Party.

I think at one time he used to be—out in the Western States we have Old Greenbacks and Old Populace and former followers of the Progressive Party under Bob La Follette, but Mr. Hunterer was not. Elsie Hoffman, who was national committeewoman, was president of the Democratic Women's Club in the city of Spokane, and I am sure was not a Communist.

Mr. TAVENNER. What about Tom Rabbitt?

Mr. O'CONNELL. Tom Rabbitt worked for a short time in the Progressive Party, I would say from probably April of maybe—I would say latter part of March or early part of April 1948 until latter part of May of 1948.

Mr. TAVENNER. What about William J. Pennock?

Mr. O'CONNELL. I am pretty sure that—well, Mr. Pennock had no office in the Progressive Party. I think he was a member of the executive committee. We had a very, very large executive committee, and I think he was a member of the executive committee.

Mr. TAVENNER. What about John Daschbach?

Mr. O'CONNELL. I don't remember any Progressive Party in activity in my time on the part of John Daschbach.

Mr. TAVENNER. Mr. O'Connell, will you tell the committee what action the Communist Party took in protesting to Judge Medina during the trial of the 11 Communists under the provisions of the Smith Act in Foley Square, New York?

Mr. O'CONNELL. Outside of what was in the ordinary press notices, I mean of my own knowledge, I don't know anything. I read about the trial and so on, but of my own knowledge I don't know anything.

Mr. TAVENNER. Did the leadership of the Progressive Party in the State of Washington take any active part in protesting to Judge Medina regarding the trial of the 11 Communists?

Mr. O'CONNELL. When was that trial?

Mr. TAVENNER. The trial was in 1949; I think the first motion of the trial was disposed of in the spring of 1949 before they began the trial on its merits.

Mr. O'CONNELL. I wouldn't want to say categorically one way or the other what action might have been taken by the Progressive Party in the State of Washington in that connection. I can't recall anything right now.

Mr. TAVENNER. Did you as executive secretary have any part in the activity?

Mr. O'CONNELL. I can't remember any.

Mr. TAVENNER. I hand you a photostatic copy of the June 6, 1949, issue of the Daily Worker and call your attention to an article entitled "Men of Labor and Civic Leaders Throughout Nation Voice Indignation," and I ask if you see in that article a reference to the fact that Henry Huff, chairman, and Clayton Van Lydegraf, secretary of the Washington State Communist Party, having wired Dennis in connection with those trials. Do you see that paragraph?

Mr. O'CONNELL. Yes; I see that paragraph.

Mr. TAVENNER. The subject of the wire is quoted as follows:

The northwest district is proud and inspired by the splendid fight the defendants are making against the biased conduct and vicious rulings of Judge Medina who is acting as prosecutor at Foley Square. The jailing of John Gates, Gus Hall, and Henry Winston has shocked and aroused our party and the massed forces to a new fighting pitch and widespread protest action.

Will you examine the article again, please, and state whether just above the paragraph pointed out to you there is the description of a telegram sent by Russell Fluent, chairman, and Jerry O'Connell, executive secretary of the Progressive Party to Judge Medina. Do you see it?

Mr. O'CONNELL. Yes, I see that.

Mr. TAVENNER. Will you read it into the record, please?

Mr. O'CONNELL (reading):

Russell Fluent, chairman, and Jerry O'Connell, executive secretary of the Progressive Party, wired Medina "Thousands of members are shocked at your willful, unlawful, and unconstitutional attempt to deny any defense to the Communist Party leaders now on trial."

Mr. WILLIS. That was sent by whom to whom?

Mr. O'CONNELL. This paper——

Mr. WILLIS. Alleged to have been sent by whom to whom? What does the paper say?

Mr. O'CONNELL. The paper says:

Russell Fluent, chairman, and Jerry O'Connell, executive secretary of the Progressive Party wired Medina "Thousands of members shocked at your willful, unlawful, and unconstitutional attempt to deny any defense to the Communist Party leaders now on trial."

Mr. TAVENNER. Did you send that wire?

Mr. O'CONNELL. I can't remember sending any such wire.

Mr. TAVENNER. Would you state in view of the report of the Daily Worker that the wire was not sent?

Mr. O'CONNELL. Well, I just have no recollection of sending that wire, myself sending it. It is a long time ago and I don't know who wrote that story or how it was acquired or anything. I can't remember. I just can't remember sending any wire in that connection.

Mr. TAVENNER. I desire to offer the document in evidence and ask that it be marked "O'Connell Exhibit No. 5" for identification purposes only, and to be made a part of the committee files.

Mr. WILLIS. It is so ordered.

Mr. O'CONNELL. I might say your showing me this paper is the first time that has ever been called to my attention.

Mr. TAVENNER. The sending of this telegram to Judge Medina was not the first occasion you have publicly come to the support of the Communist Party, is it?

Mr. O'CONNELL. Well, I wouldn't want to say that I came to the support of the Communist Party. As a progressive American, I believe that all people

regardless of their political opinions and beliefs are entitled to their political rights and civil liberties, whether they be Communists or not.

Mr. TAVENNER. According to your statement, do you consider that the Communist Party is a political party?

Mr. O'CONNELL. As far as my information is concerned, I know there are findings by the Congress that it is not, but——

Mr. TAVENNER. And also by the courts?

Mr. O'CONNELL. I don't recall any by the courts. I can't recall any case by the courts. Cases I can recall hold otherwise.

Mr. SCHERER. There are court cases.

Mr. O'CONNELL. Well, I don't want to argue about it. The thing is that as an American I feel that all people, regardless of their political opinions or beliefs, whether they are Communist or non-Communists, are entitled to their rights to their political opinions and beliefs and to their civil rights and to their civil liberties as provided by our Constitution. I say that as a progressive American who really honestly and sincerely believes it.

Mr. SCHERER. I think we all believe that.

Mr. O'CONNELL. I didn't get you, Congressman.

Mr. SCHERER. I said I think we all believe in the statement you made.

Mr. O'CONNELL. I was just expressing—that is my position on it. I just think it is dangerous to proscribe——

Mr. TAVENNER. You undertook in this telegram to accuse the judge of willful, unlawful, and unconstitutional attempt to deny the Communist Party leaders any defense.

Mr. O'CONNELL. As I said, I don't remember sending that wire.

Mr. SCHERER. Do you deny it?

Mr. O'CONNELL. Well, Congressman, I can't say. I just don't have any recollection of sending that wire, and I am saying that honestly and truthfully. I did think, and I still do think, that Judge Medina did restrict their defense at the trial.

Mr. SCHERER. We have had some of the lawyers who appeared before Judge Medina in that trial appear before this committee, and I am just wondering how Judge Medina withstood the assault that was made upon him, not only by those lawyers but by telegrams such as the counsel has just read, which, of course, I believe you sent.

Mr. O'CONNELL. Congressman, I really——

Mr. SCHERER. I think that was an attack on our judicial system that was a disgrace by those who participated in it.

Mr. O'CONNELL. As I have said, I really don't remember sending any such wire, and this is the first time that has ever been called to my attention.

Mr. SCHERER. The Communists and their followers talk about persecution. If ever a fine jurist was persecuted for attempting to do his job, as he was required to do by law, Judge Medina was so persecuted and smeared.

Mr. O'CONNELL. I have not condoned the conduct of the attorneys who were present at that trial.

Mr. SCHERER. I understand that.

Mr. O'CONNELL. I think—you have been here most of the time or a considerable part of the time I testified.

Mr. SCHERER. I might say your conduct has been exemplary, you have been very respectful and we certainly have no complaint. You have used, I am not criticizing you for it, what is used regularly in matters such as this, namely, the convenient and overworked answers, "I don't remember" and "not to my recollection, et cetera."

Mr. O'CONNELL. These things happened some 5 and 6 and 7 years ago and it is not easy and all of these people are actually strangers to me and all that. I came down here as a former Congressman, as a political figure in the Democratic Party in my own right and so on, I came here with a true and honest and firm belief in my opposition to the Mundt bill at that time. I think that it was wrong and I think it is wrong now.

Mr. SCHERER. I do not want anything I have said to appear as a criticism of you. As I said, I think you have been very polite and very respectful, but I think when certain statements are made it is incumbent upon members of the committee to comment upon those statements and clear the record.

Mr. O'CONNELL. I have been a Member of the House, sir, and I have full respect for the committee and I realize, I have sat up there and I have made my comments too as witnesses have testified.

Mr. SCHERER. Have you been given every opportunity to make explanations to answers you gave?

Mr. O'CONNELL. Yes.

Mr. SCHERER. I think that the members of the committee, then, have a right of course to comment upon statements you have made, the same as you have that privilege.

Mr. O'CONNELL. I have no complaint. I have been treated very fairly and respectfully and everything, I have made no complaint and I am doing my very level honest best to do a good job to answer the questions as they are given to me.

Mr. TAVENNER. Do you recall having spoken to the legislative conference of the Freedom Crusade Congress of the Civil Right Congress on the question of the indictment of the 12 Communist leaders?

Mr. O'CONNELL. I don't know what that Freedom Crusade is. Where was that supposed to be?

Mr. TAVENNER. In Washington.

Mr. O'CONNELL. State of Washington?

Mr. TAVENNER. No. It was in Washington, D. C. According to the Daily Worker of January 13, 1949, we find an article entitled "Congressman To Address Crusade," this paragraph:

The final panel on persecuted political minorities based on the indictments of the 12 Communist leaders will be discussed by Marcantonio, Dr. W. E. B. DuBois, and former Montana Congressman Jerry O'Connell.

Do you recall whether you did speak?

Mr. O'CONNELL. I am positive I did not. I have never met DuBois, never met him in my life. I have never been involved with him. Marc I know real well.

Mr. SCHERER. Do I understand you to say you don't recall whether you made the speech?

Mr. O'CONNELL. I am positive I never spoke at any such panel. Because I

Mr. TAVENNER. Do you recall having agreed to appear on that program?

Mr. O'CONNELL. No, I surely don't.

Mr. SCHERER. Is that the Daily Worker?

Mr. TAVENNER. Yes, sir.

Mr. SCHERER. Do you mean the Daily Worker can be wrong?

Mr. O'CONNELL. The reason I feel positive about that is I do not know Dr. DuBois, I have never met him, and I don't know him at all, and I know I was not on any panel where he talked. I know I didn't do that. Marc of course I knew real well, but I certainly don't remember speaking any place with Marc. I knew him.

Mr. TAVENNER. Did you speak, regardless of who accompanied you, on a program sponsored by the Freedom Crusade Congress?

Mr. O'CONNELL. What date was that?

Mr. TAVENNER. In January 1949.

Mr. O'CONNELL. I am positive I did not.

The other reason I feel sure about that is I left the State of Washington in October 1949, and I went back to Montana, and I know during that particular period I was in the State of Montana and my wife and I were living with her folks in Great Falls. I know my financial circumstances at that time were very slim and that I am sure, I am just positive that I never spoke at any such panel at that time.

Mr. TAVENNER. A report is made by the Special Committee on Un-American Activities that the Daily Worker issue of June 23, 1937, page 1, carried a letter addressed by you to David Leeds, business manager of the Daily Worker, official organ of the Communist Party, in which you state:

I feel that the Daily Worker is America's outstanding daily labor paper and has done much during these past crucial labor years to bring true and accurate accounts of labor conditions throughout the entire country to the attention of the people.

Did you write such a letter?

Mr. O'CONNELL. Yes, I wrote such a letter.

Mr. TAVENNER. Were you a subscriber to the Daily Worker?

Mr. O'CONNELL. No; I don't think—I was a Member of Congress at that time and the Daily Worker was delivered like a lot of other newspapers are to my office. My particular recollection of that—that is 1937—was that a man by the name of Paddy King was an avowed Communist in the State of Montana and is quite a familiar character around there came to my office and asked me if I would do this and I think I told him I would confine it

strictly to the labor coverage of what the Daily Worker was doing, coverage on labor, on strikes, on labor's rights, and so on. I wrote the letter at that time.

Mr. SCHERER. Was what you said in 1937 true about the Daily Worker?

Mr. O'CONNELL. That was written in 1937.

Mr. SCHERER. 1937. It surely has changed since I became acquainted with it. I have just been reading the account of some of the hearings we had in Newark a couple of weeks ago.

Mr. O'CONNELL. A lot of things have changed since 1937.

Mr. SCHERER. I said if what you stated in 1937 was true about it, the paper surely has changed since my acquaintance with it.

Mr. O'CONNELL. You will remember that was the period in which the CIO was beginning to organize and there was considerable, we had the little steel strike, we had Memorial Day massacre at Republic Steel near Chicago; there were many things happening in the labor situation at that time, and in my opinion the Daily Worker covered them better and did a better job than any other paper I knew of.

Mr. TAVENNER. You knew of course that the Daily Worker was the official organ of the Communist Party, and that it was required to be read by all Communist Party members in order to ascertain the directives that were being issued by the Communist Party.

Mr. O'CONNELL. I knew that it was the organ of the Communist Party but whether or not the members were required to do it, I was not a Communist, I didn't know.

Mr. TAVENNER. Why did you desire to give aid to the Communist Party by writing such a highly commendatory article to be printed in the Daily Worker?

Mr. O'CONNELL. I was dealing with the paper as such and particularly with its labor coverage as such. I think I confined my letter to that particular phase of the coverage that the Daily Worker did. There was no intent on my part to give aid or support to the Communist Party or anything——

Mr. TAVENNER. Was it your purpose to get aid or support for yourself from the Communist Party?

Mr. O'CONNELL. No, not aid and support from the Communist Party. I lived in western Montana and I was a Congressman from western Montana where we had a very, very militant tradition out there as far as labor was concerned. In that particular period and of course during the depression and at other times, labor leaders had been hanged out there, one labor leader was hanged to a railroad trestle——

Mr. TAVENNER. What has that to do with the question I asked?

Mr. O'CONNELL. What I am trying to point out is that I lived in a district, that I represented a district where there were a lot of militant labor leaders who read the Daily Worker, who actually, many of them I know, were not Communists, there wasn't any particular fear—there might have been 30 or 37 Communists in the whole State, nobody was ever bothered about them, nobody was afraid of them. As a politician they came to see me and talk with me, they came to other politicians there.

Mr. TAVENNER. Communists?

Mr. O'CONNELL. Yes. I can remember—in the 33d—in the 33d Legislature of Montana the Communist Party came and talked to the legislative assembly while the legislature was assembled and all that on the conditions that existed in the State at the time. There wasn't any, I am trying to put you in the pattern and in the spirit and in the situation that existed in that day. We weren't worried about them, we weren't afraid of them at all. We let them speak their piece, we let them say the things they wanted to say, if they had any contribution to make, to make it, and so on.

That is the attitude and that was not only true of them. We had heavy Socialist following, the Socialist Party out there, Norman Thomas had

decidedly strong feeling, in fact strong support out there and carried some of the counties in the State of Montana particularly in my district in the 1932 election.

What I am trying to do is put you in the mind and in the spirit that existed as far as I was concerned at that particular time. For instance, today I wouldn't write that kind of a letter to the Daily Worker.

Mr. TAVENNER. Did the same condition exist in Seattle, Wash., which you have described?

Mr. O'CONNELL. In the State of Washington you had about the same situation, in the history of the State there was——

Mr. TAVENNER. Let me ask you this question: Did members of the Communist Party in Seattle come to you as secretary of the Progressive Party to discuss Communist Party problems with you?

Mr. O'CONNELL. No; not to discuss Communist Party problems as such, both while I was executive secretary of the Democratic Party and executive secretary of the Progressive Party I can remember Mr. Henry P. Huff and Mr. Van Lydegraf, I think there was a Mr. Remes, and others who came to the Democratic Party office and to the Progressive Party Office and made certain representations about support of the legislation they were interested in, matters that they were taking a position in, and so on. I talked with them.

Mr. TAVENNER. Did that also include Tom Rabbitt and William Pennock?

Mr. O'CONNELL. Well, in my time out there Rabbitt and Pennock had never been identified or identified themselves as members of the Communist Party. As I told you, Rabbitt was Democratic State senator, Pennock was Democratic State representative and their dealings with me, they were delegates to the Democratic Central Committee in King County and their dealings with me were, as far as I knew, and ostensibly they dealt with me as members of the Democratic party.

Mr. TAVENNER. We have spoken of the Daily Worker. You say you were not a subscriber. Were you a subscriber to the Daily People's World?

Mr. O'CONNELL. I don't think I ever subscribed to the People's World. I got the New World. I was a subscriber to the New World and to the Washington New Dealer.

Mr. TAVENNER. You were acquainted, were you not, with a paper published in Chicago by the name of Midwest Daily Record?

Mr. O'CONNELL. I can't remember the Midwest Daily Record. When was that published?

Mr. TAVENNER. In the thirties. Do you recall having written a letter to the Daily Worker or made a public pronouncement recommending the publication of that paper?

Mr. O'CONNELL. No, I don't. Was it a Communist newspaper?

Mr. TAVENNER. Yes, it was.

Mr. O'CONNELL. Did it exist any time? Did it last any time?

Mr. TAVENNER. Not for a long period. I don't know the period it existed. As I understand, you do not recall anything about that paper?

Mr. O'CONNELL. I honestly can't remember anything about it. I didn't even know it existed as far as I can remember. When I was down here in Congress there were a lot of newspapers and I am trying to think of some of them. A lot of them came in.

Mr. TAVENNER. Mr. O'Connell, were you acquainted with John T. Bernard, former Member of Congress?

Mr. O'CONNELL. Yes, sir; I was a Member of the House in the 75th Congress with Mr. Bernard and I have seen him on several occasions since that time and I am acquainted with Mr. Bernard.

Mr. TAVENNER. I have before me the January 8, 1938, issue of the Daily Worker carrying an article entitled "I Am for the Loyalists and China,' Police Captain Declares at Lincoln Vets Trial." The last paragraph of this article states as follows:

A dinner in honor of Robert Raven was given by the friends of the Abraham Lincoln Brigade last night at the Aldine Club, 200 Fifth Avenue. Congressman John T. Bernard, Farmer-Laborite of Minnesota, paid tribute to the heroic death of Raven, and gave some account of his experiences while visiting Spanish battle-grounds with Jerry O'Connell, Congressman of Montana. Other speakers were Steve Nelson. * * *

Did you accompany John T. Bernard to the Spanish battlefields?

Mr. O'CONNELL. Yes, sir.

Mr. TAVENNER. When were you in Spain and for what period of time?

Mr. O'CONNELL. You are really getting into ancient history. My best recollection was that we were in Spain, I would say sometime in the month of October 1938 or maybe the latter part of October or early November 1938, somewhere in that period.

Mr. TAVENNER. How long were you there?

Mr. O'CONNELL. I would say about 3 weeks.

Mr. TAVENNER. As part of your experience there, did you and Mr. Bernard take part in the review of the American Brigade, Anglo-American Brigade, on the occasion of the celebration of the anniversary of the Russian Revolution? Do you recall reviewing the troops?

Mr. O'CONNELL. I remember reviewing the troops but not in connection with any celebration of the Russian Revolution. As I remember, the only troops we reviewed were troops that came up when there was a change of command. The command of the brigade was to be taken over by somebody, I can't remember who they were now, but certainly not in connection with any celebration of the Soviet Revolution. At least I certainly was not informed that that was the case. I had been active, while I was a Member of Congress, before I went to Spain I was very decidedly and very specifically on the side of the Spanish Republic, I did everything I could to promote American policy to help and to aid the Spanish Loyalists. They were the

legally elected government of Spain, they were being attacked by Hitler and Mussolini as I saw it, and in my opinion it was the beginning, in fact the first battlefield of World War II.

Mr. TAVENNER. Will you tell the committee, please, who invited you and the circumstances under which you made the trip?

Mr. O'CONNELL. Well, earlier in that year a group of Congressmen in the 75th Congress, we had a group of Congressmen known as the liberal bloc of Congress headed by Maury Maverick of Texas. The newspapers described us as all fairly young. I was only 27 at the time. We were described as Young Turks and out of that liberal bloc a group of us, 5 or 6 or maybe 4 or 5, went to see Secretary of State Cordell Hull in connection with the Spanish situation and also legislation which was pending with reference to invoking the Neutrality Act as it existed at that time against Germany and Italy for their intervention in Spain, and Mr. Hull told us as far as this Government was concerned there was actually no evidence of Spanish and German intervention or I should say German and Italian intervention.

I think I later, along with Congressman Coffee and Congressman Bernard and others, talked with David Niles, who was then executive assistant to President Roosevelt in connection with the situation. It was then suggested, I think just about the time Congress was adjourning, Mrs. O'Connell and I had been married on the 2d of January 1937, and we had had no honeymoon and were going to Europe.

My mother and father were both born in Ireland and I had always wanted to go there and we did go to Ireland, to England, France, and so on, had a reception at the Spanish Embassy, I would say probably about a month before adjournment or shortly before adjournment, Ambassador de Los Rios invited not only myself but Congressman Bernard and several other Congressmen to go to Spain and investigate what the situation was there.

Mr. TAVENNER. Was he the person who extended the invitation to go to Spain?

Mr. O'CONNELL. Yes. He was the one. We of course took care of our own arrangements here, got our passport from the State Department—I think we were issued special passports by the State Department. Our visas were procured.

Mr. TAVENNER. Was any contribution made to you for the expenses of this trip for you and your wife, either for transportation or otherwise?

Mr. O'CONNELL. No. We paid our own passage. I think we went over on the *Queen Mary* and came back on the *Normandy*. We paid all of our hotel expenses and we traveled by plane from Le Bourget to Croydon and paid for those. I spent about a month in Ireland where my folks were born and all those expenses were paid by me and in Spain we were the guests of the Spanish Republic and there were no expenses for hotel and transportation in Spain itself.

Our entry into Spain was expedited by the American Embassy in Paris. I think Robert Murphy was then Minister Plenipotentiary at the time and Acting Ambassador and he had Col. Steven Fuquay, who was military attaché of the American Embassy in Spain to meet us at the airport at Valencia.

Mr. TAVENNER. After your return to this country, did you then become affiliated with organizations which have since been designated as front organizations relating to the Spanish problem?

Mr. O'CONNELL. Well, I don't know whether you could define it as affiliated—I made speeches before many groups that were involved in the fighting in behalf of the Spanish Republic.

Mr. TAVENNER. Did you become one of the sponsors of the Medical Bureau and North American Committee To Aid Spanish Democracy?

Mr. O'CONNELL. Right now I don't remember whether I did, but I wouldn't be a bit surprised. I am sure I did everything I could——

Mr. TAVENNER. I find your name on the letterhead of that organization on July 6, 1938. Does that refresh your recollection?

Mr. O'CONNELL. I haven't seen it but if I am on there—I want to say I did everything I could to save the Spanish Republic. I felt very intensely about it. I am proud of what I did. I feel the same way about it today as I did then.

I think the position that I took as far as history was concerned was later in the establishment of the United Nations and disbarment of Franco Spain from the United Nations at least vindication of the position that I had taken. But in July of 1938 certainly that committee or that organization whose letterhead you say I am a sponsor on was not listed as a subversive organization or so described by anyone.

Mr. TAVENNER. An examination of the letterhead of American Relief Ship for Spain bearing date of September 3, 1938, reflects you as one of the sponsors of this organization. Do you recall that?

Mr. O'CONNELL. I don't recall it but I am sure it is true. As I said, I worked every way I knew how for defeat of Franco and for the saving of the Spanish Republic.

Mr. TAVENNER. Did you appear on a program of the Fourth National Congress of the American League for Peace and Democracy in Pittsburgh in November 1937?

Mr. O'CONNELL. Yes.

Mr. TAVENNER. November 26 to 28, 1937.

Mr. O'CONNELL. I remember I missed the Army-Navy game. It rained and I was anxious to get to it. I remember I spoke at that meeting.

Mr. TAVENNER. Was that in behalf of the Loyalist cause?

Mr. O'CONNELL. It was in connection with Loyalist Spain. I think there was a resolution pending in the Congress to invoke the Neutrality Act against Germany and Italy for intervention and I think also removal of the embargo which had been placed against Spain.

Mr. TAVENNER. Did you from time to time appear before various meetings of the Veterans of the Lincoln Brigade, and speak on the subject of the Spanish cause?

Mr. O'CONNELL. I don't remember how many times. My present recollection of that, which, of course, is some 17 or 18 years ago, is that I made 1 or 2 speeches at meetings of the Friends of the Abraham Lincoln Brigade.

Mr. TAVENNER. In the course of the making of those speeches did you become acquainted with Steve Nelson?

Mr. O'CONNELL. No, sir; I never ever met Steve Nelson; have never met Steve Nelson to this day.

Mr. TAVENNER. I notice in the Daily Worker issue of July 8, 1937, that you were listed to speak along with Earl Browder and others on July 19. This was prior to your trip to Spain?

Mr. O'CONNELL. Yes.

Mr. TAVENNER. Do you recall that?

Mr. O'CONNELL. Yes. As I remember from the date that was the first anniversary of the beginning of the Spanish War and it was a meeting, as I remember, in Madison Square Garden and the speakers included—I know Fiorello LaGuardia spoke there. I know Norman Thomas, the candidate for the Socialist Party spoke there; a Republican Representative in Congress also spoke there. I spoke as a Democrat.

Mr. SCHERER. Who was the Representative?

Mr. O'CONNELL. If I remember, he was from one of the New York districts, I am not too sure which.

Mr. SCHERER. Do you remember his name?

Mr. O'CONNELL. I really don't. The purpose of the meeting as it was outlined was to have a representative of all of the political parties speak at the meeting. Did Marcantonio speak there?

Mr. TAVENNER. He is listed as one of those.

Mr. O'CONNELL. At that time I am pretty sure Marc was a Republican Representative or had been a Republican Representative.

Mr. SCHERER. Marcantonio was a Republican Representative?

Mr. O'CONNELL. Yes; he was. He came to Congress as a Republican Representative.

Mr. SCHERER. I understand how that happened. Was he the one you are referring to or was it somebody else?

Mr. O'CONNELL. I am not sure. I know there was a representative of every political party that spoke there on the Spanish situation and in favor of the Spanish Republic.

Mr. SCHERER. I understand that, but might it have been Marcantonio you were referring to?

Mr. O'CONNELL. My remembrance is it was somebody else, but I don't want to—I am trying to think. As a matter of fact, he was from one of the silk-stocking districts of New York, as I remember.

Mr. WILLIS. We will adjourn until 2 o'clock.

(Whereupon, at 12:30 p. m. the committee was recessed, to reconvene at 2 p. m. the same day.)

AFTERNOON SESSION, JUNE 2, 1955

The subcommittee reconvened at 2 p. m.

Mr. WILLIS. The subcommittee will come to order.

Because of the pressure of legislative work, as we have gone along in these hearings it has been necessary to constitute and reconstitute the subcommittee.

Mr. Scherer could not be here this afternoon and the chairman has now appointed a subcommittee of my colleagues, Mr. Velde, and Mr. Doyle, and myself as chairman.

In view of the reconstitution of the subcommittee we will reswear the witness.

Do you solemnly swear that you will testify according to the truth, the whole truth, and nothing but the truth, before this subcommittee?

Mr. O'CONNELL. I do.

Mr. WILLIS. Proceed, Mr. Tavenner.

TESTIMONY OF JEREMIAH JOSEPH O'CONNELL— Resumed

Mr. TAVENNER. Mr. O'Connell, were you a member of the national committee of the International Labor Defense in 1940?

Mr. O'CONNELL. I don't know——

Mr. TAVENNER. The Daily Worker of May 3, 1938, reports that Jeremiah O'Connell was a speaker at a function of the International Labor Defense.

According to Equal Justice, page 4, of the November 1938 issue, Jeremiah O'Connell was one of the sponsors of the Christmas drive of that organization.

According to the May 1939 issue of Equal Justice, Jeremiah O'Connell was one of those who sent congratulations to the southern California district year book 1938 of the International Labor Defense.

According to a leaflet the summer milk fund drive, Hotel Pennsylvania, New York City, of June 13, 1940, you were listed as a member of that committee of the International Labor Defense.

Now, does that information refresh your recollection?

Mr. O'CONNELL. No. I mean I can't—I don't remember ever being elected to the international committee of the International Labor Defense, or selected for it.

I probably, as a Congressman, like on the milk fund, summer milk fund and Christmas fund, and so on, at that time the International Labor Defense used to send, I think Christmas presents to labor prisoners.

During my term in Congress I was particularly active in fighting for the freedom of Tom Mooney. My Dad had been in the miner's union, a member and executive for that particular period; he has always been interested. When I came here I introduced a resolution in the Congress asking for the freedom of Tom Mooney and for a pardon for him.

I think my best recollection is as far as the International Labor Defense is concerned that the matters I sponsored were around prisoners like Tom Mooney.

Mr. TAVENNER. Are you familiar with the fact that it has been cited as a Communist front organization?

Mr. O'CONNELL. I shouldn't say that I actually know that it has been cited, or when it was cited.

Mr. TAVENNER. Attorney General Tom Clark cited it as a subversive and Communist organization on June 1, 1948, and again on September 22, 1948.

Mr. O'CONNELL. It wasn't even in existence then.

Mr. TAVENNER. Probably not. Attorney General Francis Biddle, on September 24, 1942, cited it as a legal arm of the Communist Party.

This committee on January 3, 1939, again on January 3, 1940; on June 25, 1942; and on March 29, 1944, cited it. In this committee's citation it was referred to as the American section of the MOPR Red International of Labor Defense, often referred to as the Red International Aid.

It was subsequently combined with the National Federation of Constitutional Liberties to form the Civil Rights Congress.

Mr. VELDE. Mr. O'Connell, as a former Member of Congress, naturally you were interested in the citations of the Un-American Activities Committee and the citation of the Attorneys General. Surely you must have some recollection that these organizations were subversive and cited as subversive by duly constituted bodies?

Mr. O'CONNELL. Actually, I mean as far as the International Labor Defense is concerned, I think the latest, according to that record, that I was involved is sometime in 1940. I think its earliest citation was by this committee in 1939.

Then the Attorney General's citations were many years after that when it was actually in existence.

Mr. TAVENNER. 1942?

Mr. O'CONNELL. 1942.

Mr. TAVENNER. Yes, sir; you said many years later; 1942 is the date that the Attorney General first cited.

Mr. O'CONNELL. I thought you said 1948.

Mr. TAVENNER. There was one in 1948.

Mr. VELDE. Mr. O'Connell, I understood you to say that you didn't know that the International Labor Defense was a subversive organization or cited as a subversive organization.

Mr. O'CONNELL. I actually didn't know at the time I was involved there. I, for instance, know now that the International Labor Defense has been, and I have known it for some time in the past few years since it was cited.

Mr. VELDE. How long have you known it has been cited?

Mr. O'CONNELL. My best recollection would be that I have probably known since 1945, somewhere in there; maybe a little earlier, but certainly at this time I didn't know it.

For instance, I am out in the State of Montana. A lot of this material is not covered by the press in Montana, and it does not have any particular interest, and, of course, I was not involved; I was no longer a Member of Congress at that time.

I had a sincere desire, I actually believed, and felt that Tom Mooney had been framed, and I felt that he ought to be released from prison. I worked for his freedom.

I think, in one instance, as far as the International Labor Defense is concerned, I was going into Jersey City to speak against Mayor Frank Hague. The meeting that I was speaking at apparently was sponsored by Norman Thomas' Socialist Party, or they were the ones that had arranged it, and members of the International Labor Defense requested me not to speak, but I went there and spoke.

At that time, to my best recollection, Mike Quill was the New York labor leader and still is. He was prevailing upon me not to go in there and speak, but I did go into Jersey City and tried to speak there. I felt that Frank Hague was denying civil liberties and particularly freedom of speech.

Mr. VELDE. But at that time did you not realize that the International Labor Defense had been cited by your Government as being subversive?

Mr. O'CONNELL. Congressman, at that time I was 27, 28 years old. My political experience, particularly as far as Socialists were concerned, as far as Communists were concerned, and all of that, I had no training or study in Marxism-Leninism.

As a matter of fact, I had very little knowledge of what the differences were, what their division of opinion was, or anything of the kind.

My feeling was that both of them were for socialism and I didn't know what their particular division was.

Mr. VELDE. What I am getting at is this: As a Member of Congress, following your defeat as a Member of Congress, you certainly were interested in the committees of Congress, you certainly were interested in what the Attorney General of the United States was doing. It seems to me that you should have been cognizant of the fact that the International Labor Defense was cited as a subversive organization.

Mr. O'CONNELL. This is the first time today—no, for instance, this committee had cited the International Labor Defense at that particular date. Now, I learned later——

Mr. VELDE. Now, Mr. O'Connell, there have been a lot of witnesses appear before this committee with a lot less intelligence than you, with a lot less knowledge of political activities of our Government, and, of course, we realize that there were a lot of those people who became involved in the Communist Party and the Communist Party manipulations.

But I just cannot understand how you, as a Member of Congress, would not be cognizant of the fact that the International Labor Defense was cited as a

subversive organization.

I don't question whether you believed it was, or was not; or whether you believed that the Attorney General or this committee was right.

Mr. O'CONNELL. I said that I later knew, but at the particular time involved here, Congressman, it had not been, in my first connection with it, had not been cited by the committee as such.

I can't remember this milk fund in 1940, or whatever it was, but I presume it was to raise funds to provide milk for prisoners, labor prisoners, children of labor prisoners, and so on. I don't remember specifically about——

Now, as far as my particular situation was concerned, the way I felt about these things, I mean for instance whether it was Mooney or whoever it might have been, I made up my mind so far as my judgment was concerned, what I thought was right and what I thought was wrong.

Mr. VELDE. Certainly you have that privilege, as we all do.

Mr. O'CONNELL. And I worked to accomplish what I thought was right.

Mr. VELDE. I am not questioning your privilege, your right, to make up your own mind. I am questioning the facts, your statement that you did not know.

Mr. O'CONNELL. About the best way to explain it to you, I came out of a district, I was born and raised in Butte. Butte is a mining town——

Mr. VELDE. But you had been to Washington, D. C. Even before you ran for Congress you had been here.

Mr. O'CONNELL. Yes, I had gone to school here, yes.

In that particular day when I went to school here, as I remember, there wasn't any great discussion about Communists or Socialists or anything of that kind. When I went to school here in that day, I was in the——

Mr. VELDE. Mr. Chairman, I do not see that this argument is getting us anywhere.

Mr. O'CONNELL. The biggest thing of interest at that time was Al Smith and Governor Ritchie and other people's nominations for the Presidency.

Mr. TAVENNER. Mr. O'Connell, were you a member of the national committee of the American League for Peace and Democracy in 1939?

Mr. O'CONNELL. I don't know whether I was in 1939, but maybe in 1938 or 1937, and possibly 1939 I was a member of the American League for Peace and Democracy.

Mr. TAVENNER. How long were you a member that organization?

Mr. O'CONNELL. I really wouldn't know. Actually after I went back to Montana, outside of some communication and sponsorship, something of that kind, I had very little connection. As I remember, the League didn't last; I mean it didn't last very long.

Mr. TAVENNER. While you were a member of its national committee, did you take part as a speaker in various functions of the American League for Peace and Democracy?

Mr. O'CONNELL. I think I can remember about two speeches. I made a speech in Pittsburgh that you asked me about, and I made a speech in New York, at a banquet in New York.

Mr. TAVENNER. Did you remain a member of the national committee of the American League for Peace and Democracy until its dissolution?

Mr. O'CONNELL. When did it dissolve?

Mr. TAVENNER. In 1941.

Mr. O'CONNELL. Well, I couldn't say whether I remained a member all of that time. I don't know.

Mr. TAVENNER. During the course of the hearing before this committee the chairman read into the record minutes of an executive committee meeting of the American League for Peace and Democracy, held on January 23, 1939. I quote from what the chairman read into the record:

In connection with the legislative program it says: "Get lists of friendly Congressmen and have teas and luncheons for them."

A further idea of how they proceed is shown in the minutes of January 13, 1939, of the meeting held at the home of Mrs. Fowler, as follows:

"It was suggested that we make an attempt to get Congressmen to join the league. Mr. Smith will arrange for a luncheon meeting with Marcantonio and Jerry O'Connell to get their views on how to proceed. The idea is to make Congressmen part of an impressive list of sponsors."

and from the same minutes——

"Mr. Berrall announced a legislative office will be established in Washington over the weekend with Jerry O'Connell doing the congressional work and two assistants at the office."

Will you explain what your activity was among Congressmen to solicit membership in the American League for Peace and Democracy?

Mr. O'CONNELL. When was this supposed to be?

Mr. TAVENNER. The minutes of the executive meeting were January 13, 1939.

Mr. O'CONNELL. I was no longer a Member of Congress in 1939.

Mr. TAVENNER. I didn't say that you were.

Mr. O'CONNELL. Then I was supposed to head some kind of office here?

Mr. TAVENNER. Mr. Berrall announced that a legislative office will be established in Washington——

Mr. O'CONNELL. What is this Mr. Berrall? Who is he?

Mr. TAVENNER. Do you know him?

Mr. O'CONNELL. No; I don't know him.

Mr. TAVENNER (reading):

Mr. Berrall announced that a legislative office will be established in Washington over the weekend with Jerry O'Connell doing the congressional work and two assistants at the office.

Mr. O'CONNELL. As far as I am concerned he is talking out of thin air. I had nothing to do with any office. I wasn't in a legislative office down here for the American League for Peace and Democracy.

Mr. TAVENNER. Where were you in January 1939?

Mr. O'CONNELL. Well, my best recollection would be that in January 1939 I was back in the State of Montana. After I was defeated for Congress I started a weekly newspaper called Jerry O'Connell's Montana Liberal.

I am pretty sure I was back there getting that paper underway and getting it published and so on, trying to get subscriptions. I just think he is talking out of complete thin air because I certainly never came down here and did any kind of work like that, or talked to any Congressmen or had teas for them or anything.

Mr. TAVENNER. Do you recall when you left Washington at the end of the Congress in which you served?

Mr. O'CONNELL. I don't think after my defeat that I came back here at all. I was defeated, of course, in November 1938. I think my secretary came back and cleaned up what we had in the office and brought it back.

Mr. TAVENNER. Mr. Chairman, I would like the record to show that the American League for Peace and Democracy was cited as subversive and Communist by Attorney General Francis Biddle on September 24, 1942, in the following language:

Established in the United States in 1937 as successor to the American League against War and Fascism in an effort to create public sentiment

on behalf of the foreign policy adapted to the interest of the Soviet Union. The American League for Peace and Democracy was designed to conceal Communist control in accordance with the new tactics of the Communist International.

Mr. VELDE. Mr. Chairman, may I inquire a little further on that?

Mr. WILLIS. Certainly.

Mr. VELDE. Were you acquainted with any of the leaders of the movement of the American League for Peace and Democracy?

Mr. O'CONNELL. Well, about the only one I can remember, that stands out in my mind, was Dr. Harry F. Ward.

Mr. VELDE. Do you know Dr. Harry F. Ward?

Mr. O'CONNELL. I knew him at that time.

Mr. VELDE. You still know him, do you not?

Mr. O'CONNELL. Well, I think if he walked in the room I don't know whether I would recognize him. I would say it has probably been 10 or almost 15 years.

Mr. VELDE. At that time he was head of the Methodist Federation of Social Action. I presume you know that, do you not?

Mr. O'CONNELL. My impression was that he was head of this organization.

Mr. VELDE. Will you answer my question? Did you know that he was head of the Methodist Federation for Social Action at that time?

Mr. O'CONNELL. No, I really didn't know whether he was or not. My impression was that it was somebody by the name of Jack McMichael that was head of that.

Mr. VELDE. If my memory serves me correctly, it was not until after that time. It was 1942. Am I right, that Jack McMichael became head of the

Methodist Federation for Social Action?

Mr. O'CONNELL. This was quite a while ago.

Mr. VELDE. What contact did you have with Harry Ward as far as the American League for Peace and Democracy was concerned?

Mr. O'CONNELL. About the only contact I had with him, I don't know whether he personally, but somebody before him, asked me to speak at a convention or meeting they had out in Pittsburgh in November 1937.

Then there was a banquet as I recall; I think after that time, something in the early part of 1938, in New York, where he asked me to speak and, of course, he presided at the banquet in New York. I don't know whether it was at Pittsburgh, or whether he resided there, or not, but I remember his presiding.

Mr. VELDE. Do you have any idea why he asked you to speak before the meeting?

Mr. O'CONNELL. I think because of my position on foreign policy and particularly on Spain at that time.

Mr. VELDE. Did you know any other leaders in the movement for the American League for Peace and Democracy?

Mr. O'CONNELL. The only one I recall now is Dr. Ward.

Mr. TAVENNER. Possibly I can refresh his recollection on that. Wasn't Earl Browder one of the leaders?

Mr. O'CONNELL. I don't know. I really don't know. If he were, any connection I had with the league—I mean I had certainly nothing to do with him. I mean, he wasn't involved at the meeting that I spoke to in New York or the meeting I spoke to in Pittsburgh. I never saw Browder or knew he was involved in it.

Mr. TAVENNER. In the extract from the minutes of the executive meeting which I read a few moments ago——

Mr. O'CONNELL. Where was this executive meeting?

Mr. TAVENNER. It was held in the home of Mrs. Fowler, on January 13, 1939. Now, it was suggested at that meeting, according to what I read, that a person by the name of Mr. Smith would get in touch with Marcantonio and Jerry O'Connell to get their advice on how to proceed.

Did anyone confer with you as to how to proceed to get Congressmen to lend their names as sponsors so as to form an impressive list for the American League for Peace and Democracy?

Mr. O'CONNELL. No; certainly nobody got in touch with me. I don't know of any Smith who got in touch with me. I know I never had anything to do; I never came down here and tried to give Congressmen teas. I don't know who this Mrs. Fowler is; I don't know who Berrall is.

I think they were talking through their hat so far as I was concerned. I mean, I can't speak for Marc.

Mr. TAVENNER. Do you recall having been a speaker at the function of American Friends of the Chinese People in June of 1938?

Mr. O'CONNELL. Yes; that was in New York, was it not? A banquet in New York.

Mr. TAVENNER. Yes.

Mr. O'CONNELL. Or was that a meeting here in Washington? I think that was just after the Japanese aggression in China.

Mr. TAVENNER. Are you now aware that the American Friends of the Chinese People has been cited by this committee as a Communist-front organization?

Mr. O'CONNELL. No; I am not aware of that even now.

Mr. TAVENNER. It was so cited on March 29, 1944.

Mr. O'CONNELL. I never got copies of the hearings or deliberations or decisions of the committee. Out there our press, unless it is specifically related to something out there, rarely carries any of this material.

Mr. TAVENNER. The November 1948 issue of the Far East Spotlight reflects that you sent greetings to the Communist, Madame Sun Yat-Sen under auspices of the Committee for a Democratic Far Eastern Policy. Do you recall having done that?

Mr. O'CONNELL. No; I really don't recall having done it, but I don't deny that I did. I have tremendous respect for Madame Sun Yat-Sen. I wouldn't be a bit surprised.

Mr. TAVENNER. Will you tell the committee whether or not you were affiliated with the Committee for a Democratic Far Eastern Policy?

Mr. O'CONNELL. Affiliated with it?

Mr. TAVENNER. In any way; yes.

Mr. WILLIS. What is the name of that committee?

Mr. TAVENNER. A Committee for a Democratic Far Eastern Policy.

Mr. O'CONNELL. I don't remember——

Mr. TAVENNER. When you say you probably did join in such a greeting, can you recall the circumstances under which the Committee for a Democratic Far Eastern Policy obtained your assistance?

Mr. O'CONNELL. No; I really don't recall how it was done or who contacted me, or who asked me or anything. I am sure that if somebody asked me to send a greeting to Madame Sun Yat-Sen I might have done it.

Mr. TAVENNER. The record should show at this point that the Committee for a Democratic Far Eastern Policy was cited as a Communist organization by Attorney General Tom Clark on April 27, 1949.

Were you acquainted with Mother Bloor?

Mr. O'CONNELL. Yes; I knew Mother Bloor.

Mr. TAVENNER. What were the circumstances under which you knew her?

Mr. O'CONNELL. I am pretty sure that she came here to Washington and I was introduced to her here in Washington when I was in Congress, or if not, I probably——

Mr. VELDE. Did you know her to be a member of the Communist Party?

Mr. O'CONNELL. Yes.

Mr. VELDE. How did you know she was a member of the Communist Party?

Mr. O'CONNELL. I think she said she was and was an avowed Communist. I don't think she hid it or anything of that kind.

Mr. WILLIS. What is the name of that person?

Mr. O'CONNELL. Mother Bloor.

Mr. TAVENNER. B-l-o-o-r.

Mr. O'CONNELL. As I recall, she came to see me in connection with my resolution in behalf of freedom for Tom Mooney. I am pretty sure that is how I met her.

Mr. TAVENNER. Did you send her this greeting on her 75th birthday:

It affords me great pleasure to add my word of commendation and praise to Mother Bloor and to wish her well on the occasion of the celebration in her honor. When the final history of the movement of labor throughout the world is written, I know that proper tribute will be paid to her for her militant and unceasing fight for the betterment of the classes that toil and I am happy and proud to be one of those who join in paying honor and tribute to her on this day of memorable celebration. With the sender's personal regards and every good wish, I greet her.

Did you send such a greeting?

Mr. O'CONNELL. I don't know. When was this supposed to be sent?

Mr. TAVENNER. On her 75th birthday.

Mr. O'CONNELL. I mean, when was that?

Mr. TAVENNER. I am not certain as to the date.

Mr. O'CONNELL. I mean she was a real character. I am trying to recall. My dad was killed in a strike out in Butte and another organizer of the miners union was taken and hung at the Milwaukee trestle there. Whether Mother Bloor came out during that period or not, I really don't know.

But she, at least when I was—she was a very old lady.

Mr. TAVENNER. I can give you the date. It is July 18, 1937.

Mr. O'CONNELL. It was her 75th birthday?

Mr. TAVENNER. Yes.

Mr. O'CONNELL. I can't recall the wire. I don't remember sending it, but I wouldn't deny that I had greeted her on her 75th birthday.

Mr. TAVENNER. Was that part of a plan of a group of people to add to her celebration?

Mr. CONNELL. I mean, I can't recall any of the facts.

I don't know who held the celebration, or under what auspices.

Mr. TAVENNER. Let me see if I can refresh your recollection:

It is a fact that there was a celebration committee established to celebrate the 75th birthday of Mother Bloor, an open Communist in this country, throughout the width and breadth of the land, and that you were a member

of that celebrating committee? Or, I should correct that and say that you were a sponsor of that celebration committee?

I have before me a letterhead showing that Congressman Jerry J. O'Connell was one of a list of sponsors for that celebration.

Mr. CONNELL. I can't recall the circumstances now, but as far as Mother Bloor was concerned, I am sure that I would have sent her some greetings on her 75th birthday, and if I am listed there as a sponsor—I don't recall it now, but I don't deny that I was.

Mr. TAVENNER. I desire to introduce the document in evidence, and ask that it be marked "O'Connell Exhibit No. 6" for identification only, and to be made a part of the committee files.

Mr. WILLIS. It is so ordered.

Mr. TAVENNER. The National Federation for Constitutional Liberties in January 1943 addressed a message to the House of Representatives critical of the Dies committee and calling for its abolishment. A number of signatories appear to that letter and among them appears your name. It appears in this way:

I hereby join in signing the January 1943 message to the House of Representatives opposing renewal of the Dies committee.

There were a number of signatories, including Jerry O'Connell. Do you recall that?

Mr. CONNELL. I don't recall, but I voted against the creation of the Dies committee in 1938 and I have constantly opposed it all the time it was in existence.

Mr. TAVENNER. Now, in asking the question I am not critical in any sense and don't mean it in any sense, because of your decision to oppose a congressional committee. That is a right that anyone has.

Mr. CONNELL. Well, I was a Member of Congress and I had a right to vote against it.

Mr. TAVENNER. Not only as a Member of Congress, but as a citizen you had that right. I don't intend it in any way as critical, but my purpose in asking it is to find out what connection you had with the National Federation for Constitutional Liberties which put out this message.

Mr. CONNELL. So far as I can remember they probably sent me a copy of that message and asked me if I would join in it. And then I think I was the sponsor of a call to organize or set up the National Federation for Constitutional Liberties.

Mr. TAVENNER. I think I have already read into the record the citations by the Attorneys General Clark and Biddle of that organization. So I will not repeat it.

I asked you this morning about the activity of John Daschbach in connection with the Civil Rights Congress in the State of Washington. According to the committee's information, he was chairman of the steering committee of that organization. Is that true?

Mr. O'CONNELL. I don't know whether he was chairman of the steering committee. I remember he was the director in charge of the Civil Rights Congress office in Seattle.

Mr. TAVENNER. Didn't he name you as one of the members of the steering committee?

Mr. O'CONNELL. If he did, I had no knowledge of it. When did he name me? When was this done?

Mr. TAVENNER. In October of 1948.

Mr. O'CONNELL. He may have put me on there, but I never served as a member of the steering committee in the Civil Rights Congress.

Mr. TAVENNER. Why didn't you?

Mr. O'CONNELL. Well, I just remember I didn't. In October of 1948 particularly we were in the midst of the 1948 campaign and I was the executive secretary of the Progressive Party.

Mr. TAVENNER. The campaign would have been over in November; would it not?

Mr. O'CONNELL. Yes, sir; it would have been, but I mean from October—October is always involved in politics, October is the month when the general election campaign is carried on.

He, of his own volition, may have made me a member of the steering committee, but I certainly don't remember getting any notification and I certainly know I didn't serve on the steering committee.

Mr. TAVENNER. Mr. O'Connell, you have repeated a number of times during the course of the testimony your denial of any knowledge of Communist Party membership on the part of Tom Rabbitt and William Pennock while you were in the State of Washington.

Now, I have examined the testimony taken at the Canwell hearings—which occurred in 1948; did they not?

Mr. O'CONNELL. As I remember, there were two hearings out there. There was one in 1947—I think there was a hearing in 1947, and one in 1948.

Mr. TAVENNER. The first hearings were conducted from January 27, to February 5 of 1947, and subsequent hearings were, or at least the report was made in 1948. I am not sure whether the bulk of the hearings were in 1947 or in 1948.

Mr. O'CONNELL. I think, as I remember, the longer hearings were in 1947 and then there were some shorter hearings held in 1948.

Mr. TAVENNER. Now, I have examined this testimony and I find that Louis Budenz identified Tom Rabbitt, as a member of the Communist Party during the course of that hearing. He was the first witness.

Mr. O'CONNELL. If the committee please, I think Mr. Budenz at that hearing was asked questions about whether or not I was a member of the Communist Party and I think the records will show there that he didn't definitely say that I was. He said that there was some discussion about me in Communist Party headquarters, and that I had a good record in Congress and the Communists thought I was——

Mr. TAVENNER. I will give you an opportunity to explain that a little later.

Mr. O'CONNELL. Don't let me forget because I sued Mr. Budenz about it.

Mr. TAVENNER. I will give you an opportunity to explain that.

Mr. WILLIS. Sued whom?

Mr. O'CONNELL. I sued Mr. Budenz for the statements that he made.

Mr. TAVENNER. Mr. Ward F. Warren identified Thomas Rabbitt as a person he knew to be a member of the Communist Party, that he sat in closed party meetings with Thomas Rabbitt.

Senator James Sullivan identified Thomas Rabbitt as a member of the Communist Party.

Kathryn Fogg, K-a-t-h-r-y-n, identified Thomas Rabbitt as a member of the Communist Party, and described fraction meetings which he attended with her.

Jess Fletcher, who was a well-known member of the Communist Party in Seattle, identified Thomas Rabbitt as a member of the Communist Party and stated that he had sat in many Communist Party meetings with him and that he had attended, that Rabbitt had attended, Communist Party meetings in his home; that is, in Fletcher's home.

Nat Honig identified Thomas Rabbitt as a member of the Communist Party.

Harriett Riley identified Thomas Rabbitt as a member of the Communist Party.

H. C. Armstrong identified Rabbitt as a member of the Communist Party.

Now, you knew at the time of those hearings that Thomas Rabbitt during those hearings had been identified as a Communist Party member by numerous individuals; didn't you?

Mr. O'CONNELL. I knew that at those hearings those people whom you have named had said that he was a member of the Communist Party.

Mr. TAVENNER. When I asked you that question, you told us that you had never heard that Thomas Rabbitt was a member of the Communist Party?

Mr. O'CONNELL. No; I don't think I said I ever heard. You asked if I knew that he was a member of the Communist Party, and I said no, I didn't know.

Now, I could go through, and I don't want to take the time of the committee, I could tell you like, for instance, Armstrong, Sullivan, and all of the others, not all of the others, many of those, Kathryn Fogg, were all members of the State legislature, and they had various fights and conflicts and so on, and some of them were eliminated from the legislature, and some weren't, and so on.

I could go through, Jess Fletcher was in the building-service union of which Rabbitt also was a member. There was fighting and division and dissension there.

Now, I think in view of all this, I think it ought to be remembered I came out in the State of Washington in August of 1944 and many of these things that have gone on, and so on, I know nothing of, or knew anything about it.

As a matter of fact, one of the principal jobs I had in the Democratic Party was to try to smooth out a lot of the fighting and dissension that had gone on between the so-called conservative and progressive wings of the Democratic Party out there. It was a job that I was apparently quite successful in.

Mr. TAVENNER. Did you attend a number of meetings, the purpose of which was to oppose the holding of the Canwell hearings?

Mr. O'CONNELL. No; I mean the Progressive Party had meetings and, of course, to oppose the Canwell committee.

Mr. TAVENNER. Were you bitterly opposed to the conduct of those hearings?

Mr. O'CONNELL. Decidedly so.

Mr. TAVENNER. Was the hearing picketed?

Mr. O'CONNELL. The hearing was picketed; yes.

Mr. TAVENNER. Were you in the picket line?

Mr. O'CONNELL. I wasn't actually in the picket line.

Mr. TAVENNER. Did you take part in the picketing?

Mr. O'CONNELL. I was there and I was encouraging the picket line to be orderly and to make sure that its conduct was correct and so on.

Mr. TAVENNER. Were you arrested in connection with a disturbance calculated to break up those hearings?

Mr. O'CONNELL. I was arrested for disturbing the peace and disorderly conduct, but I was acquitted on that charge.

Mr. TAVENNER. So you were keenly interested in the Canwell hearings?

Mr. O'CONNELL. I was decidedly opposed to the Canwell committee. As a matter of fact, of the 7 members of the committee, I think we eliminated 6 of them in the following elections.

Mr. TAVENNER. You knew very well that Tom Rabbitt had been identified over and over again in the course of those hearings as a member of the Communist Party?

Mr. O'CONNELL. I, of course, was not inside the meetings. I mean, I didn't hear a lot of the testimony.

Mr. TAVENNER. Do you mean to tell us that you didn't know that Tom Rabbitt had been identified as a member of the Communist Party?

Mr. O'CONNELL. I knew, for instance, in the press and the press reports, and from information given to me that various people in there had said that Rabbitt and others were members of the Communist Party.

Mr. TAVENNER. Then we cannot rely on your statement of this morning and yesterday when I asked you whether or not you knew that Tom Rabbitt, or had heard that Tom Rabbitt was a member of the Communist Party when you were dealing with him in the pension union and in the work of the Progressive Party?

Mr. O'CONNELL. Now, I said, and if my testimony is that I had not heard, I want to change it, but I said I did not know of my own knowledge and my testimony is that I did not know of my own knowledge and even today I do not know of my knowledge that Rabbitt is a member of the Communist Party.

As I understand it, he has not admitted that he is. I think according to your report he refused to testify and invoked the privilege of the fifth amendment as far as he was concerned.

Mr. TAVENNER. Didn't almost the same witnesses identify William Pennock as a Communist Party member during those same hearings?

Mr. O'CONNELL. That is correct.

Mr. TAVENNER. So what is true with regard to Mr. Rabbitt, is true with regard to Mr. Pennock?

Mr. O'CONNELL. My testimony is that I didn't know of my own knowledge that they were members of the Communist Party.

Mr. VELDE. You stated you did have a suspicion that they were members of the Communist Party at the time you were dealing with them in the pension union. Now, will you tell this committee upon what you based that suspicion?

Mr. O'CONNELL. Largely, I was decidedly surprised when I heard the testimony of many of the people who testified in the Canwell hearings. I was surprised by Kathryn Fogg who, for instance, was a Democratic leader in South King County whom I knew real well. I didn't dream she was a member of the Communist Party or had been one. When she came and testified that she had been a member of the Communist Party and had met in meetings I was certainly surprised.

And H. C. Armstrong——

Mr. VELDE. When did you first suspect that Rabbitt and Pennock were members of the Communist Party?

Mr. O'CONNELL. Well, the first suspicion that I had was actually around the period of time of those hearings out there. Up to that time it had been my job as executive secretary of the Democratic Party, I had to cover the whole State of Washington. I went around on tours and trips and speaking schedules and so on, and my contact with Rabbitt and Pennock largely during the first 2 years I was out there, 1945 and 1946, really was when I would come in to talk to a meeting of the King County Democratic Central Committee that they were sitting on as delegates, Democratic delegates from the 35th Legislative District.

Mr. VELDE. Yet they were district committee members of the Communist Party in the State of Washington.

Mr. O'CONNELL. That I do not know.

Mr. VELDE. It was fairly well known among politicians at least that they were; is that not true?

Mr. O'CONNELL. No, I don't think so because—of course, I was completely dependent upon information from Democratic Party leaders out there who had been active in the Democratic Party for a long time. For instance, Rabbitt and Pennock were on various committees all through the Democratic Party and were actually, of course, members of the legislature, 1 in the senate and 1 in the house.

Mr. TAVENNER. Were they working with the Progressive Party after that?

Mr. O'CONNELL. Yes, but, my position as far as Rabbitt and Pennock—today it is easy to go back 5 and 6 years and the developments that have gone on and the exposures that have been made and so on, have been much greater in the past than they were then. It was not my job to determine whether Rabbitt or Pennock was a Communist.

Mr. VELDE. We acknowledge that, of course.

Mr. O'CONNELL. As far as the Democratic Party was concerned, we had certain platforms, certain programs.

Mr. VELDE. But it is difficult for me to believe in your associations, the various associations you had with them, that you did not know that they were members of the Communist Party. I want to say that with all respect to you as a former Member of Congress.

Mr. O'CONNELL. I didn't like Rabbitt; I had very little to do with Rabbitt. I fired him as a Progressive Party staff man in about May of 1948.

My first connection with him, where I was close to what he was like and what he did and so on, all that was from about the latter part of March 1948 down until May and in May of 1948 I removed him from the staff of the Progressive Party. I didn't really like him.

Now, up until Bill Pennock, actually I had talked with Bill Pennock many times and he was much more, I would say, a real Democrat. He was in the Democratic Party conclaves; in their meetings and so on, and, of course, a much more personable fellow and all that, but until Bill Pennock actually announced, and regardless of this testimony that is there, and I talked with Bill Pennock after this testimony was given, and he vociferously denied that he issued statements in the papers and in the press and everything and pension union statements were made, up to the minute Bill Pennock made an open statement just before he was going on trial in the Smith Act cases in 1953 or 1954, whenever they were out there, I certainly had some real, real doubt whether Bill Pennock was a member of the Communist Party.

And I think you will find that pretty generally out there, if you went out and talked to ordinary people out there, who were working in the Democratic Party, chairmen and State committeemen and so on, and all of that kind.

Mr. VELDE. Well, it is entirely possible.

Mr. O'CONNELL. For instance, Governor Wallgren, who had been in the Congress for 10 years, and had been United States Senator for about 6 years, Governor Wallgren appointed Pennock to a position as assistant superintendent of institutions out there.

Mr. TAVENNER. However, that wasn't after 1948.

Mr. O'CONNELL. No, that was in 1945.

Mr. VELDE. At that time, how would you determine in your own mind whether or not a person was a member of the Communist Party? What standards would you use? I am talking about the Wallace campaign.

Mr. O'CONNELL. About which campaign?

Mr. VELDE. The Progressive campaign with Wallace. What standards would you use to determine whether or not a man was a Communist?

Mr. O'CONNELL. Taking Rabbitt specifically, the reason I removed him as a member of the staff in the Progressive Party in 1948, in 1948 the Progressive Party was under attack, particularly nationally, as being Communist controlled and Communist dominated and being a Red party and so on, and we had, particularly in South King County, an organizer by the name of Belden who was a member of various veterans' groups out there.

Belden was organizing Progressive Party clubs——

Mr. VELDE. With all due respect, I think you could tell what standards you would use.

Mr. O'CONNELL. When Belden was asked by people whether or not this was a Red party, Belden, of course, would deny it and go on and say the kind of

people who were in it.

Rabbitt was critical of the way that he said that it was not a Red party and the inference which he left which was in effect a denunciation of the Reds and all of that and, of course, I figured if he is touchy about that on the subject and all that, why, there is probably some basis for it, for the charges that have been made against him.

Mr. VELDE. You have not answered the question at all, in my opinion. Let me ask you this: You were familiar with the fact that the Soviet Union had established an espionage network here in the United States by 1948, were you not?

Mr. O'CONNELL. No; I was not. I don't know whether that is true even today. I mean, you asked me and I don't know. I would have to be shown and somebody would have to show me where they are and the proof. I don't know whether that is true.

Mr. VELDE. Are you familiar with the various Smith Act trials?

Mr. O'CONNELL. I have read a lot about the Smith Act trials; yes, sir. But in none of the Smith Act trials they were not charged with espionage and treason or anything of that kind.

Mr. VELDE. No; of course they were charged with advocating the overthrow of our form of government by force and violence.

Mr. O'CONNELL. It even goes back further than that, conspiring to teach and all that, but in none of those trials I don't know any development of espionage or spying. Of course, I am not familiar with all the testimony. I have not read it all.

Mr. VELDE. Are you familiar with the Rosenberg case?

Mr. O'CONNELL. I am familiar with the Rosenberg case.

Mr. VELDE. Certainly from the result of that you must have had the suspicion that there was an espionage network operating in this country.

Mr. O'CONNELL. Even today I am not convinced that the Rosenbergs were involved in Soviet espionage. Right now I think there is serious doubt of it.

Mr. VELDE. Even though they were convicted under our American system of jurisprudence?

Mr. O'CONNELL. Even though they were convicted and executed I still feel it. You see, Congressman, I have a genuine interest in civil liberty. It is not a Communist interest in civil liberty. I have studied the testimony in the case of the Rosenbergs and so on. I think it is seriously lacking, at least in my mind, and from my very meager experience as an attorney, it is seriously lacking in fundamental proof of their guilt. I think Dr. Harold Urey, many scientists and so on, feel the same way about it.

Mr. TAVENNER. Mr. O'Connell, I note when speaking of Pennock and Rabbitt that a great part of your answers has dealt with the period when you were secretary for the Democratic Party. But it was after the Canwell hearings that the Progressive Party was established. It was in the spring of 1947.

So at the time that Pennock and Rabbitt were associated with the Progressive Party this information had already come out in the Canwell hearings?

Mr. O'CONNELL. Yes.

Mr. TAVENNER. And you have spoken of what happened before the Canwell hearings.

Mr. O'CONNELL. That doesn't prove to me, I mean knowing many of the people that testified—for instance, Jim Sullivan, I know Jim Sullivan's attitude and motives. I know precisely that he was president of the Washington Pension Union and he lost his job and Pennock got it.

I could go through with those, I could go through each one and show the particular reason why they testified. I judge by what Budenz said about me—Budenz knew I wasn't a member of the Communist Party. He didn't dare testify that I was.

Mr. VELDE. Will you tell us——

Mr. O'CONNELL. Will you let me finish, Congressman.

Mr. VELDE. You did not answer my question a while ago as to how you would judge whether or not a person was a member of the Communist Party?

Mr. O'CONNELL. I really haven't thought about it. I can't give you precise standards and tests. I, for instance, don't think, I mean the standards and tests set down in the Communist Control Act of 1954 are good; I think they would embrace a lot of people who are non-Communists. I think it would involve a lot of people who are not members of the Communist Party if you were to take those tests, for instance. I think it is entirely too broad.

Mr. TAVENNER. The sum and substance of your testimony is that the eight witnesses whose testimony I have quoted here are not worthy of belief and therefore, you just ignored their testimony when the matter came up of associating Rabbitt and Pennock with you in the Progressive Party work?

Mr. O'CONNELL. Not only as far as I was concerned, but as far as the people of the State of Washington, particularly in the districts that these representatives were concerned, and the Legislative Assembly of the State of Washington itself, this job was so poorly done by the Canwell committee that the committee was never re-created, and in the last session of the Legislative Assembly of Washington State had Canwell before it for contempt for the destruction of the records of his committee.

Mr. TAVENNER. Will you answer my question, please?

Mr. O'CONNELL. Well, the thing I am trying to point out to you is that I know how those hearings were conducted. There was no opportunity, no opportunity for cross-examination; no opportunity for witnesses to come in on the other side, or anything. I mean, people were paraded there, like Budenz, and the others, came there and made long, long statements; they just went on and on and made statements about almost everything imaginable and conceivable.

Mr. TAVENNER. You still haven't answered my question.

Mr. O'CONNELL. As far as I was concerned that did not prove to me that Rabbitt or Pennock or anybody named in there was Communist.

Mr. TAVENNER. My question was whether or not you absolutely ignored the testimony in the selection of those people to assist you in the work of the Progressive Party.

Mr. O'CONNELL. Well, I wouldn't use the language that I totally ignored it, or anything, but I was not motivated in my dealings with them by anything that was developed in those hearings. Now, you promised me an opportunity to——

Mr. TAVENNER. I will.

Mr. O'CONNELL. All right.

Mr. TAVENNER. You have told us that you were acquainted with Barbara Hartle.

Mr. O'CONNELL. Yes, I think that is a correct statement that I was acquainted with her.

Mr. TAVENNER. You stated that you had met her probably 5 times.

Mr. O'CONNELL. I met her the first time in Montana. Then I met her a few times in the State of Washington.

Mr. TAVENNER. I asked Mrs. Hartle in the course of the testimony taken in June 1954 to tell the committee to what extent the Communist Party in that area was interested in the work of the Progressive Party. You will find it on page 6215 of her testimony. Her reply was this:

To a very considerable extent. After the reconstitution the Communist Party recognized its revisionism of Marxism-Leninism in the political field, and decided that the correct program was for a new third anti-imperialist party. After this ideological campaign had proceeded for at least a year the Progressive Party was founded preceded for a period

by the Progressive Citizens of America. The Communist Party viewed this as a development along favorable lines and in this district threw considerable effort into the support and building of it and was able to furnish the top leadership as well in the State. Hugh DeLacy, head of the Progressive Citizens of America, Jerry O'Connell, and Tom Rabbitt, head of the Progressive Party, all three of whom were in executive positions, were members of the Communist Party to the best of my understanding. I have less knowledge of O'Connell's Communist Party membership than of DeLacy and Rabbitt, but have sat in Communist Party meetings with him when all present were Communists, and I understood him to be one also, or at least so sympathetic as to make no actual difference. Many Communist Party members were for the founding of the Progressive Party in this State and worked in it after its founding. They numbered in the hundreds. The policy of the Progressive Party in this State was controlled by the Communist Party and if there were any problems at all along this line they came from national demands or from demands of persons and groups working also in the Progressive Party and whom the Communist Party wanted to retain and influence. Other Communist Party leaders also in leadership of the Progressive Party were William J. Pennock, Karley Larsen, Fair Taylor, Tom Rabbitt, Jerry O'Connell.

Then she proceeded to refer to other Communist Party members active in the Progressive Party.

I want to call to your attention the fact that she stated that the Communist Party furnished the leadership to the Progressive Party in the State. The first person she named in that capacity was Hugh DeLacy. What was Hugh DeLacy's position in the Progressive Party?

Mr. O'CONNELL. Hugh DeLacy had no position in the Progressive Party and no office in the Progressive Party, in the State of Washington.

Mr. TAVENNER. Was it in the Progressive Citizens of America?

Mr. O'CONNELL. I think he was head of the Progressive Citizens of America. We had actually, when the Progressive Party was organized we had a real fight because the Progressive Citizens of America were coming in, they had

an organizational drive which was in support of Wallace as such, but when the Progressive Party of Washington was actually set up the leadership came not from the people who were in the Progressive Citizens of America, but from people who were in the Democratic Party.

Mr. TAVENNER. And people who were in the Young Progressives?

Mr. O'CONNELL. I don't think we had any Young Progressives.

Mr. TAVENNER. Did you have any position, prior to the formation of the Progressive Party in any organization other than the Democratic Party?

Mr. O'CONNELL. No. As I told you, we had an organization known as Roosevelt Democrats; I was executive secretary of it.

Mr. TAVENNER. Other than that, you had no position in any group or branch?

Mr. O'CONNELL. No, and Tom Rabbitt was not the head of the Progressive Party. Russell Fluent was.

Mr. TAVENNER. But he did hold an executive position as stated by Mrs. Hartle?

Mr. O'CONNELL. No, he did not.

Mr. TAVENNER. What was his position?

Mr. O'CONNELL. As I said, he was on the staff from about, I would say——

Mr. TAVENNER. Isn't that an executive position, being a member of the staff? Was he paid for his services?

Mr. O'CONNELL. He was paid for his services.

I mean, as I understand, he was not in an executive position. He had an organizational job to do this southern King County. I mean, he was assigned to organizational work, but it certainly wasn't, I mean he wasn't chairman or vice chairman, or secretary, or any executive position as I know it. And because of the kind of job he did out there, I dropped him from the staff.

Mr. TAVENNER. Now, DeLacy has been shown to have been a member of the Communist Party by witnesses other than Barbara Hartle and since her testimony. Rabbitt has also.

Mrs. Hartle stated she had less knowledge of Communist Party membership on your part, but that she sat with you in Communist Party meetings when all present were Communists. Is that statement true or false?

Mr. O'CONNELL. That statement, as far as I am concerned, is false. I never sat in any Communist Party meeting with her, at least that I knew was called a Communist Party meeting. I have never sat in when all present were Communists.

Mr. TAVENNER. Did you sit in any Communist Party meeting when some of the persons present were not Communists?

Mr. O'CONNELL. I do not know what her definition of a Communist Party meeting would be. That is the first thing that bothers me about that statement. I, for instance—I mean if the Communist Party called a meeting, as I understand her statement here, if the Communist Party called a meeting I know I never went to that meeting.

Mr. TAVENNER. Did you sit in a meeting of Communist Party members?

Mr. O'CONNELL. If she means, for instance, that a meeting of probable Democrats in the 35th District, people who were in the Democrat Party were there and there was a meeting——

Mr. TAVENNER. You speak of the Democrat Party each time. This testimony relates to the Progressive Party. Why not refer to that period of time?

Mr. O'CONNELL. Well, she said she sat in Communist Party meetings with me when all present were Communists. Likewise with the Progressive Party. I mean there could have been a Progressive Party meeting called and all that, and all of the people there present might have been Communists to her knowledge but certainly not to mine. She is careful; I mean she qualifies, she says, "I understood to be one or at least so sympathetic as to make no actual difference." She had doubts.

Mr. WILLIS. At this point that is what this has just about boiled down to in my mind, Mrs. Hartle's description. This morning I sat here and listened to the period of time when you were chairman of the Committee To Defeat the Mundt Bill. You became associated with or had business relations with Mr. Silberstein, Mr. Stone, Rose Clinton, Tom Buchanan, Ruth Rifkin, Elizabeth Sasuly, Tilla Minowitz, Carl Marzani, Lillian Clott, and Alexander Wright. In each instance you had an explanation, although we read from the record that others had said that these people were Communists, that you did not know about them. Well, that is a little difficult but it could have happened. I am not reproaching you, but you become a little more indifferent when you will not accept, for instance, the pronouncement of a court, the highest court of the land, that Rosenbergs were Communists. You refuse to accept that; you still are not convinced.

To me her description is becoming pretty good, to be so tolerant as to be completely indifferent. Probably your mind is shut to having a standard to satisfy you as to whether a group is or is not Communist. I am entirely frank about it. Listening all morning my mind at this time, even more and more as we go along, is that maybe your sincere feeling—how did she describe that?

Mr. O'CONNELL (reading):

I understand him to be one also, or at least so sympathetic as to make no actual difference.

Mr. WILLIS. Well, if she had used the words "so indifferent," it would have been pretty close to my frank analysis of your testimony.

Mr. VELDE. Let me say I concur with your statement, Mr. Chairman.

Mr. WILLIS. If she had substituted the word "indifferent," it would have been a close analysis of our appreciation of your testimony up to now. I look forward, however, to your contest with Mr. Budenz in that lawsuit that you mentioned.

Mr. O'CONNELL. I want to assure you that there is a difference. One can be a sincere American liberal and still fight for the political rights and civil

rights of Communists. I can be non-Communist and yet not anti-Communist, just like I can be a Democrat and yet not an anti-Republican.

Mr. WILLIS. Yes, but you still have not given us a standard. It is hard to put in words—I do not know how to describe it—as to what is my standard, of what is a Communist. I would say that after a trial by all our courts, including a refusal of relief from the Supreme Court, refusal of appeals to two Presidents, with all the pressure brought on them, the courts and executive officers (I suppose they must have reviewed the record; they all seemed satisfied) but still you are not satisfied. So that makes it indifferent to me as to what your standard could be.

Mr. O'CONNELL. I do not want to go into all of the evidence as I understand it, but as an attorney I am completely suspicious of the testimony given by David Greenglass. He had real motives. He had everything to gain by what he was doing. During the pleas for clemency and since that time there has been other evidence produced that in my mind raises a real question, the positions taken by Dr. Harold Urey and by other scientists as to whether or not the so-called secret which was transferred or alleged to have been transferred and so on was a secret at all. These are the things that make me wonder about it. I am not satisfied.

Mr. TAVENNER. Mr. O'Connell, you of course, noted from the testimony that I read that Barbara Hartle, who has been qualified as an expert in this field, stated that the Communist Party furnished the top leadership in the State of Washington for the Progressive Party. She also stated that the policy of the Progressive Party in that State was controlled by the Communist Party.

Now in that connection I want to follow a little further along with her testimony to support the extent to which the Communist Party was in a position to control the Progressive Party. I made this statement to Mrs. Hartle on page 6216:

Mrs. Hartle, the committee staff has procured from the secretary of state of the State of Washington a photostatic copy of the reports required to be made by law of the proceedings of the nominating convention for the year 1952—

that was the nominating convention of the Progressive Party—

It is noted that the certificate is signed by Thomas C. Rabbitt, permanent secretary of the Progressive Party. You have heretofore identified him as a member of the Communist Party, have you not?

Mrs. HARTLE. Yes, I have.

Mr. TAVENNER. The document referred to contains a certificate of attendance at the nominating convention of the Progressive Party held on the 9th day of September 1952. Will you please examine the list and read into the record the names of those appearing thereon who are known to you to have been members of the Communist Party?

(The witness then proceeded to read the names of those she had identified.)

Mr. TAVENNER. Will you now count the number of those whose signatures appear on the list?

Mrs. HARTLE. Yes; 33.

Mr. TAVENNER. I have kept a record of the number of those identified by you as members of the Communist Party. Out of the total list of 33 names, you have identified 19.

Mrs. Hartle further testified that while she was in the underground of the Communist Party, which meant after 1950——

Mr. O'CONNELL. Where is that?

Mr. TAVENNER. It is on the same page.

I received a brief description of what this Independent Party was. I was told that it had been impossible to place candidates for the Communist Party on the election ballot and that steps were taken then to put Communist candidates on an Independent Party ticket and take this means of bringing the Communist program into the election campaign.

The result was that we furnished to Mrs. Hartle a list of 49 persons certified by an affidavit to have attended the nominating convention of the Independent Party. Mrs. Hartle was asked to examine that list. Of the 49 persons appearing on the list, she identified 36 as known to her to be members of the Communist Party.

Mr. O'CONNELL. That list, of course, is all 1952 with reference to the Progressive Party in 1950, with reference to the so-called Independent Party?

Mr. TAVENNER. That is right.

Mr. O'CONNELL. My testimony is that I left the State of Washington in October 1949.

Mr. TAVENNER. That is correct.

Mr. O'CONNELL. I could distinguish if we had the time, as far as these people were concerned, with reference to the Progressive Party as it existed when I was there.

(Whereupon, a short recess was taken.)

(The committee members present when the hearing reconvened were Messrs. Willis and Velde.)

Mr. WILLIS. The subcommittee will come to order.

Proceed, Mr. Tavenner.

Mr. TAVENNER. Mr. O'Connell, you told us a few minutes ago that Hugh DeLacy had not been connected with your organization; that is, the Progressive Party.

Mr. O'CONNELL. No; I did not say that he——

Mr. TAVENNER. You said he was not in an executive position.

Mr. O'CONNELL. He was not in an executive position.

Mr. TAVENNER. Was he an organizer employed by you?

Mr. O'CONNELL. I do not remember whether he was there during the period when the party was actually organized, but he was there for a period of a few weeks.

Mr. TAVENNER. That was in 1948, was it not?

Mr. O'CONNELL. In 1948 when the organization work was being done. Then he later went on to the position with the national office of the Progressive Party.

Mr. TAVENNER. He finally became the head of the Progressive Party for the State of Ohio?

Mr. O'CONNELL. I think that is correct.

Mr. TAVENNER. According to his testimony, he was employed as a State organizer for the Progressive Party in Washington from sometime around February or March, perhaps even later, of 1948, up to somewhere around June of the same year.

Mr. O'CONNELL. I think that is comparatively correct. My remembrance of it is that the provisional committee operated from about March, I would say around March 23 of 1948, and we actually had the founding convention of the rest of the party in the State of Washington the latter part of May.

Mr. TAVENNER. DeLacy was a paid functionary for the Progressive Party during the period he indicated, was he not?

Mr. O'CONNELL. He was a paid organizer during that period.

Mr. TAVENNER. Did you employ him?

Mr. O'CONNELL. I could not say strictly that I employed him. I think that there was an executive committee group that was set up at the time.

Mr. TAVENNER. Were you his superior?

Mr. O'CONNELL. I was his superior; yes.

Mr. TAVENNER. Now you indicated that you desired an opportunity to explain the testimony that Mr. Louis Budenz——

Mr. WILLIS. Before you come to that, you started to say 3 or 4 times that you had fired Mr. Rabbitt.

Mr. O'CONNELL. I fired Mr. Rabbitt; I removed him from the staff. Is that what you mean?

Mr. WILLIS. Yes. Why did you fire him?

Mr. O'CONNELL. I explained he was organizing in southern King County and he was supercritical of the work of a man by the name of Belden who was organizing clubs in what we call the 30th Legislative District of King County. The party was being attacked as being Communist or Communist-controlled or Red, and Belden was trying to explain as an ordinary individual that it was not Communist-controlled and was not Red. In the course of his explanation, at least, left anti-Communist inference; Rabbitt was critical of it.

Mr. TAVENNER. It appears from the certificate made under law to the State of Washington that he was secretary of the Progressive Party in 1952—that Rabbitt was secretary.

Mr. O'CONNELL. In 1952?

Mr. TAVENNER. Yes.

Mr. O'CONNELL. I, of course, of my own knowledge would not know if that is correct.

Mr. TAVENNER. Did he remain on the executive committee of the Progressive Party after the time you say you discharged him from his paid position?

Mr. O'CONNELL. No, not as long as I was there. When I left in October of 1949, as I understand, in the early part of December a resolution was passed by the State board of the Progressive Party declaring my office vacant

because I had not returned from the State of Montana. Either at that meeting or shortly after, Rabbitt was named by the executive committee. I think, first, the original title given to him was coordinator. Later I think he was made executive secretary. I know these things from what people have told me, but not of my own knowledge.

Mr. TAVENNER. I am not sure that you have answered specifically my question relating to the testimony of Barbara Hartle insofar as it referred to you. Barbara Hartle testified that you attended Communist Party meetings in which she was present where all the persons present were members of the Communist Party. Did you attend any such meeting or meetings?

Mr. O'CONNELL I think my explanation of that was that if I sat in a Communist Party meeting or what she considered to be a Communist Party meeting where all present were Communists, I had no knowledge that they were Communists or it was a Communist Party meeting. Since I read the testimony yesterday, I tried to recall all the meetings out there where there would be a possibility she was present. I just cannot recall the occasions I saw Barbara Hartle out there—usually on the street or something of that kind—and I cannot recall any meeting that she sat in that I was in. I just cannot remember any single meeting that she sat in there where at least I knew she was there. She might have been in another room or some other place, but she was not visible to me anywhere.

Mr. TAVENNER. Were you a member of the Communist Party during the period of time you were in the State of Washington?

Mr. O'CONNELL. I was not.

Mr. TAVENNER. Were you at any time while in the State of Washington, that is, between 1944 and 1949, affiliated in any way with the Communist Party?

Mr. O'CONNELL. I was not.

Mr. TAVENNER. Were you at any time a member of the Communist Party?

Mr. O'CONNELL. I am not now and I have never been a member of the Communist Party.

Mr. TAVENNER. You stated a desire to explain the testimony of Mr. Louis Budenz given at the Canwell hearings.

Mr. O'CONNELL. Yes. At the Canwell hearings, Mr. Budenz—I think to save time, and I want to save time, Mr. Budenz testified that—I think the substance of his testimony was that he did not know whether or not I was a Communist, very much like Mrs. Hartle does. I think it is significant that she was the second top Communist in the State of Washington; and yet if I were the leading Communist that she says I was out there, she still is not sure whether I was or not. I think that is quite significant.

Likewise with Budenz. He was not sure whether I was Communist, but he had heard some discussion about me in the Communist Party headquarters in New York. As far as he knew, in meetings that he had heard, I was supposed to be all right and I was a person they could get along with. He made many statements of that kind. Then he went into the statement about the assassination of Leon Trotsky, which to the press in the State of Washington, left the impression that particularly somehow or other I was involved. So I sued Mr. Budenz in a civil suit in the Superior Court of King County the very next day.

Mr. WILLIS. In New York?

Mr. O'CONNELL. No; in the State of Washington—Seattle, Wash. I sued him for libel for the statements that he made about me. I fixed the sum of damages at \$1,500,000. He was served with subpoena, legally served with a summons, rather, in that suit, and through his attorneys defended the suit by taking advantage of his immunity as a legislative witness before the State legislative committee. He did not defend it.

Mr. WILLIS. What do you mean, he did not defend it?

Mr. O'CONNELL. I mean instead of letting the thing come to trial, instead of letting the issue come to trial on facts, to be tried on the facts, and so on, he and his attorneys hid behind his legislative immunity that he was in the

State of Washington by virtue of a subpoena to appear before the legislative committee of the State of Washington and under the laws of the State could not be legally served with a summons and sued in the State. The case was dismissed on that ground.

Mr. TAVENNER. Was this the testimony to which you referred:

I will ask you, Professor, Do you know a former Congressman from Montana by the name of Jerry O'Connell?

Mr. BUDENZ. Yes, sir.

Question. Do you know whether or not Mr. O'Connell was a member of the Communist Party?

Mr. BUDENZ. Not that specific. I know that he was one whom the party felt it must take care of because of his agreement constantly with the party line. This came up in the case of Congressman John T. Bernard, of Minnesota, and Congressman O'Connell. The discussion came up in the national headquarters of the Communist Party in the committee headed by William Winant about how to take care of these Congressmen because they agreed with the party line. And it was agreed that Bernard and O'Connell both would get jobs with the International Workers Order, this Communist-controlled front to which I have referred.

Now, it is my impression that—well, I know that Bernard got it, and it is my impression that Mr. O'Connell temporarily also received that cynosure through the cooperation of the party. I heard the discussion in the party circles first, and later on I heard that it was to be accomplished.

That is the testimony to which you refer?

Mr. O'CONNELL. That is the testimony to which I refer.

Mr. TAVENNER. You were employed by the International Workers Order, were you not?

Mr. O'CONNELL. In order not to prolong it—Congressman Willis did not hear this, but yesterday I testified about my connections with the International Workers Order. The original contact, as I remember, was made by Peter Shipka to advise the local Serbs and Croats which existed in the city of Butte. It was, as I remember, during a period when I think Hitler had already invaded Yugoslavia and it was a question of whether they were supporting Milhailovich or Pavlich. There was a lot of dissension going on between the Serbs and Croats. I was asked to go down and advise with them and help with them. Many of them I knew because of my political candidacies for legislature and for the railroad and public service commission and for Congress there.

Mr. TAVENNER. That is all in the record.

Mr. O'CONNELL. Yes. Then I was sent on a specific job to do with reference to these coal miners at Steamboat Springs who were applying for citizenship and were members of the International Workers Order.

Mr. TAVENNER. You were employed to go on speaking tours over the country for which you were paid \$200 a month and your expenses?

Mr. O'CONNELL. I made only one speaking tour on the plan for plenty. The plan for plenty we had was an improved social security, called for improvement of the social security system as it existed at that time. I made some speeches. You asked me what I got, how much compensation I had received. I said in my opinion it would average about \$200 a month.

Mr. TAVENNER. And your expenses?

Mr. O'CONNELL. And my expenses, yes. I knew nothing about Mr. Budenz' discussion with the Communist Party headquarters or anything. I got a call from Mr. Shipka. I am sure it was Mr. Shipka, the treasurer of the organization, who asked me first to do these two specific jobs which I did within a short time. Then later he called me to make these speeches on a plan for plenty.

Mr. TAVENNER. Now I have before me an excerpt from the May 29, 1941, issue of Montana Labor News. The title is, "TWO Names O'Connell Rocky

Mountain Director.” It is datelined New York, May 10. I will read it:

“Former Representative Jerry J. O’Connell, labor’s fighting Congressman from Montana, has been appointed regional director for the International Workers Order in the Rocky Mountain area, Herbert Benjamin, executive secretary of that organization, announced today. “Mr. O’Connell will be able to continue his effort on behalf of the labor movement on a much broader scale in his new post,” Herbert Benjamin declared, “since the IWO is labor’s foremost and largest fraternal benefit society. Our national membership of 155,000 supports the trade-union movement and its individual members on many fronts; providing insurance, sickness, and accident benefits at low rates, a rounded program of club and fraternal social life, plus a nationwide campaign for improving living standards, and social security embodied in our plan for plenty.”

Mr. O’CONNELL. That is the first I knew—nobody told me that I was to be regional director of the IWO. As far as I can remember, as far as their clubs were concerned out in the Rocky Mountain area, they had one in Butte, which was the only one they had in the whole State of Montana. I think they had one down in this town called Steamboat Springs, Col. Those were the only two clubs that I know of in the Rocky Mountain area. There were certainly no—at least on my part, there was no idea I was to be regional director, because the first 2 assignments that I got were first to go down to advise this club in Butte and the other to go down to this Steamboat Springs, in Colorado, and clear up the question that the judge and the examiner were raising there. The judge at the time thought that the IWO and the IWW were one and the same. I brought Mr. Charles Cunningham, I think his name was, commissioner of insurance of the State of Colorado, to the judge to point out that the IWO was a fraternal benefit organization.

Mr. TAVENNER. You have explained all that in exactly the same detail.

Mr. O’CONNELL. Yes, but the concept that I was a regional director——

Mr. WILLIS. I am not so sure I followed you on the reason for the dismissal of the suit you filed.

Mr. O'CONNELL. I did not dismiss the suit.

Mr. WILLIS. I do not think I caught the point. Was it a jurisdictional question? Specifically, what was it?

Mr. O'CONNELL. It was a motion to quash. Actually, it arose on the motion to quash the service of the summons.

Mr. WILLIS. On what grounds?

Mr. O'CONNELL. On the grounds that Mr. Budenz had immunity as a legislative witness before the State legislative committee that he was appearing before in the State of Washington.

Mr. WILLIS. He was not from Washington—not a resident of the State of Washington?

Mr. O'CONNELL. No; he was a resident of New York.

Mr. WILLIS. You filed suit against him in Washington at a time while he happened to be there?

Mr. O'CONNELL. While he happened to be there.

Mr. WILLIS. But he was there on State legislative business?

Mr. O'CONNELL. Yes.

Mr. WILLIS. And therefore was immune from service, and that was the basis for his motion to quash?

Mr. O'CONNELL. We served the summons on him. My desire was to get a test and a trial on the factual merits.

Mr. WILLIS. Was it filed in the State or Federal court?

Mr. O'CONNELL. In the superior court of King County.

Mr. WILLIS. His motion to quash was based on the fact he was served with the papers while he happened to be in the State of Washington on State legislative business and therefore was not subject to service process?

Mr. O'CONNELL. Yes.

Mr. WILLIS. And his motion came up before the court and the court dismissed the action?

Mr. O'CONNELL. Yes.

Mr. WILLIS. Did you sue him elsewhere?

Mr. O'CONNELL. And I did not pursue it elsewhere.

Mr. WILLIS. You did not file suit elsewhere against him?

Mr. O'CONNELL. By the time that was done he was gone.

Mr. WILLIS. I am not talking about that. You could have sued him. Anybody is subject to suit somewhere, and his domicile is the real place. I say did you not pursue him, upon dismissal of the suit in Washington and file another suit elsewhere?

Mr. O'CONNELL. You mean go to New York and file a suit against him?

Mr. WILLIS. Yes.

Mr. O'CONNELL. No; certainly not.

Mr. WILLIS. Or in the Federal court or in any court?

Mr. O'CONNELL. Well, I would have to go to New York. If he was a resident of New York, I would have to go to New York in order to get service; but I had him out in the State of Washington where I did get service on him.

Mr. TAVENNER. I desire to offer the photostatic copy of the news article from the Montana Labor News and ask that it be marked as "O'Connell Exhibit

No. 7" for identification purposes only, and to be made a part of the committee files.

Mr. WILLIS. It is so ordered.

Mr. TAVENNER. I would like the record to show at this point that the International Workers Order was cited as subversive and Communist by Attorney General Tom Clark on December 4, 1947, and again on September 21, 1948, and that it was cited by Attorney General Francis Biddle on September 24, 1942, as one of the strongest Communist organizations. It has also been cited by other committees, including this committee.

Were you acquainted with its secretary, Herbert Benjamin?

Mr. O'CONNELL. I knew Herbert Benjamin. I am pretty sure he is the same Herbert Benjamin who was an officer in the Workers Alliance during WPA days, when I was in Congress. But I have actually had no contact with Benjamin in the IWO. In fact, this is the first I knew he had any connection with the IWO. But I knew him; I am sure he was lobbying here on the Hill with a man by the name of David Lasser while I was in Congress. I think he was with the Workers Alliance.

Mr. TAVENNER. Were you acquainted with Louis Budenz prior to the time he appeared as a witness at the Canwell hearings in the State of Washington?

Mr. O'CONNELL. No, I was not acquainted with him. Shortly before he left the Communist Party he wrote me a letter asking me to write a series of articles for the Daily Worker about Senator Wheeler, which I refused, which I rejected. That is the only contact I ever had. I never met Budenz, never saw him or anything, until he was out in the State of Washington.

Mr. VELDE. Did he want you to write articles favorable to Senator Wheeler?

Mr. O'CONNELL. No, he wanted me to write anti-Wheeler articles. Senator Wheeler and I became tangled politically out there. I was going to run against Senator Wheeler for the Senate in 1940, and Senator Wheeler of course took care of me in 1938. So I did not get to run. I mean the fight,

there were people who were anxious to defeat Wheeler from 1940 on down until he was actually defeated in 1946.

He wrote that letter to me, I would say, just shortly before he left the Communist Party.

Mr. WILLIS. Those articles were to appear in the Daily Worker?

Mr. O'CONNELL. In the Daily Worker; yes.

Mr. WILLIS. Would an unfavorable article appearing in the Daily Worker be harmful to one's political life in those days in Montana?

Mr. O'CONNELL. No, I mean——

Mr. WILLIS. You did not want to inject yourself in it?

Mr. O'CONNELL. I did not want to write the articles, that is all.

Mr. WILLIS. I would say the best compliment to me in my district would be for the Daily Worker to say that I was a rotter.

Mr. O'CONNELL. Well, I think that would be true today. You would be surprised if you went out to the State of Montana and went into some of the mining camps and taverns and what not. For instance, we have a character in Butte by the name of Paddy King. Paddy sells the Daily Worker. He has silicosis. He is a real character around there. He goes all around the town. Everybody buys the Daily Worker from Paddy. They do not think much of it. Some of them read it, some of them throw it away, and so on.

Mr. VELDE. Do you still read it?

Mr. O'CONNELL. No; I do not. Of course, I do not live in Butte any longer. I actually do not think I have seen the Daily Worker since they used to be delivered to our doors here in Washington.

Mr. TAVENNER. Were you acquainted with Alexander Bittelman?

Mr. O'CONNELL. No. Who is he?

Mr. TAVENNER. Alexander Bittelman has been identified in testimony as a functionary of the Communist Party in the city of New York.

Mr. O'CONNELL. I do not know any Alexander Bittelman.

Mr. TAVENNER. Mr. Chairman, I have no further questions.

Mr. VELDE. I have no questions to ask the witness. It is apparent from his testimony, that Mr. O'Connell has a great deal of knowledge about Communist Party activities which he has refused to give this committee. That does not disturb me as much as the fact that it appears that he is still ideologically favorable to the Communist Party of the United States. It is very regrettable, but apparently every person, including those favorable to the Communist Party, has a right to express his opinion in this country. I want to say this: I hope that Mr. O'Connell will think this matter over in the future and give us the benefit of the knowledge that he possesses about the activities of the Communist Party in the United States.

Mr. O'CONNELL. Congressman, I have done my very best. I have talked to you. I do not want to argue. I do say that I appreciate all the consideration which the committee has given me, particularly on the two instances when I asked for continuations because of my illness. I appreciate the fairness with which the committee has treated me throughout the hearings. I just want to say that, as far as I am concerned—that is, the best way I can describe it honestly and sincerely, is that from my environment, from the poverty since my birth and the things that happened to me as a child and as a young man, and so on, I grew up in a very, very liberal tradition where people were certainly tolerant of all the various shades and hues of political opinion as we saw them. I think I could best describe myself, I am just an old-fashioned American liberal. I want to assure you that I have had no training

Mr. TAVENNER. I do not want to prolong the discussion. At the beginning of the hearing you mentioned the fact that you had passed the bar in Montana, and that you are now a practicing lawyer, and you intended to forget about any type of political activity. I just wonder whether you consider the Communist Party activity as being political.

Mr. O'CONNELL. I think you asked me that question before.

Mr. TAVENNER. I do not think I did.

Mr. O'CONNELL. Well, somebody asked me it before. As far as I am concerned, I am not engaged in any Communist Party activity in the State of Montana or any party activity, Progressive, or Democrat, or anything. I have been asked by the Progressive Party in 1950 to run for the United States Senate and I refused. I have been asked by the press in Montana—I am not being braggadocio or conceited—by the various newspapers, the Great Falls Tribune, the Lewistown Daily News, and many others, whether I was going to come back into the political life of the State. I have always told them, and told them constantly, that I wanted to be a lawyer; I wanted to be, if I could, the best lawyer that Montana ever had. That was the desire that I had. I have been practicing law to the very best of my ability. When a man starts to practice law, as I did, when he is about 40 years of age, he has a lot to learn. There are many—well, I am sure, Mr. Willis, as an attorney you know the best teacher, of course, is experience. I have been trying to keep my nose clean and hewing to the line. I have been practicing law. That is what I have been doing. I think in my work out there I have earned the respect and consideration of all the people in the kind of job I have been doing.

We do not have any integrated bar in the State of Montana. The Montana Supreme Court regulates and supervises the bar out there. I am sure that the members of the supreme court will tell you the things I have said here today about my friend and all that are true.

Mr. VELDE. Do you not think you are a bit gullible or naive when you say that you did not know there was a Soviet espionage ring operating in this country? Tell the committee the truth.

Mr. O'CONNELL. Now listen. I think I have set forth my position. I do not know that that is actually true. I do not know that it is true. I do not know it. I have never met a Soviet spy that I know of.

Mr. VELDE. It is just unbelievable to me. Of course, that is just my opinion.

Mr. O'CONNELL. You are in a different position than I am.

Mr. VELDE. With all your connections that have been brought out here with the various front groups, with all of your connections with well-known Communists, not to realize that there has been an espionage ring operating in this country is amazing to me. You are an intelligent man.

Mr. O'CONNELL. Any of those groups or any of the individuals that have been mentioned here can be tied down to specific programs or purposes or things of that kind, but certainly nothing along the line of espionage.

Mr. WILLIS. Would it surprise you if they were?

Mr. O'CONNELL. No, it would not surprise me; but what I am saying is that I do not know.

Mr. WILLIS. The committee is adjourned and the witness is dismissed.

Mr. O'CONNELL. Thank you.

(Whereupon, at 5:25 p. m., the hearing in the above matter was concluded and the committee recessed to the call of the Chair.)

INDEX

Individuals

Adair, Robin, [473](#)
Archer, James, [436](#)
Armstrong, Harry C., [419](#), [420](#), [586](#), [588](#)
Astley, Theodore Raymond, [522](#)
Atkinson, N. P., [423](#)
Atkinson, Roy, [470](#), [504](#)

Bader, Barney, [435](#)
Bailey, George, [434](#)
Baldwin, C. B., [553](#)
Balmer, Alice, [485](#)
Batterson, Frank, [512](#)
Beattie, John F., [312](#)
Belden (Mr.), [589](#)
Benjamin, Herbert, [272](#), [599](#), [601](#)
Bernard, John T., [572](#), [573](#), [598](#)
Bitterman, Jacob, [441-443](#) (testimony)
Bitterman, Ruth, [442](#), [522](#)
Bittleman, Alexander, [602](#)
Blauvelt, Mildred, [550](#)
Bloor, Ella Reeve, [583](#)
Boggs, Elizabeth, [471](#)
Bourne, James, [357](#), [359](#), [479](#)
Bradley, George, [273](#), [336](#), [356](#)
Bristol, Al, [471](#)
Bristol, Frances, [471](#)

Brockway, Harold, [356](#)
Brockway, John, [356](#)
Brodsky, Joseph, [508](#)
Browder, Earl, [264](#), [475](#), [581](#)
Brown, Roy, [262](#)
Buchanan, Tom [559](#), [593](#)
Budenz, Louis, [264](#), [585](#), [590](#), [591](#), [594](#), [596-598](#), [600](#), [601](#)
Burns, Helmi (Mrs. Tom Burns; also known as Hutonen, Helmi),
[437](#)
Burns, Tom, [437](#)
Burton, Philip L., [414](#)

Camozzi, Robert, [469](#)
Campbell, Ray, [311](#)
Carlson, Edwin A., [327-329](#) (testimony), [365-374](#) (testimony)
Carlson, Frank, [545](#), [548](#)
Carmichael, Edward Brook, Jr., [322-326](#) (testimony)
Carter, Edward C., [461](#)
Cayton, Revels, [467](#)
Chafee, Zechariah, Jr., [507](#)
Clinton, Rose, [558](#), [593](#)
Clott, Herman, [563](#)
Clott, Lillian, [563](#), [564](#), [593](#)
Cluck, Jack R., [443](#), [450](#)
Coffee, John M., [573](#)
Cohen, Abraham Arthur, [490-492](#) (testimony)
Cohen, Elizabeth Boggs, [521](#), [523](#)
Cole, Merwin, [469](#)
Coley, Ward, [469](#)
Corr, Bill, [468](#)
Costigan, Howard, [401](#), [402](#), [406](#), [407](#), [411](#), [421](#)
Cour, Jim, [468](#)
Cummings, Al, [381](#)
Cvetic, Matthew, [564](#), [565](#)

Dafoe, Doc, [473](#)

Daggett, Charles, [468](#), [469](#)
Daggett, Herbert, [469](#)
Danielson, Jean, [522](#)
Daschbach, John, [472](#), [520-522](#), [544](#), [545](#), [548](#), [549](#), [566](#), [584](#)
Daschbach, Marjorie, [522](#)
Davis, Jerome, [361](#)
Davis, John, [523](#), [540](#)
DeLacy, Hugh, [406](#), [407](#), [413](#), [434](#), [519](#), [592](#), [593](#), [596](#)
Delaney, Paul William, [438-440](#) (testimony)
Dennett, Eugene Victor, [249-303](#) (testimony), [335-362](#) (testimony),
[391-413](#) (testimony), [419-438](#) (testimony), [466-490](#)
(testimony), [492-493](#) (testimony), [307](#), [308](#), [483](#), [494](#), [501](#),
[513](#), [514](#), [517](#), [518](#), [521](#), [528](#), [529](#).
Dennett, Harriette, [482-484](#)
Dobbins, William K., [406](#), [407](#)
Dodd, William E., Jr, [541](#)
Dokter, Ted, [470](#)
Donaldson, Hallie, [485](#)
Doran, Dave, [345](#)
DuBois, W. E. B., [569](#)

Ebey, Harold, [406](#), [407](#), [412](#), [434](#)
Egroth, Fair Taylor, [523](#), [592](#)
Engstrom, James, [355](#), [395](#)
Espe, Conrad, [438](#)

Field, Gladys, [432](#), [470](#)
Fisher, C. H., [516](#), [520](#)
Fletcher, Jess, [340](#), [406](#), [434](#), [469](#), [586](#)
Flood, George, [434](#), [435](#)
Fluent, Russell, [520](#), [553](#), [565](#), [567](#), [592](#)
Fogg, Kathryn, [586](#), [588](#)
Ford, James W., [540](#)
Foster, William Z., [262](#)
Fowler (Mrs.), [582](#)
Fox, Ernest, [394](#), [427](#), [428](#), [470](#)

Fox, Elsie (Mrs. Ernest Fox; also known as Gilland, Elsie), [470](#)
Frankfeld, Philip, [472](#)
Freyd, Bernard, [492-494](#) (testimony)
Furuseth, Andrew, [395](#)

Gates, John, [566](#)
Gemson, Richard L., [438](#)
George, Lawrence Earl, [414-416](#) (testimony)
Gilland, Elsie. (See Fox, Elsie)
Granich, Max, [264](#)
Greenglass, David, [594](#)
Gundlach, Ralph, [523](#), [544](#), [545](#)
Gustafson, Margaret Elizabeth, [374-377](#) (testimony)

Haines, Victor, [258](#), [351](#), [352](#), [358](#)
Halonen, Oiva R., [299-301](#), [302-308](#) (testimony)
Hall, Gus, [567](#)
Hall, Robert, [557](#)
Hanke, Ed, [357](#)
Hannon, Bruce, [395](#)
Harding, Alex, [474](#)
Harding, Arthur, [470](#)
Harding, Jean, [470](#)
Harris, Calvin, [381](#)
Harris, Lem, [530](#), [532](#), [533](#)
Harter (Mrs.). (See Noral, Mrs. Alex.)
Hartle, Barbara, [247](#), [278](#), [299](#), [300](#), [305](#), [311](#), [314](#), [315](#), [319](#), [327](#),
[332](#), [365](#), [380](#), [381](#), [385](#), [388](#), [414](#), [415](#), [417](#), [426](#), [427](#), [437](#),
[439-442](#), [474](#), [489](#), [496](#), [501](#), [509-511](#), [514](#), [516-518](#), [521-523](#),
[543-545](#), [591-595](#), [597](#).
Hatten, C. T., [317](#), [362](#), [363](#), [493](#), [495](#)
Hatten, Eugene R., [485](#)
Henderson, Donald, [437](#)
Henry, Edward E., [490](#)
Hicks, Victor, [434](#)
Hillman, Sidney, [504](#)

Hoffman, Elsie, [566](#)
Honig, Nat, [433](#), [586](#)
Hosue, I., [438](#)
Huber, L. R., [468](#)
Hudson, Roy, [430](#), [431](#), [472](#)
Huff, Helen, [485](#)
Huff, Henry, [475](#), [477](#), [479](#), [484](#), [566](#), [571](#)
Hunterer, L. C., [520](#), [565](#), [566](#)
Hutcheson (William), [268](#)
Hutchins, Hutchin R., [349](#), [357](#)
Hutonen, Helmi. (*See* Burns, Helmi.)

Jackins (Carl), Harvey, [521](#)
Jackson, Gardner, [530-533](#)
Jackson, Harry, [405](#), [406](#), [436](#), [470](#)
Jackson, Henry, [405](#)
Johnson, A. A., [356](#)
Johnston, Harold, [313-316](#) (testimony), [331](#), [332](#), [363-364](#)
(testimony), [365](#), [471](#)

Kerr, Frank, [311](#), [312](#), [499](#), [500](#)
King, Paddy, [570](#), [602](#)
Kinney, Alice, [485](#)
Kinney, Glenn, [311](#), [471](#)
Kirkwood, Trudi, [485](#)
Knudsen, C. Calvert, [330](#)
Krahl, Robert B., [379-382](#) (testimony)
Kroener, Donna, [332](#)
Kroener, Edmund D., [330-333](#) (testimony)

Larsen, Karley, [406](#), [407](#), [433](#), [592](#)
Lasser, David, [601](#)
Law, Dick, [470](#)
Law, Laura, [470](#)
Lawrence, Adrian, [434](#)

Lawrie, John (Jack), Jr., [316](#), [317-322](#) (testimony)
Lawrie, John, Sr., [260](#), [359](#), [479](#)
Leavitt, Edward, [260](#), [359](#)
Leeds, David, [570](#)
Legg, Charles, [472](#)
Lesser, Sarah H., [322](#)
Linden, Emil, [262](#)
Lokanath, D(r.), [461](#)
London, M. M., [273](#), [336](#), [340](#)
Lovestone, Jay, [279](#)
Luddington, Mel, [356](#)
Lundeberg, Harry, [269](#), [394](#), [395](#), [427-429](#)
Lundquist, Hugo, [435](#)

MacDonald, Kenneth A., [249](#), [335](#), [374](#), [391](#), [419](#), [441](#), [466](#), [492](#)
Marcantonio, Vito, [569](#), [575](#), [582](#)
Markward, Mary Stalcup, [556](#), [558](#), [559](#), [561](#), [562](#), [564](#)
Marshall, Andrew, [474](#)
Marshall, James, [526](#)
Marshall, Robert, [524-527](#), [530](#)
Marzani, Carl, [563](#), [593](#)
Max, Alan, [349](#)
McCoy, Nora, [520](#)
McGrath, Ellen, [469](#)
McGregor, Harry, [362](#)
McMichael, Jack R., [535](#), [581](#)
Merrill, Lewis, [436](#)
Miller, Robert, [382-391](#) (testimony)
Minowitz, Tilla, [562](#), [593](#)
Moe, Iver, [467](#)
Mortimer, Wyndham, [435](#)
Mosio, Wayne, [472](#)
Munter, Paul, [254-257](#)
Murphy, James, [262](#)

Nelson, Burt, [434](#)

Nelson, Steve, [326](#), [572](#), [575](#)
Niendorff, Fred, [482](#)
Niles, David, [573](#)
Noral, Alex, [259](#), [260](#), [270](#), [272](#), [273](#), [349](#), [350](#), [357](#), [359](#)
Noral, Mrs. Alex (formerly Mrs. Harter), [468](#)

O'Connell, Jeremiah Joseph, [261](#), [274](#), [300](#), [362](#), [363](#), [502-603](#)
(testimony)
Olson, Martin, [355](#)
Orton, O. M., [432](#)

Patton, James G., [530-533](#)
Payne, Earl, [471](#)
Peck, I. A., [365](#)
Pennock, William, [408](#), [420](#), [421](#), [423](#), [511-516](#), [518](#), [520](#), [566](#), [572](#),
[585](#), [587-592](#)
Pettus, Ken, [523](#)
Pettus, Terry, [468](#), [512](#), [513](#), [523](#)
Pierce, Harriet, [416-418](#) (testimony)
Poth, Philip, [472](#)
Popper, Martin, [549](#)
Powell, R. H., [365](#)
Pressman, Lee, [430](#), [431](#), [435](#), [436](#)
Pringle (Mr.), [395](#)
Pritchett, Harold J., [432](#), [468](#)

Quill, Mike, [578](#)
Quist, Helen, [354](#)

Rabbitt, Thomas C., [421](#), [514-516](#), [518](#), [566](#), [572](#), [585-593](#), [595-597](#)
Randolph, A. Philip, [540](#)
Rappaport, Morris (also known as Rapport, Morris), [349-351](#), [357](#),
[358](#), [401](#), [405](#), [407](#), [410](#), [421](#), [433](#), [471](#)
Rapport, Morris. (See Rappaport, Morris.)

Rasmussen, Ted, [469](#), [470](#)
Raven, Robert, [572](#)
Ray, Tommy, [437](#)
Remes, Andrew, [470](#), [475](#), [477](#), [571](#)
Remington, William Robert, [533](#), [534](#)
Reno, Phil, [531](#)
Rifkin, Ruth, [559-561](#), [593](#)
Riley, Harriett, [586](#)
Ringold, Solie M., [382](#)
Robel, Eugene Frank, [309-312](#) (testimony), [331](#), [473](#)
Roberts, Daniel, [486](#)
Robeson, Paul, [537](#)
Robinson, Reid, [436](#)
Rodney (Mr.), [256](#)

Sandvigen, I. E., [545](#)
Santos, John, [482](#)
Sass, Lou, [470](#)
Sasuly, Elizabeth, [560](#), [561](#), [593](#)
Schuddakoph, Margaret Jean, [522](#)
Searle, Elizabeth, [561](#)
Shipka, Peter, [507](#), [508](#), [598](#), [599](#)
Silberstein, Robert J., [549](#), [551-556](#), [558-560](#), [593](#)
Silverstein, Robert, [507](#)
Sinclair, Upton, [528](#)
Smith, Claude, [469](#), [483](#), [484](#)
Smith, F. S. U., [471](#)
Smith, Ferdinand, [436](#)
Smith, George, [355](#)
Sobeleski, Helen, [433](#), [470](#)
Starkovich, George Tony, [274](#)
Stack, Walter, [394](#), [434](#), [435](#)
Stenhouse, John, [443-466](#) (testimony)
Stevens, John, [434](#)
Stith, Ernest Paul, [512](#)
Stone, John B., [556-558](#), [593](#)

Stromberg, Yetta, [293](#), [300](#)
Strong, Anna Louise, [403](#), [528](#)
Stucker, Vivian, [485](#)
Sullivan, James, [586](#), [590](#)
Sunoo, Harold, [523](#)
Sykes, Jay G., [302](#), [309](#), [312](#), [313](#), [327](#), [363-365](#), [379](#), [499](#)

Taverniti, Helen, [374](#)
Taylor, Fair. (See Egroth, Fair Taylor.)
Telford, Kate, [466](#)
Telford, Sam, [466](#)
Thrasher, Elmer, [332](#)
Ting, Chi Chio, [465](#)
Trolson, Roy, [416](#)

Urey, Harold, [590](#)

Van Erman, Thomas J., [437](#)
Van Lydegraf, Clayton, [471](#), [484](#), [566](#), [571](#)
Van Veen, Sadie, [347](#)
Vassiliev, B., [279](#), [280](#)

Wakefield, Lowell, [349](#), [420](#), [514](#)
Walker, Fred, [254-257](#), [259](#), [359](#)
Walsh, Patrick, [433](#)
Ward, Harry F., [581](#)
Warren, Ward F., [586](#)
Waybur, Bruce, [507](#), [553](#), [555](#), [556](#), [558](#), [559](#), [563](#)
Westman, Hans Lenus Adolph, [495-499](#) (testimony), [514](#)
Wheeler, Frances, [564](#)
Wildman, Leonard Basil, [471](#), [521](#)
Wildman, Muriel, [471](#)
Williamson, John, [472](#)
Winston, Henry, [567](#)

Wright, Alexander, [593](#)
Wright, Richard, [537](#)

ORGANIZATIONS

Abraham Lincoln Brigade, [323](#), [472](#), [572](#)
American Federation for Social Action, [581](#)
American Federation of Musicians, Seattle: Local 76, [374](#)
American Federation of Teachers, [375](#), [376](#)
American Friends of the Chinese People, [582](#)
American Fund for Public Service, [535](#)
American League Against War and Fascism, [581](#)
American League for Peace and Democracy, [579-582](#)
 Fourth National Congress, [574](#)
American Newspaper Guild, [491](#)
American Peace Mobilization, [535](#)
American Youth Congress, [534](#)
American Youth for Democracy, [541](#)
Automobile Workers of America, United, [435](#)

CIO, Political Action Committee, [504](#)
California Labor School, [542](#)
**Cannery, Agricultural and Packinghouse Workers of America,
 United, [437](#)**
 Cannery Workers Union, Seattle, [437](#)
Central Labor Council, [396](#), [397](#)
Civil Rights Congress, [477](#), [539](#)
 District of Columbia, [559](#)
 Washington State, [548](#), [584](#), [585](#)
Committee for a Democratic Far Eastern Policy, [582](#), [583](#)
Commonwealth Builder Clubs, [397-399](#)
Communist International, [352](#)
 Executive committee, [352-354](#)
Communist Party, U. S. A.:
 District of Columbia:
 Community Club, [562](#)
 Newspaper Club, [559](#)

Language groups: Finnish Federation, [293](#), [300](#)

Northwest District (District 12), [483](#), [510](#)

District Bureau, [358](#)

Review Commission, [483](#), [484](#)

Washington, State of:

Bellingham, [352](#)

Bellamy Club, [354](#)

Liberal Club, [353](#), [354](#)

Bremerton: Victory Club, [377](#)

King County: Negro and National Groups Commission, [415](#)

Northwest Region, [326](#)

Seattle:

Georgetown Club, [417](#)

Hilltop Club, [439](#)

Holly Park Branch, [388](#)

Queen Anne Section, [439](#)

Snohomish County, [512](#)

Sultan Section [51](#), [326](#)

Communist Political Association, [387-389](#)

Ferry Boatmen's Union of the Pacific, [392](#), [393](#), [395](#), [427](#)

Friends of the Abraham Lincoln Brigade, [575](#)

Friends of the Soviet Union, [357](#), [471](#)

Frontier Films, [537](#)

Industrial Workers of the World, [266](#), [268](#), [507](#), [599](#)

Inland Boatmen's Union of the Pacific, [396](#), [398](#), [427](#), [431](#), [469](#), [473](#)

International Labor Defense, [255](#), [467](#), [539](#), [576](#), [578](#)

International, Third (Comintern): Sixth World Congress, [260](#), [350](#)

International Workers Order, [507](#), [598-601](#)

Interracial Action Committee, [415](#)

International Juridical Association, [537](#)

Institute of Pacific Relations, [459-462](#)

Ku Klux Klan, [356](#)

Labor Youth League, [299](#)
Lincoln Book Store, [448](#)
Longshoremen's and Warehousemen's Union, International, [268](#),
[414](#)
Lumber Workers Union, National, [262](#)

Machinists, International Association of, [311](#), [314](#), [315](#), [330](#), [365](#)
Local 79, [441](#)
Marine Cooks and Stewards, National Union of (of the Pacific),
[393](#), [467](#)
Marine Firemen, Oilers, Watertenders and Wipers Association,
Pacific Coast, [393](#)
Marine Workers Industrial Union, [393](#), [406](#), [436](#), [437](#)
Maritime Federation of the Pacific, [268](#), [393-396](#), [427](#)
District Council, [393](#), [396](#)
Medical Bureau and North American Committee To Aid Spanish
Democracy, [574](#)
Mine, Mill and Smelter Workers, International Union of, [436](#), [563](#)

National Committee To Defeat the Mundt Bill, [505](#), [506](#), [550-552](#),
[555-558](#), [560](#), [563-565](#), [593](#)
National Farmers Union, [530-533](#)
National Federation for Constitutional Liberties, [538](#), [584](#)
National Lawyers Guild, [507](#), [542](#), [549](#), [551](#), [552](#), [554-556](#), [563](#)
National Marine Engineers' Beneficial Association, [469](#)
National Maritime Union, [436](#), [437](#)
National Negro Congress, [539](#)

Office and Professional Workers of America, United, [436](#)
Local 35, [480-484](#)

Pacific Northwest Labor School (also known as Seattle Labor
School), [375](#), [520](#), [522](#), [523](#), [543-545](#), [548](#), [549](#)
People's Councils, [335-338](#)

Presentation, Inc., [562](#), [563](#)
Progressive Citizens of America, [592](#)
Progressive Party, [592](#)
 Washington State, [505](#), [553](#)

Red International of Labor Unions, [263](#), [265-267](#), [276](#), [393](#), [394](#)
Robert Marshall Foundation, [524](#), [527](#), [531-535](#), [541-544](#), [547](#)

Sailors' Union of the Pacific, [393](#), [394](#), [470](#)
Seamen's Union of America, International, [267](#), [393](#)
Seattle Labor School. (See Pacific Northwest Labor School.)
Socialist Party of America, [353](#), [354](#)
Socialist Workers Party, [389](#), [486](#), [487](#)
Southern Negro Youth Congress, [541](#)
Southern Conference for Human Welfare, [540](#), [541](#)
Superior Print Shop, [561](#), [562](#)

Trade Union Unity League, [262-267](#)
Transport Workers Union of America, CIO, [482](#)

Unemployed Citizens Leagues, [336-340](#), [359](#), [398](#)
Unemployed Councils, [336](#), [338](#), [339](#)
 National Committee, [348](#)
United Nations, [462](#)

Veterans of the Abraham Lincoln Brigade, [575](#)

Washington Commonwealth Federation, [397-402](#), [404](#), [405](#), [407-413](#), [420](#), [426](#), [429](#), [474](#), [509](#), [510](#), [513](#), [517-519](#), [528](#), [529](#).
Washington Pension Union, [420-422](#), [429](#), [509-512](#), [514-520](#), [590](#)
Woodworkers of America, International, [407](#), [432](#), [433](#), [466](#), [468](#)
Workers School of New York, [256](#)
Workers Alliance, [398](#), [601](#)

Young Pioneers of America, [292-298](#)

Young Communist League, [292](#), [299](#), [346](#), [354](#), [542](#)

PUBLICATIONS

Daily People's World, [535](#)

Northwest edition, [468](#), [512](#), [548](#)

Daily Worker, [535](#), [570](#)

Federated Press, [535](#), [536](#), [556](#)

How the Communist International Formulates at Present the Problem of Organization, [279](#)

Jerry O'Connell's Montana Liberal, [503](#), [580](#)

New World, [413](#), [468](#), [484](#), [523](#), [543](#)

Twenty-one Conditions for Affiliation With the Communist International, The, [264](#)

Union Guardian, [523](#)

United States Week, [541](#)

Victory and After, [475](#)

Voice of Action, [468](#)

Young Worker, [346](#)

FOOTNOTES:

- [1](#) This is a reference to the United Electrical Radio and Machine Workers of America.

Transcriber's Note:

Obvious printer errors corrected silently.

Inconsistent spelling and hyphenation are as in the original.

*** END OF THE PROJECT GUTENBERG EBOOK INVESTIGATION
OF COMMUNIST ACTIVITIES IN SEATTLE, WASH., AREA.
HEARINGS, PART 3 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.